

2025 NIOBRARA COUNTY LAND USE PLAN

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Table of Contents

TITLE 1 - Explanation of the Niobrara County Land Use Plan	11
Chapter 1 - Purpose	11
Chapter 2 - Scope	11
Chapter 3 - Plan Implementation.....	12
1.3.010 Vision.....	12
1.3.020 Objective	12
1.3.030 Goal	12
1.3.040 Policy	12
TITLE 2 - Definitions	13
TITLE 3 - County Empowerment	17
Chapter 1 - County Influence	17
Chapter 2 - National Environmental Policy Act (NEPA)	17
Chapter 3 - Federal Involvement	17
Chapter 4 - Federal Acts.....	18
3.4.010 Requirements for Coordination	18
3.4.020 Governing the Use and Management of Federal Lands and Minerals	18
Chapter 5 - Authority	18
Chapter 6 - Plan Implementation.....	20
3.6.010 Vision.....	20
3.6.020 Objective	20
3.6.030 Goal	20
3.6.040 Policy	20
TITLE 4 - Introduction and Citizen Participation	21
Chapter 1 - Benefits	21
Chapter 2 - Plan Development and Public Involvement.....	21
Chapter 3 - Using and Amending the Plan.....	22
Chapter 4 - Plan Implementation.....	22
4.4.010 Vision.....	22
4.4.020 Objective	22
4.4.030 Goal	22
4.4.040 Policy	22

TITLE 5 - Description, Location, and History of Niobrara County	23
Chapter 1 - History of Niobrara County	25
Chapter 2 - Demographics	27
TITLE 6 - Physical Characteristics	28
Chapter 1 - Land	28
Chapter 2 - Public Land	30
6.2.010 Vision.....	30
6.2.020 Objective	30
6.2.030 Goal	30
6.2.040 Policy	30
Chapter 3 - Private Land	30
6.3.010 Vision.....	30
6.3.020 Objective	30
6.3.030 Goal	31
6.3.040 Policy	31
Chapter 4 - Private Land with Federal Mineral Ownership (commonly known as Split Estate).....	31
6.4.010 Vision.....	31
6.4.020 Objective	31
6.4.030 Goal	31
6.4.040 Policy	31
Chapter 5 - Climate	31
Chapter 6 - Topography	32
Chapter 7 - Geology	32
Chapter 8 - Drainage	32
Chapter 9 - Soil.....	34
TITLE 7 - Water	35
Chapter 1 - Precipitation	35
Chapter 2 - Groundwater and Surface Water	35
7.2.010 Vision.....	35
7.2.020 Objective	35
7.2.030 Goal	35
7.2.040 Policy	35
Chapter 3 - Wastewater.....	36

7.3.010 Vision.....	36
7.3.020 Objective	36
7.3.030 Goal	36
7.3.040 Policy	36
TITLE 8 - Natural Resources	37
Chapter 1 - Timber	37
Chapter 2 - Minerals	37
Chapter 3 - Plan Implementation.....	42
8.3.010 Vision.....	42
8.3.020 Objective	42
8.3.030 Goal	42
8.3.040 Policy	42
TITLE 9 - Natural Hazards	43
Chapter 1 - National Flood Insurance Program	43
Chapter 2 - Plan Implementation.....	43
9.2.010 Vision.....	43
9.2.020 Objective	43
9.2.030 Goal	43
9.2.040 Policies	43
TITLE 10 - Environmental Quality.....	44
Chapter 1 - Plan Implementation.....	44
10.1.010 Vision.....	44
10.1.020 Objective	44
10.1.030 Goal	44
10.1.040 Policy	44
TITLE 11 - Solid and Hazardous Waste	45
Chapter 1 - Plan Implementation.....	45
11.1.010 Vision.....	45
11.1.020 Objective	45
11.1.030 Goal	45
11.1.040 Policy	45
TITLE 12 - Economic Analysis	46
Chapter 1 - Employment Trends	46

Chapter 2 - Population Trends	48
Chapter 3 - Household Trends	50
Chapter 4 - Properties and Housing.....	50
Chapter 5 - Plan Implementation.....	51
12.5.010 Vision.....	51
12.5.020 Objective	51
12.5.030 Goal	51
12.5.040 Policy	51
TITLE 13 - Recreation	52
Chapter 1 - Facilities.....	52
Chapter 2 - Plan Implementation.....	52
13.2.010 Vision.....	52
13.2.020 Objective	52
13.2.030 Goal	52
13.2.040 Policy	52
TITLE 14 - Historic Preservation	53
Chapter 1 - Plan Implementation.....	53
14.1.010 Vision.....	53
14.1.020 Objective	53
14.1.030 Goal	53
14.1.040 Policy	53
TITLE 15 - Arts and Humanities	54
Chapter 1 - Plan Implementation.....	54
15.1.010 Vision.....	54
15.1.020 Objective	54
15.1.030 Goal	54
15.1.040 Policy	54
TITLE 16 - Education.....	55
Chapter 1 - Plan Implementation.....	55
16.1.010 Vision.....	55
16.1.020 Objective	55
16.1.030 Goal	55
16.1.040 Policy	55

TITLE 17 - Grazing.....	56
Chapter 1 - Plan Implementation.....	56
17.1.010 Vision.....	56
17.1.020 Objectives	56
17.1.030 Goal	56
17.1.040 Policy	56
TITLE 18 - Weed and Pest.....	57
Chapter 1 - Plan Implementation.....	57
18.1.010 Vision.....	57
18.1.020 Objective	57
18.1.030 Goal	57
18.1.040 Policy	57
TITLE 19 - Endangered Species.....	58
Chapter 1 - Plan Implementation.....	58
19.1.010 Vision.....	58
19.1.020 Objective	58
19.1.030 Goal	59
19.1.040 Policy	59
TITLE 20 - Predatory Animals	60
Chapter 1 - Plan Implementation.....	60
20.1.010 Vision.....	60
20.1.020 Objective	60
20.1.030 Goal	60
20.1.040 Policy	60
TITLE 21 - Fire Management and Protection	61
Chapter 1 - Plan Implementation.....	61
21.1.010 Vision.....	61
21.1.020 Objective	61
21.1.030 Goal	61
21.1.040 Policy	61
TITLE 22 - Health and Human Services.....	62
Chapter 1 - Plan Implementation.....	62
22.1.010 Vision.....	62

22.1.020 Objective	62
22.1.030 Goal	62
22.1.040 Policy	62
TITLE 23 - Road Use and Access	63
Chapter 1 - Plan Implementation.....	63
23.1.010 Vision.....	63
23.1.020 Objective	63
23.1.030 Goal	63
23.1.040 Policy	63
TITLE 24 - Communications and Other Utilities	64
Chapter 1 - Plan Implementation.....	64
24.1.010 Vision.....	64
24.1.020 Objective	64
24.1.030 Goal	64
24.1.040 Policy	64
TITLE 25 - Wind, Solar, Nuclear, and other Alternative Energy Generation	65
Chapter 1 - Plan Implementation.....	65
25.1.010 Vision.....	65
25.1.020 Objective	65
25.1.030 Goals	65
25.1.040 Policies	65
TITLE 26 - Economic Development	66
Chapter 1 - Economic Development and Diversification	66
26.1.010 Vision.....	66
26.1.020 Objective	66
26.1.030 Goal	66
26.1.040 Policy	66
Chapter 2 - Business Retention and Expansion	66
26.2.010 Vision.....	66
26.2.020 Objective	67
26.2.030 Goal	67
26.2.040 Policy	67
Chapter 3 - Business Recruitment.....	67

26.3.010 Vision.....	67
26.3.020 Objective	67
26.3.030 Goal	67
26.3.040 Policy	67
Chapter 4 - Recreation and Tourism	67
26.4.010 Vision.....	67
26.4.020 Objective	67
26.4.030 Goal	67
26.4.040 Policy	68
Chapter 5 - Agricultural Land and Related Uses	68
26.5.010 Vision.....	68
26.5.020 Objective	68
26.5.030 Goal	68
26.5.040 Policy	68
TITLE 27 - Infrastructure and County Services	69
Chapter 1 - County-provided Services to Rural Areas	69
Chapter 2 - Developer-provided Services	69
Chapter 3 - Utility Planning and Coordination	69
Chapter 4 - Plan Implementation.....	69
27.4.010 Vision.....	69
27.4.020 Objective	69
27.4.030 Goal	69
27.4.040 Policy	70
TITLE 28 - Large Scale Developments.....	71
Chapter 1 - Plan Implementation.....	71
28.1.010 Vision.....	71
28.1.020 Objective	71
28.1.030 Goal	71
28.1.040 Policy	71
TITLE 29 - County/Community/Fringe Area Development	72
Chapter 1 - Plan Implementation.....	72
29.1.010 Vision.....	72
29.1.020 Objective	72

29.1.030 Goal 72

29.1.040 Policy 72

TITLE 30 - Regulations, Standards and the Approval Process 73

Chapter 1 - Plan Implementation..... 73

30.1.010 Vision..... 73

30.1.020 Objective 73

30.1.030 Goal 73

30.1.040 Policy 73

TITLE 31 - Development Standards 74

Chapter 1 - Plan Implementation..... 74

31.1.010 Vision..... 74

31.1.020 Objectives 74

31.1.030 Goal 74

31.1.040 Policy 74

TITLE 32 - Plan Adoption 75

TITLE 33 - APPENDIX A 77

TITLE 34 - APPENDIX B 78

TITLE 35 - Appendix C..... 79

Table of Figures

Figure 1. Niobrara County Location Map 23

Figure 2. Map of Niobrara County Highways and Municipalities (Source: Niobrara County) 24

Figure 3. History of Niobrara County 26

Figure 4. Towns in Niobrara County 28

Figure 5. Topography of Niobrara County 33

Figure 6. Niobrara County Coal Map (Source: Wyoming State Geological Survey, February 20, 2024) 38

Figure 7. Map of Industrial Minerals (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)..... 39

Figure 8. Oil and Gas Pipelines in Niobrara County (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)..... 40

Figure 9. Oil and Gas Fields and Wells (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)..... 41

Figure 10. Silver Cliff Mining Area (Source: Wyoming State Geological Survey, February 20, 2024)..... 41

Figure 11. Niobrara County Employment by Industry (2001-2022) 47

Figure 12. 2022 Median Earnings by Industry 48

Figure 13. 2022 Household Income 50

Figure 14. 2022 Property Values..... 51

TITLE 1 - EXPLANATION OF THE NIOBRARA COUNTY LAND USE PLAN

Chapter 1 - Purpose

The purpose of the 2025 Niobrara County Land Use Plan (approved by the Niobrara County Planning and Zoning Commission as the “2024 Niobrara County Land Use Plan”) is to protect the culture and customs, economic and community stability of Niobrara County. The decisions concerning these purposes will be determined by the citizens of Niobrara County. This plan will provide the framework for the citizens of Niobrara County in future development endeavors for both private and public actions. The adopted 2025 Land Use Plan updates and replaces any and all preceding Niobrara County Land Use Plans and clarifies/reconfirms the County’s land use and development goals and policies.

In conjunction with the Niobrara County Natural Resource Management Plan dated August 3, 2021, this plan seeks to achieve a balance between the County’s natural and man-made environments and provide recommendations that promote the area’s prosperity while being compatible with the County’s heritage.

The Niobrara County Commissioners believe that the American concept of government of the people, by the people, and for the people is best served when government affairs are conducted as close to the people as possible (i.e., at the local government level). We find it desirable to address the use and management of these important resources, especially rangelands, soil, and water conservation, within the political jurisdiction of the County as the heart of its comprehensive planning efforts. The Commissioners understand one goal of the County’s citizens and, therefore, its government has been the continuation of a lifestyle, which assures the quiet enjoyment of private property rights and property interest and provides the highest degree of protection for these rights. Property rights and interests are important to the people living and working in this remote, rugged county, which is the least populated county in the least populated state. Many people who live in Niobrara County rely on the land and its productive use. Private ownership and the incentives provided by private ownership are driving forces that support the livelihood of many Niobrara County citizens ownership.

The citizens have defined Niobrara County’s culture as having a low population density and a high quality of life, followed closely by self-sustaining environmental quality and diversity in use of natural resources, and a low crime rate.

The citizens have defined Niobrara County’s custom as resolutely independent with strong family values, quality of education, unity and community involvement when facing adversity and mutual respect for each individual.

It is important to note that our custom and culture is the direct result of the freedom that citizens have always had in order to innovate and make management decisions on their property.

Chapter 2 - Scope

The Plan will be limited to all lands within the borders of Niobrara County be they county, state, private or federal. This Plan shall not preclude or interfere with the authority of the municipalities to govern the lands within their respective boundaries.

The Plan will enable the County Commissioners and the citizens of Niobrara County to agree upon and document in writing a definite set of visions, objectives, goals, and policies that will be utilized to govern the future of the County when development or regulation occurs.

Chapter 3 - Plan Implementation

1.3.010 Vision

To achieve a balance between the community's natural and manmade environments, offering recommendations which promote the area's prosperity within a context that is compatible with the County's heritage.

1.3.020 Objective

The Plan will foster communication between and among elected officials and citizens. The Plan will also provide continuity by communicating county goals and policies from one political administration to the next. With this Plan, all parties concerned should know in advance if proposed projects are likely to be approved or denied.

1.3.030 Goal

To protect and retain Niobrara County's culture, custom, economic and community stability and to encourage land use decisions and growth patterns that are consistent with the County's adopted plans, policies, and development objectives.

1.3.040 Policy

As applicable, the Niobrara County Land Use Plan and the Niobrara County Natural Resource Management Plan will be utilized as guides for future land use and development decisions. The Niobrara County Natural Resource Management Plan is hereby incorporated by reference into this 2025 Land Use Plan.

END TITLE 1

TITLE 2 - DEFINITIONS

For the purposes of the 2025 Land Use Plan, the following definitions apply:

Commissioners – The Niobrara County Board of Commissioners.

Conservation – Development, improvement, maintenance, preservation, protection, and use of natural resources, and the control and prevention of floodwater and sediment damages, and the disposal of excess waters. (W.S. 11-16-102(iv))

Consistent - Marked by harmony, regularity, or steady continuity: free from variation or contradiction. (Merriam-Webster's Collegiate Dictionary, Deluxe Edition, 1998, p. 386)

Consistency - Agreement or harmony of parts or features to one another or a whole: specifically: ability to be asserted together without contradiction. (Merriam-Webster's Collegiate Dictionary, 5th Edition, 1998, p. 386)

Consult - The act of asking the advice or opinion of someone. (Black's Law Dictionary Deluxe 7th Edition, p. 311)

Cooperate - To act or work with another or others: act together. (Merriam-Webster's Collegiate Dictionary, Deluxe Edition, 1998, p. 399)

Culture – The integrated pattern of human knowledge and behavior passed to succeeding generations; it is customary beliefs, social forms, and material traits of a social group. (Webster's 9th New Collegiate Dictionary, 1991, p. 314)

Custom – A usage or practice of the people, which, by common adoption and acquiescence, and by long and unvarying habit, has become compulsory and has acquired the force of law with respect to the place or subject matter to which it relates. (Bouvier's Law Dictionary, 417, 1st ed. 1867)

DEQ – The Wyoming Department of Environmental Quality

Economic and Community Stability - A combination of local custom, culture and economic preservation. (Forest Service, US Department of Agriculture, The Use Book, 133 (1906 ed.)) The citizens of Niobrara County have placed paramount importance on the continued use of natural resources (on both private and public lands) for the production of food and fiber when defining economic and community stability. The vast open spaces in our locale are vital to the unlimited recreational and tourism opportunities. Local retail and family-type business, railroads, oil and gas industries and governmental agencies also contribute substantially to the County's economic and community stability.

Economic Viability - The condition of a society and/or community to be economically capable of working, functioning, growing, developing, and prospering as an independent unit. It is a critical component of social and community stability.

Federally or State managed lands - Lands and natural resources that fall under Federal or State management including, but not limited to, the National Forest System (Reserves, National Forest, Wilderness, Roadless, Wild and Scenic), Bureau of Land Management lands (including, but not limited to, wilderness study areas, lands with wilderness characteristics, areas of critical environmental concern),

Bureau of Reclamation lands; State school lands and other State trust lands (including Game and Fish lands).

Fringe Area – The rural-urban fringe is the boundary zone outside the urban area proper where rural and urban land uses intermix.

Goal - The thing to be accomplished to ensure that a community's quality of life, economic vitality, infrastructure, public safety and environmental health are protected and improved over time.

Groundwater – Any water, including hot water and geothermal steam, under the surface of the land or the bed of any stream, lake, reservoir, or other body of surface water, including water that has been exposed to the surface by an excavation, such as a gravel pit or some type of mining operation. (Wyoming Administrative Rules; Engineer, State; Ground Water)

Heritage – The history, traditions, practices, etc. of a particular country, society, or company that exist from the past and continue to be important. (Cambridge Dictionary)

Land Use Planning - Process by which citizens and leaders identify and pursue the vision, goals, and objectives for their community and its future. Planning allows the local community to efficiently and effectively administer government services based on the physical layout of the community and its needs, and by anticipating future changes in population, employment, and land use. (The Legal Basis of Planning in Wyoming, 2018).

Large Scale Development – Any private or public development which, because of its magnitude of land area or the magnitude of its effect on the surrounding environment, is likely to affect a wide area or population.

Local Government - Cities and towns, counties, school districts, joint powers boards, airport boards, public corporations, community college districts, conservation districts, special districts and their governing bodies, all political subdivisions of the state, and their agencies, instrumentalities and institutions, and governmental entities of another state but only while physically present in the state of Wyoming and while in the course of operating a cooperative public transportation program as defined by W.S. 16-1-104(f). (W.S. 1-39-103)

Local Land Use Plan - Any written statement of land use policies, visions, goals, and objectives adopted by local governments. Local land use plans shall provide an explanation of the methods for implementation of the plan; however, these plans shall not require any provisions for zoning and implementation of the plan shall be subject to the provisions of this article. Any local land use plan may contain maps, graphs, charts, illustrations or any other form of written or visual communication. (W.S. 9-8-301)

May - The discretion or choice between two or more alternatives. (Black's Law Dictionary, 5th edition, p. 883)

Notify - For the purposes of this plan, official notification which shall be constituted by delivery of information documents to the attention of the Chairman of the Niobrara County Board of Commissioners, 424 South Elm Street, Lusk, WY 82225.

Objective - A desired level of achievement towards achievement of a goal.

Permit - A certificate evidencing permission; a license. (Black's Law Dictionary Deluxe 7th edition, p. 1160)

Policy - The general principles by which a government is guided in its management of public affairs, or the legislature in its measures. (Black's Law Dictionary, Rev. 4th edition, p. 1317)

Pollution – (relating to water quality) Contamination or other alteration of the physical, chemical or biological properties of any waters of the state, including change in temperature, taste, color, turbidity or odor of the waters or any discharge of any acid or toxic material, chemical or chemical compound, whether it be liquid, gaseous, solid, radioactive or other substance, including wastes, into any waters of the state which creates a nuisance or renders any waters harmful, detrimental or injurious to public health, safety or welfare, to domestic, commercial, industrial, agricultural, recreational or other legitimate beneficial uses, or to livestock, wildlife or aquatic life, or which degrades the water for its intended use, or adversely affects the environment. This term does not mean water, gas or other material which is injected into a well to facilitate production of oil, or gas or water, derived in association with oil or gas production and disposed of in a well if the well is used either to facilitate production or for disposal purposes is approved by authority of the state, and if the state determines that such injection or disposal well will not result in the degradation of ground or surface or water resources. (W.S. 35-11-103.c.i)

Private land/private property – Belonging to and concerning an individual person, company, or interest (i.e. non-government entity) over which the owner has exclusive and absolute rights. (Forest Service, US Department of Agriculture, The Use Book, 13, 1906 Ed and Black's Law Dictionary Deluxe 7th edition)

Property - Any external thing over which the rights of possession, use, and enjoyment are exercised. (Black's Law Dictionary Deluxe 7th edition, p. 1232)

Property right - A right to specific property, whether tangible or intangible. (Black's Law Dictionary Deluxe 7th edition, p. 1323)

Public land/public property - Those lands held by the federal or state government not restricted to any one individual's use or possession.

Resolution or County Resolution - A formal expression of a decision by the Board of Niobrara County Commissioners, which carries the force and effect of law.

Right - The interest, claim, or ownership that one has tangible or intangible property. (Black's Law Dictionary, 7th edition, p. 1322)

Riparian - Of, on, or relating to the banks of a natural course of water. (American Heritage Dictionary, 4th edition)

Sensitive Area – An area in which plant or animal life or their habitats are either rare or especially valuable because of their special nature or role in an ecosystem and which would be easily disturbed or degraded by human activities and developments. (Lawinsider.com/dictionary/environmentally-sensitive-areas)

Shall - Imperative or mandatory. It excludes the idea of discretion. (Black's Law Dictionary, 5th edition, p. 1233)

Social Stability - The condition of a society and/or community being firmly established, permanent and steadfast, not subject to insecurity, emotional illness or outside disruption, and with the strength to stand and endure in its established way of life.

Surface Water – All surface water belongs to the State of Wyoming. Surface waters of the state means all perennial, intermittent and ephemeral defined drainages, lakes, reservoirs and wetlands which are not man-made retention ponds used for the treatment of municipal, agricultural or industrial waste; and all other bodies of surface water, either public or private which are wholly or partially within the boundaries of the state. (Wyoming Administrative Rules; Dept of Environmental Quality; Water Quality Chapter 1)

Urbanizing Area - Those areas experiencing, or likely to experience, increased growth and development interest and pressure. Generally, urbanizing areas are adjacent to the existing communities of Lusk, Manville, and Van Tassell, and are therefore easily serviceable by the Wyoming State Highway system, major county arterial roads, snow removal services, police and fire protection, central water and sewer services, schools, and shopping facilities.

Vision – An articulation not of purpose, but of a preferred future for the County.

Water Quality – Shall be defined per US Environmental Protection Agency and Wyoming Department of Environmental Quality.

Waters of the State – All surface and groundwater, including waters associated with wetlands, within Wyoming.

Zoning – A form of regulatory control granted to local governments which may be used to guide and to develop specific allowable land use. (W.S. 9-8-302)

END TITLE 2

TITLE 3 - COUNTY EMPOWERMENT

Chapter 1 - County Influence

Federal laws provide for county influence under the following acts:

1. National Environmental Policy Act (NEPA)
2. National Forest Management Act (NFMA)
3. Federal Land Policy and Management Act (FLPMA)
4. Endangered Species Act (ESA)
5. Wild and Scenic Rivers Act
6. Others

County governments have the responsibilities to uphold federal and state constitutions and laws to protect and promote well-being of the citizens.

Chapter 2 - National Environmental Policy Act (NEPA)

“...Declares that it is the continuing policy of the Federal Government, in cooperation and State and local governments, and other concerned public and private organizations, to use all practicable means and measures, including financial and technical assistance, in a manner calculated to foster and promote the general welfare, to create and maintain conditions under which man and nature can exist in productive harmony, and fulfill the social, economic, and other requirements of present and future generations of Americans.”¹

“...to improve and coordinate Federal plans, functions, programs, and resources²... and ‘preserve important historic, cultural, and natural aspects of our national heritage’³...”

NEPA is an important tool available to a county to meet its responsibility and to protect its tax base, private property rights and civil rights of its citizens from intrusion by governmental agencies that restrict the use and development of land resources on private and federal lands.

Chapter 3 - Federal Involvement

Federal laws governing land management mandate coordination by the managing agency.

It is the policy of Niobrara County that federal and state agencies shall notify the Board of Niobrara County Commissioners (Commissioners), in writing of all pending or proposed actions and coordinate with the Commissioners in the planning and implementation of those actions. For the purposes of this plan, official notification shall be constituted by delivery of information documents to the attention of the Chairman of the Board of Niobrara County Commissioners, 424 South Elm Street, Lusk, WY 82225.

¹ 42 USC 4331(a)

² 42 USC 4331 (b)

³ 42 USC 4331 (b)(4)

Chapter 4 - Federal Acts

3.4.010 Requirements for Coordination

National Forest Management Act of 1976

Federal Land Policy and Management Act of 1976

3.4.020 Governing the Use and Management of Federal Lands and Minerals

Multiple-Use Sustained-Yield Act of 1960

Rangeland Renewable Resources Planning Act of 1974

Public Rangeland Improvement Act of 1978

Taylor Grazing Act of 1934

Forest and Rangeland Renewable Resources Planning Act of 1974 (RPA)

The Wild and Free Roaming Horse and Burro Act 16 U.S.C. 1331 et seq.

BLM authority to write commercial recreation permits-43 U.S.C. 1740; 16 U.S.C. 4601-6A

43 CFR 1610.3-1 Coordination of planning efforts.

National Environmental Protection Act 1969

Endangered Species Act

7 U.S.C. 426b. Authorization of expenditures for the eradication and control of predatory and other wild animals

7 U.S.C. 426c. Control of nuisance mammals and birds and those constituting reservoirs of zoonotic diseases

Granger-Thye Act of 1950

Title 7 of Laws Applicable to the United States Department of Agriculture (1931). APHIS (7 U.S.C. 426) Predatory and Other Wild Animals; Eradication and Control

Presidential Executive Order No. 12630 issued March 15, 1988

Regulatory Flexibility Act (5 U.S.C. 601 et seq.)

Small Business Regulatory Enforcement Fairness Act 5 U.S.C. 804 (2)

Mineral Leasing Act of 1920 as amended by Mineral Leasing Act revision 2001

Outdoor Recreation Act 1963

Chapter 5 - Authority

In 1975, the Wyoming Legislature enacted the State Land Use Planning Act, and W.S. 9-8-301(a) mandates that “all local governments shall develop a local land use plan within their jurisdiction”.

“Local land use plans may guide local governments in adopting or amending local zoning regulations, however, such plans shall not be construed as a substitute for, or equivalent to, duly enacted local zoning regulations, which have the force and effect of law.” (W.S. 9-8-301(e))

“In the event of a conflict between a duly enacted local zoning regulation and a local land use plan the local zoning regulation shall control.” (W.S. 9-8-301(e)(i))

“No local government shall require that a land use or physical development be consistent with a local land use plan unless the applicable provisions of the local land use plan have been incorporated into the local zoning regulations.” (W.S. 9-8-301(e)(ii))

“Nothing in this article [3] shall allow any local government to use a local land use plan as authority to deny or restrict a permissible land use or physical development which is not restricted or prohibited under existing zoning regulations.” (W.S. 9-8-301(f))

Nothing in this document may be used for the taking of any private property, or property right, without constitutional due process and full and complete compensation to all victims thereof as required by Article 1, Section 32 and Section 33 of the Wyoming Constitution and W.S. 1-26-101 through 1-26-817).

W.S. 9-8-301(c) requires that all counties develop a countywide land use plan which incorporates the land use plans of all incorporated cities and towns within the county.

The development and adoption of this plan is in conformance with W.S. 9-8-302, which states, “The duty, procedures and requirements for public hearings and responsibility for land use planning at the local level shall be exercised... and by the respective counties pursuant to W.S. 18-5-201 et seq.”

W.S. 18-5-208. Special expertise of board of county commissioners and coordination of planning efforts with federal agencies.

a. When representing a county as a cooperating agency in matters related to the National Environmental Policy Act and in federal land planning, implementation and management actions, a board of county commissioners shall be deemed to have special expertise on all subject matters for which it has statutory responsibility including, but not limited to, all subject matters directly or indirectly related to the health, safety, welfare, custom, culture and socio-economic viability of a county.

b. The board of county commissioners of a county which has officially adopted a comprehensive plan pursuant to W.S. 18-5-202(b) may participate in efforts to coordinate the plan with federal agencies as provided in the Federal Land Policy and Management Act of 1976, the Forest and Rangeland Renewable Resources Planning Act of 1974, as amended by the National Forest Management Act of 1976 and any other federal statute which provides for coordination with local governments and federal regulations adopted pursuant to those acts.

Niobrara County has adopted Resolution 25-05 (Appendix A) which sets forth procedural protections which shall be followed to ensure full and complete cooperation and coordination between the County and the federal government to protect the custom, culture, and heritage of Niobrara County and its citizens.

Chapter 6 - Plan Implementation

3.6.010 Vision

The Niobrara County Commissioners will support the education of the public on the basic fundamentals of responsible government.

3.6.020 Objective

The Niobrara County Commissioners support the concept of the local government as the primary and fundamental unit of government.

3.6.030 Goal

Encourage inter-jurisdictional coordination and cooperation to identify and address growth management and land use issues.

3.6.040 Policy

Niobrara County may coordinate its land use planning and decision-making processes with local, state, and federal government entities, service/utility providers and private interests to promote the efficient development of rural and urbanizing areas within the County.

END TITLE 3

TITLE 4 - INTRODUCTION AND CITIZEN PARTICIPATION

Concern for the future of the County in light of the rapid changes taking place in Wyoming, and the State Land Use Planning Act of 1975, which required that all local governments develop land use plans by the end of 1977, resulted in the Board of County Commissioners appointing a County Planning Commission. In turn, the Planning Commission developed and recommended a Preliminary Niobrara County Land Use Plan to the County Commissioners. The County Commissioners approved the Preliminary Plan, which was sent to the State Land Use Commission for Review. The Final Plan incorporates comments received at the public hearing on November 22, 1977.

The revised Niobrara County Land Use Plan was updated using a county-wide survey, public comments, and public hearings in 1996.

The 2025 Niobrara County Land Use Plan is a new update and revision. Once again, a county-wide survey, public comments, and public hearings were used to develop this updated Plan. This plan focuses on land use and development issues as prioritized and discussed by County leaders and residents through an extensive public involvement and policy refinement process.

Chapter 1 - Benefits

Primary benefits of the 2025 Land Use Plan are two-fold. First, the County possesses a document that articulates a consistent and clear direction for future land use and development. For the Plan to remain a valuable planning tool, it should be reviewed and amended as necessary to address emerging County issues and interests.

Second, the planning process itself has been a valuable learning experience for Niobrara County decision-makers, planning staff and citizens. A diverse group of County interests actively participated in various stages of the project and draft material review. Through this process, the 2025 Land Use Plan truly reflects Niobrara County interests. Public ownership of the Plan and familiarity with the accompanying policies will be invaluable as County leaders adopt the document and implement the Plan.

Chapter 2 - Plan Development and Public Involvement

The Niobrara County Land Use Plan is being updated and revised in accordance with Resolution 25-05 (Appendix A) adopted March 18, 2025 by the Commissioners.

The Commissioners and Planning Commission members spent much of 2023 holding public meetings and gathering the residents' input regarding the direction they want to see Niobrara County move in relation to the County's natural resources and future development as a tool to update and revise the "Niobrara County Planning and Zoning Regulations".

In 2024, a public meeting was held to hear the residents' input related to the goals and policies set forth in this document. A county-wide survey was also sent to all Niobrara County landowners for additional input. This input was reviewed by the Planning Commission and recommended for approval by the Commissioners.

As required by Wyoming State Statute, the draft Plan was available for public review and comment through an open Planning Commission and County Commission public hearing and adoption process. A public hearing was held by the Planning Commission on the 10th day of September, 2024. Formal approval

and recommendation were made by the Planning Commission during their regular meeting held in Lusk, Wyoming on the 10th day of December, 2024.

A public hearing was held by the Commissioners on the 4th day of February, 2025. Formal action was then taken by the Board of Niobrara County Commissioners during their regular meeting held in Lusk, Wyoming on the 18th day of March, 2025 where the Commission voted unanimously to approve and adopt the 2025 Niobrara County Land Use Plan as official County Policy.

Chapter 3 - Using and Amending the Plan

It is intended that the 2025 Land Use Plan will serve as a framework for County decision-makers as they consider future land use and development decisions. The Plan is also designed to provide a formal policy foundation for enhancing County and community relations, pursuing economic development activities, coordinating infrastructure and resource planning, encouraging responsible natural resource use, and fostering County and State/Federal agency cooperation and coordination.

While the 2025 Plan, upon adoption, reflects the thoughtful direction of Niobrara County in 2024 and 2025, the Plan must be updated and revised as circumstances change and new challenges arise. The process for amending the Plan, as outlined in Wyoming State statutes and County regulations, requires adequately noticed public hearings and formal action by the Niobrara County Planning Commission and Board of County Commissioners in accordance with W.S. 18-5-202.

Chapter 4 - Plan Implementation

4.4.010 Vision

All developments shall promote, protect, and retain Niobrara County's culture, custom, economic and community stability.

4.4.020 Objective

The County will encourage safe, healthy, and attractive residential opportunities for families and individuals of all income levels, lifestyles, and stages of life. The County will also welcome and encourage commercial, industrial, residential, agricultural and recreational land uses and development patterns consistent with the goals and policies of adopted County land use plans and studies.

4.4.030 Goal

The County will maintain a land use plan, policies, and regulations designed to protect private property rights and private property values of all landowners balanced with the general health, safety, and welfare interests of present and future residents.

4.4.040 Policy

Adopted County land use goals, policies, and regulations will be periodically reviewed and updated in order to remain useful decision-making tools. The Commissioners will encourage the participation of County citizens in their local government.

END TITLE 4

TITLE 5 - DESCRIPTION, LOCATION, AND HISTORY OF NIOBRARA COUNTY

Niobrara County is located in the center of the Counties making up Wyoming's eastern border. It is adjoined by Weston County to the north, Converse County to the west, Platte and Goshen Counties to the south and the states of South Dakota and Nebraska to the east. The County is a gateway to the Black Hills of South Dakota to the northeast, Yellowstone and Grand Teton National Parks to the northwest, Cheyenne Frontier Days and the Colorado Front Range to the south, and the rich farmlands and sandhill counties of Nebraska to the east. A map of the county's location is shown in Figure 1 below.

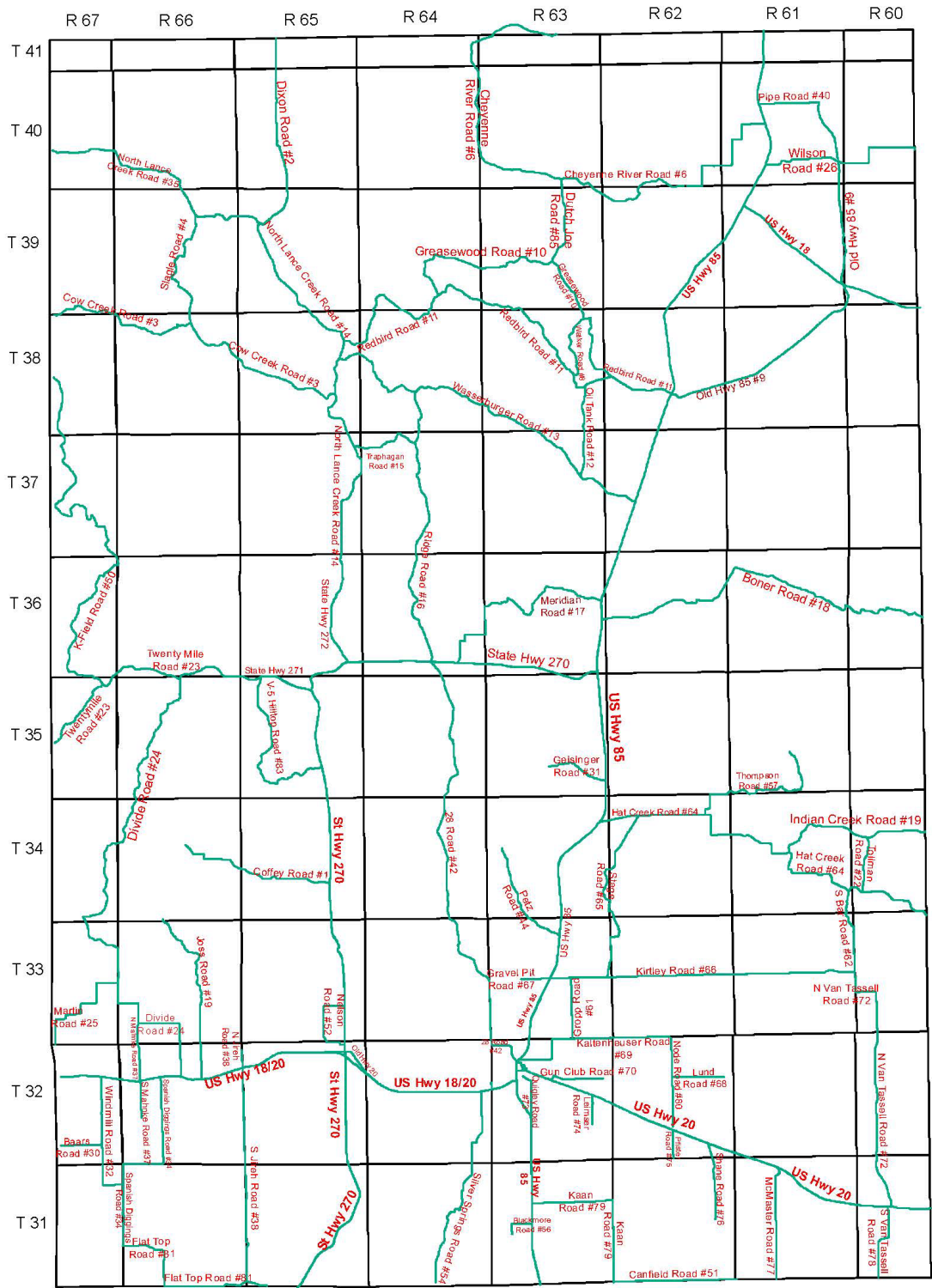
The town of Lusk is the county seat, with Manville and Van Tassell being the two other incorporated towns within the County. Lance Creek, Keeline, and Mule Creek Junction are unincorporated communities within Niobrara County.

The closest larger urban areas are Douglas and Casper to the west, Torrington to the south, and Chadron, Nebraska to the east.



Figure 1. Niobrara County Location Map

Major highways serving Niobrara County include U.S. Route 85 bisecting the County from north to south and U.S. Route 18 and 20 which bisect the County west to east, with U.S. Route 18 turning north and joining U.S. Route 85 at Lusk. See Figure 2 on Page 24.



To view the most current ownership information please visit: https://www.niobraracounty.org/_departments/_assessor/parcel_viewer.asp
This map is provided by Niobrara County, Wyoming and is for display purposes only. This is NOT survey quality.
Any user accepts this map as is, with all faults, and assumes all responsibility for use thereof. Independent verification of all information contained on this map should be obtained by the end user. The Niobrara County Assessor's Office makes no warranties as to the validity and assumes no liability associated with the use or misuse of this information.

Figure 2. Map of Niobrara County Highways and Municipalities (Source: Niobrara County)

Rail facilities serving the County are the Union Pacific, which follows the basic alignment of U.S. Route 20 as it crosses the southern third of the County in an east-west direction. There is a public airport at Lusk.

Most of the county is rolling prairie, although there is a ridge of pine and cedar-covered hills, known as the Hat Creek Breaks, that run east-west through the south-central portion of the county. The Hat Creek Breaks make a climatic division with land south of the breaks receiving 15-17 inches of precipitation annually, while north of the breaks the land is 1,000 feet lower in elevation and receives 10-14 inches of precipitation annually. Elevations in the county range from 6,100 feet in the Rawhide Buttes to 3,600 feet in the northeastern corner of the county. The elevation of Lusk is 5,015 feet. Most of the county ranges from 3,800 feet to 5,000 feet.

Chapter 1 - History of Niobrara County

Until the mid-1870's, northeastern Wyoming had been reserved as "Indian Territory". The Custer Expedition explored the Black Hills in 1874, and discovered gold on French Creek, South Dakota on July 30, 1874. With the news of the discovery, miners poured into the territory, opening the Black Hills to settlement.

In 1866, the first cattle drive was made from Texas to Montana. In subsequent years, many thousands of longhorns came up the Texas trail through this part of Wyoming, despite the constant hazards of Indian attack. After 1876, ranches were established along this trail and stock cattle were obtained from the trail herds. (See Figure 3 on Page 26)

Transportation facilities began to develop. The Cheyenne-Black Hills stage was established to link Black Hills gold fields with the Union Pacific Railroad at Cheyenne some 250 miles to the south. Freight outfits pulled by horses, mules and oxen operated along the same route.

In 1884, copper mining began at Rawhide Butte, and between 1884 and 1898, the Great Western Mining and Milling company operated a mill at Lusk. By 1885, over 20 men were employed at the Silver Cliff Mill. During the year of 1886, silver and mica ores were discovered a short distance from Lusk. Mining operations were started but never became very extensive.

As was the case elsewhere, the major development of northeastern Wyoming came with the railroads. In 1886, a branch of the Chicago Northwestern system, known as the Wyoming Central Railroad, was built across the southern portion of this area. Just prior to this, Frank Lusk, a local ranch manager, had set up a post office along the Niobrara (Running Water) River. He immediately entered into an agreement with the railroad land agents to establish several towns along the right-of-way, and Lusk was one of these. It is said to have had 200 inhabitants before lots could be surveyed. This railroad offered direct competition with the Union Pacific and made the time distance between northern Wyoming and states to the east much shorter. CNW improved the track in 1981 to transport coal from Campbell County. In 1995 a second track was completed. CNW sold to Union Pacific in 1995.

The coming of the railroad brought a flood of homesteaders which continued until the 1920's. Large sheep, cattle, and horse ranches which had been established in the 1880's were overrun by farmers. Dry-land farming of corn and wheat was attempted with limited success. A grain elevator was built at Lusk. The arid climate drove many homesteaders out and the livestock industry again dominated the County.

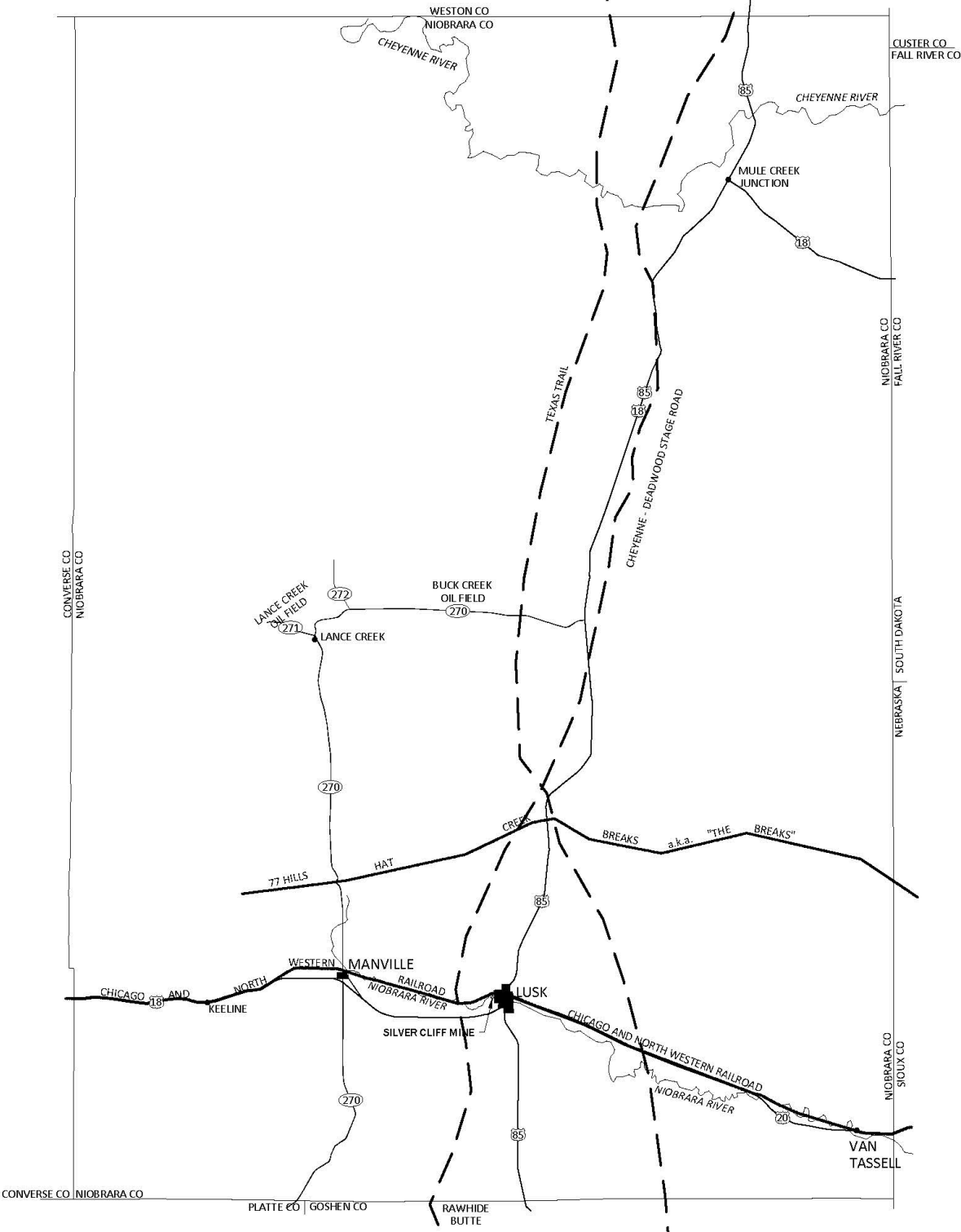


Figure 3. History of Niobrara County

Dry-land farming has been important in the County since the homesteading days. Irrigation from groundwater was developed in the late 1960's and early 1970's and irrigated farming has become an important economic factor in the area.

Niobrara County was formed on January 7, 1912 from part of Converse County.

Oil was discovered at Buck Creek Dome and at Lance Creek in 1917. Lance Creek became one of Wyoming's most prolific oil fields during its peak years between 1919 and 1928. The Lance Creek community flourished as a company oil camp, and Lusk and Manville prospered from the trade.

Chapter 2 - Demographics

According to the 2020 U.S. Census data, the total population of Niobrara County is 2,467, making it the least populated of the 23 counties in Wyoming. Approximately 1,662 people (or two-thirds of the population) in Niobrara County live within the towns of Lusk and Manville, with the remaining population living in rural areas throughout the County.

The people of Niobrara County have traditionally earned their livelihood from activities associated with agriculture and natural resources. The economy of the county, past and present, depends on the availability and utilization of natural resources. Directly or indirectly, most of the people employed in Niobrara County depend on oil and gas, mining in the form of rock and gravel quarries and related service industries, ranching/farming, recreation, and other activities related to the availability of natural resources. Other employers in the County include the public schools, the hospital, the Wyoming Women's Center, and local government agencies. Table 1 below shows the various industries which employed the County's residents in 2022.

Table 1. Industry for the Civilian Employed Population (2022 Census Bureau American Community Survey 5-year Estimates)

Industry for the Civilian Employed Population 16 Years and Over

Niobrara County, Wyoming

Agriculture, forestry, fishing and hunting, and mining	23.2%
Construction	4.2%
Manufacturing	0.0%
Wholesale trade	0.4%
Retail trade	2.4%
Transportation and warehousing, and utilities	8.1%
Information	3.1%
Finance and insurance, and real estate and rental and leasing	4.2%
Professional, scientific, and management, and administrative and waste management services	6.4%
Educational services, and health care and social assistance	26.2%
Arts, entertainment, and recreation, and accommodation and food services	9.9%
Other services, except public administration	4.6%
Public administration	7.5%

END TITLE 5

TITLE 6 - PHYSICAL CHARACTERISTICS

Chapter 1 - Land

The general land use patterns in Niobrara County can be characterized by a dominance of agricultural land uses, primarily open range in the northern two-thirds of the county and open range combined with dryland farming and center pivot irrigated farming in the southern third. Urban uses are generally confined to the incorporated communities of Lusk, Manville, and Van Tassell and the unincorporated communities of Lance Creek, Keeline, and Mule Creek Junction. The dominant urban place in the County is Lusk, the County seat. These towns are shown on the map in Figure 4 below.

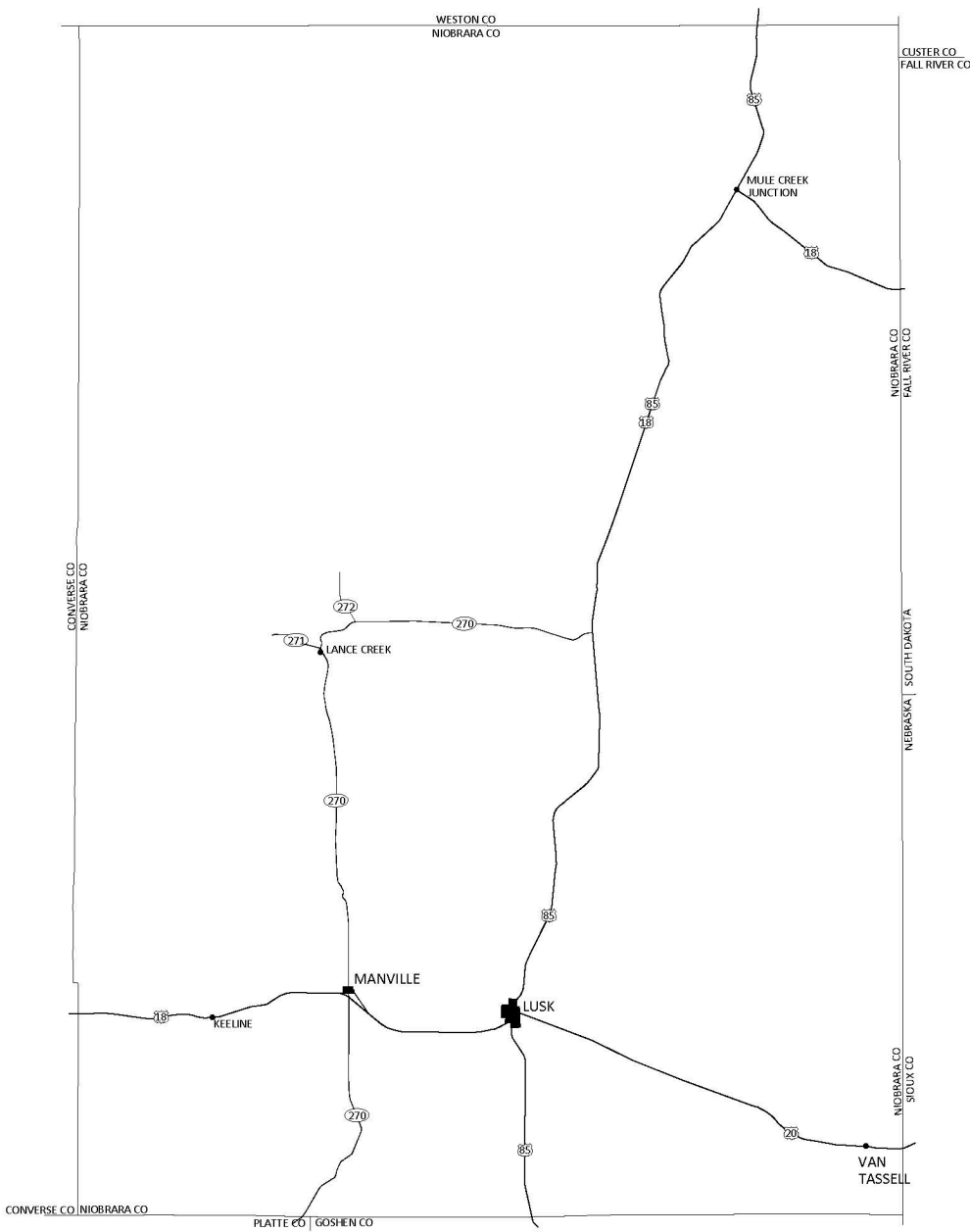


Figure 4. Towns in Niobrara County

The County covers approximately 2,614 square miles or 1,672,960 acres, and is the 16th largest county in Wyoming. Approximately 82% of the land is privately owned, 8% of the land is owned by the federal government, and 10% of the land is owned by the State. Most of the federal land is administered by the Newcastle BLM Field Office but a small portion is administered by the US Forrest Service as the Thunder Basin National Grassland.

The Wyoming Department of Revenue provides the County Assessor with certified values of state assessed companies for oil and gas production, railroad, industrial pipelines, and other specific industrial properties. For 2022, those values were \$115,337,186, and for 2023, they were \$125,770,697. The total assessed valuations for Niobrara County from 1994-2024 are shown in Table 2 below.

In 2022, there were 220 agricultural operations in Niobrara County operating on approximately 1.3 million acres of land, with an average farm size of 5,990 acres. Of this land, 95% is pastureland, 4% is cropland, and 1% is woodland (USDA, National Agricultural Statistics Service 2022 Census of Agriculture). A total of 10,295 acres of the agricultural lands are irrigated. The most abundant crop grown in the County is hay, followed by wheat for grain, and corn.

Niobrara County, like the rest of Wyoming, is protected by the “Wyoming Right to Farm and Ranch Act” which serves “To protect agriculture as a vital part of the economy of Wyoming, the rights of farmers and ranchers to engage in farm or ranch operations shall be forever guaranteed in this state.” (W. S. §11-44-104(a))

Table 2. County Assessor - Total Assessed Valuation 1994-2024⁴

County Assessor - Total Assessed Valuation	
2024	172,722,303
2023	164,615,078
2022	150,738,861
2021	121,014,228
2020	124,177,155
2019	122,331,572
2018	104,888,969
2017	98,134,879
2016	106,371,548
2015	141,797,152
2014	131,501,266
2013	115,966,708
2012	108,226,755
2011	89,953,319
2010	73,647,278
2009	91,986,318
2008	69,178,442
2007	66,141,159
2006	56,929,604
2005	46,107,966
2004	43,728,488
2003	39,529,867
2002	38,541,535
2001	39,842,927
2000	30,862,862
1999	27,701,695
1998	33,275,890
1997	34,312,052
1996	33,972,566
1995	29,659,701
1994	28,798,374

⁴ https://www.niobraracounty.org/departments/assessor/total_assessed_valuation.asp

Chapter 2 - Public Land

The Commissioners authorized the Niobrara Resources Association to develop a comprehensive land use plan per Resolution 95-07 signed on December 6, 1994 (Appendix B) and renewed with Resolution 96-01 (Appendix B). In 2021, the Commissioners and Niobrara Conservation District adopted Resolution No. 21-12 to approve the “Niobrara County Natural Resource Management Plan” (Appendix B).

6.2.010 Vision

To protect the open spaces of Niobrara County for all to enjoy.

6.2.020 Objective

The Commissioners will support the provisions of the Wyoming Statutes in their application to the autonomous federal control of public lands within Niobrara County.

6.2.030 Goal

Support the implementation of Wyoming Statute 36-12-101 et seq. A copy appears in Appendix C.

6.2.040 Policy

The multiple use concept is determined to be the primary consideration in planning for the public land use in Niobrara County. All planning processes employed in Niobrara County will allow equal footing and consideration for public land managers and private landowners. While providing recreational opportunities for residents and visitors, the public land management agencies will determine that their management practices on public lands will not adversely impact the private landowners within Niobrara County. Access points to public lands will be evaluated for minimizing adverse impacts on adjacent private and public lands, as well as properly and adequately serving the various public land users. There will be no net gain of acreage of public lands, be they state or federal, within the boundaries of Niobrara County, nor will there be a net taxable acreage loss. All public land decisions will consider economic impact and any adverse impacts on adjacent private and public lands within Niobrara County. The Commissioners will require all federal, state and local governments to consult, coordinate, and cooperate regarding any action, plans or regulations affecting public lands.

Chapter 3 - Private Land

6.3.010 Vision

To protect the private property rights of all property owners in Niobrara County.

6.3.020 Objective

The Commissioners will enact regulations and policies that are designed to protect private property rights and private property values of all landowners balanced with the general health, safety and welfare of the present and future residents of the County. Subdivision of land for commercial/industrial development should occur on the least productive lands as defined by the Wyoming Department of Revenue’s classification. In order to maintain the agricultural resources, the history, traditions and culture of Niobrara County must be considered.

6.3.030 Goal

The first objective of government is the protection of private property rights as provided in the United States Constitution and the Wyoming State Constitution.

6.3.040 Policy

The Commissioners will support the protection of private property rights as provided in the U.S. Constitution and the Wyoming State Constitution. The Commissioners will support the private landowners in Niobrara County against the taking of private land and will protect the residents from government regulation which unlawfully infringes on private property rights, and will enact policies, provisions, and regulations to limit and control local, state and federal government and/or international and global regulations to the extent of their authority. The Commission is opposed to the use of eminent domain or condemnation.

Chapter 4 - Private Land with Federal Mineral Ownership (commonly known as Split Estate)

The Commissioners require all local, state, federal, international, and/or global governments to consult, coordinate, and cooperate regarding any actions, plans, or regulations affecting private land with Federal Mineral Ownership (commonly known as Split Estate Minerals).

6.4.010 Vision

To protect the private property rights, including split estates, of the residents of Niobrara County.

6.4.020 Objective

The Commissioners will protect and preserve the right to private property, including split estates, in Niobrara County. Consideration of the history, traditions and culture of Niobrara County must be adhered to in order to maintain the agricultural resource.

6.4.030 Goal

The first objective of government is the protection of private property rights as provided in the United States Constitution and the Wyoming State Constitution.

6.4.040 Policy

The Commissioners will support the protection of private property rights including split estate as provided in the U.S. Constitution. The Commissioners will support the private landowner in Niobrara County against the taking of private land by regulatory action or in-action, will protect the residents from government regulation which infringes on private property rights, and will limit and control local, state, and federal government and/or international and global regulations.

Chapter 5 - Climate

The climate of Niobrara County is classified as semi-arid. Temperatures show a wide range between summer and winter and between daily maximums and minimums. The average annual temperature is 46°F, with a range of average daily temperatures from 24°F in January to 71°F in July. The average length of the growing season is 115 days, with the average date of the last freezing temperature on May 26, and

the first freezing temperature on September 18. The temperatures and the length of growing season vary over the County, generally with lower temperatures and a shorter growing season at the higher elevations.

Chapter 6 - Topography

Niobrara County is primarily a land of gently rolling plains, which slope to the east. Elevation varies from over 5,000 feet above sea level at the southwestern edge to 3,000 feet at the northern edge. The county is divided at the Hat Creek Breaks (“the Breaks”), which seem to form a line of demarcation between predominately livestock grazing in the northern portion of the County and livestock grazing with a significant amount of dry-land and irrigated farming to the south (see Figure 5 on Page 33).

Chapter 7 - Geology

Geological aspects present in Niobrara County are much more complex than is apparent from surface features. The Hartville Uplift extends from the Laramie Mountains beginning between Glendo and Wheatland and extending northeasterly to the Black Hills. Igneous rock outcrops along the east flank of the Hartville Uplift and significant mineralization occur. Iron is mined at Sunrise, south of Lusk, and copper, gold, silver, and other minerals have been found. Igneous rocks are covered with massive layers of limestone and other sediments on the west flank of the Hartville Uplift, and if mineralization occurs, its presence is not known. Lusk is located near the axis of the Hartville Uplift at a point where surface features are minimal. A sharp angle fault is also located along this axis.

The Powder River Basin is located on the west flank and the Denver-Julesburg Basin on the east flank of the Hartville Uplift. Both Basins are prolific oil and gas producing regions, but most production is from cretaceous deposits, which typically deplete rapidly.

Surface features are more pronounced south of Lusk. Rolling hills, granite knobs, and sharp, low canyons are present. Plains exist to the east, north, and west, except for some broken country to the north of Lusk, and a northeasterly ridge extending from the Hat Creek Breaks to the Black Hills.

Chapter 8 - Drainage

Drainage divides along the Hat Creek Breaks with the northern portion of the County draining into the Cheyenne River to the northeast and the southern portion of the County draining into the Niobrara River to the southeast. All other streams in the County are intermittent. The flows of the two rivers have historically been erratic, and records are marginal.

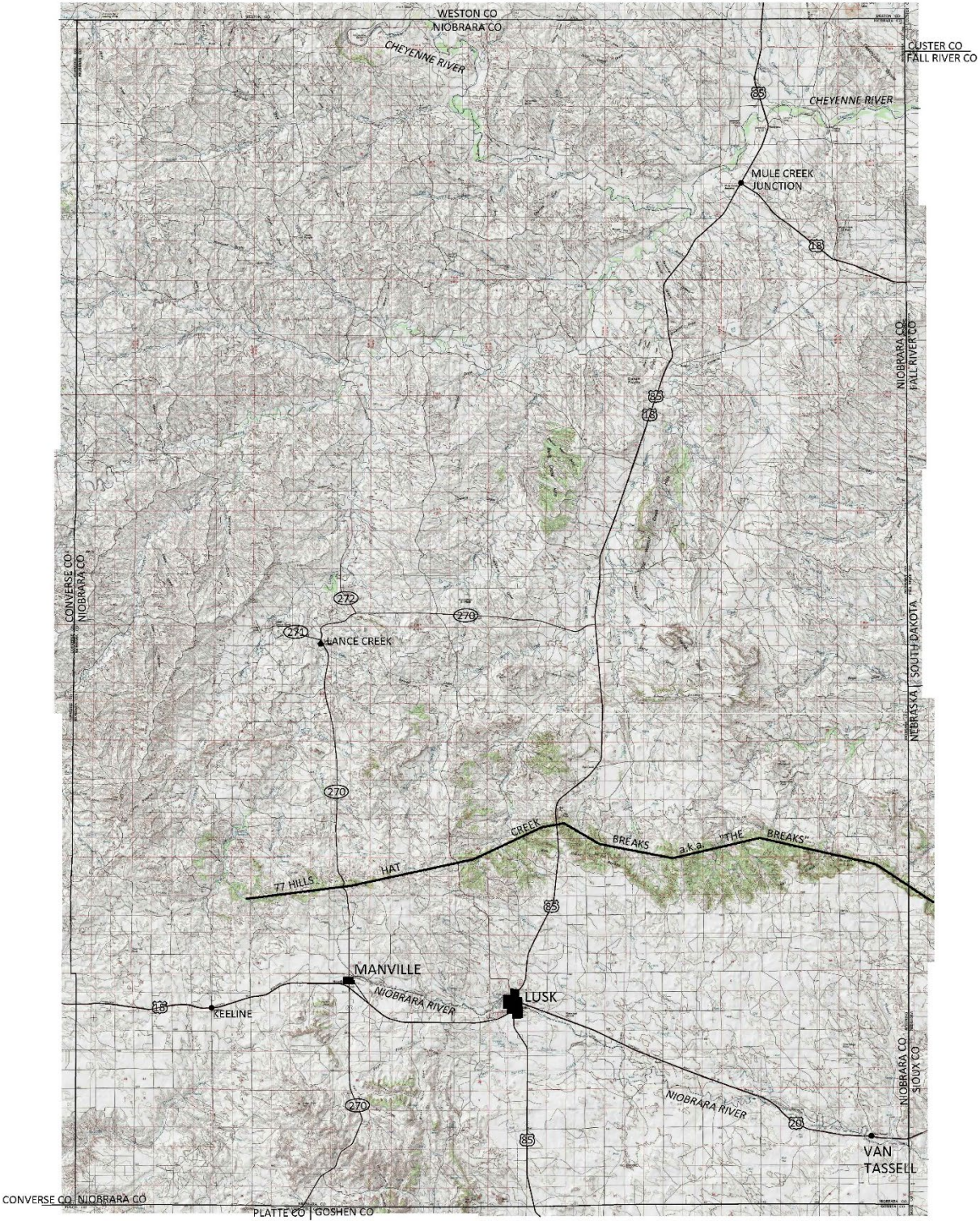


Figure 5. Topography of Niobrara County

Chapter 9 - Soil

The types of soil within Niobrara County are many and varied, but there are general geographical areas that possess similar characteristics due to origin and climate. The following description of these similar characteristics is given, using descriptive terms that are not the names of the recognized soil series, families, or groups.

The soils in the southern third of the County are referred to as the Central Plains Soils. There are two major divisions in this soil group: dark-colored topsoil and light topsoil.

Characteristics of these two divisions include the following:

1. Sandy textured soils
2. Distinctive horizons in the form of color, texture and structural features in maturely developed soils
3. High organic matter content

The major use of these soils is in range land, although some areas are very suitable to dry-land farming. Some of the land is suitable for irrigation where there is available groundwater.

The soils in the northern two-thirds of the County are referred to as the Northern Plains Soils. There are two major divisions in this soil group: dark-colored soils and light-colored soils.

The dark-colored soils have a sandy texture and the horizons are very distinct in areas where the soil is maturely developed. Organic matter content is high, but moisture content is irregular, making dry-land farming on these soils somewhat unpredictable. There are, however, some areas where this type of soil has supported fairly successful operations.

The light-colored soils have a texture that ranges from loams to clays, and very little sand. The structural development is very strong and the subsoil exhibits prominent horizons in areas where the soil is maturely developed. Despite the light color, the organic content is relatively high in these soils. As with the dark-colored soils, there are soil moisture limitations, making dryland farming a risky undertaking. The soil does support a good cover of mid-grasses and short grasses, and there are areas where crop land has been converted to grasses.

The soils in Niobrara County have low moisture content in most years, and limited organic matter, which lend them to drought conditions and poor soil regeneration.

END TITLE 6

TITLE 7 - WATER

Chapter 1 - Precipitation

Precipitation measured at Lusk averages 15 inches per year and ranges from less than 10 inches to the north to more than 16 inches to the south, 12.6 inches in the northwest and 14.1 inches at Redbird. Seventy-five percent falls between April and September. Snowfall varies from 30 to 65 inches.

Chapter 2 - Groundwater and Surface Water

In the absence of adequate surface water, groundwater is of critical importance. Most of the groundwater available to wells in Niobrara County is in bedrock formations, which are to be differentiated from shallow unconsolidated aquifers found in flood plain alluvium. Bedrock stores greater amounts of water than does unconsolidated material, but the unconsolidated material usually yields water at a greater rate and accepts recharge faster.

Groundwater is used for domestic, stock, industrial, irrigation and other purposes. Domestic and stock wells are normally low yield, intermittent producers north of the Hat Creek Breaks while groundwater is generally found at depths above 1,000 feet, particularly south of the Breaks. However, in the northern corner of the County, water is difficult to find and some wells reach depths of up to 3,000 feet. The Groundwater Depth Observation Wells Map in Appendix C shows the location of observation wells and other pertinent data.

7.2.010 Vision

To allow growth and industry while conserving the limited groundwater and surface water available in Niobrara County.

7.2.020 Objective

Niobrara County will utilize best management practices and innovative conservation technologies.

7.2.030 Goal

The Commissioners will support the private property owners use of the water in a responsible manner and encourage beneficial use of water as defined by the Wyoming State Engineer's Office. They will ensure that the impacts of future development on water resources are considered in the planning process. Efforts and activities that utilize/develop the County's water supplies and energy resources in an efficient manner and in accordance with Wyoming State Law will be supported.

7.2.040 Policy

The Commissioners support the present state laws and regulatory system administering the use and ownership of all water within the State of Wyoming and acknowledge all applicable Wyoming state statutes. Niobrara County recognizes that the protection and development of its water resources are essential to its short-term and long-term economic and cultural viability. The protection and preservation of existing water rights and water uses within Niobrara County is of primary importance to the County and State economic and cultural well-being. Therefore, transfer or abandonment in water use will be carefully considered in relationship to the history, tradition and culture of Niobrara County.

Any federally proposed designation of Wild and Scenic Rivers and all local, state and federal and international and/or global 2025 Niobrara County Land Use Plan 42 policies regarding riparian and wetland management in Niobrara County shall be coordinated with the local Niobrara Conservation District and will comply with all adopted water use plans. State, federal, international and/or global agencies managing waterways and wetlands will consult, coordinate, and cooperate their management activities and plans with the Commissioners and the Niobrara Conservation District. The Commissioners will be notified of all state, interstate, and federal actions that have any impact on the water of Niobrara County, prior to such actions or planning processes being initiated. In addition, any proposed actions and listing processes, including federally proposed Wild and Scenic River designation will be consulted, coordinated, and cooperated with the Commissioners. Any new action, development or subdivision of land in Niobrara County will be evaluated for the effects on water availability, consumption, disposal, and sustainability.

Chapter 3 - Wastewater

7.3.010 Vision

To ensure all wastewater is disposed of properly so as to not pollute or degrade soil and water resources.

7.3.020 Objective

Niobrara County will utilize best management practices and innovative conservation technologies.

7.3.030 Goal

Protect groundwater and surface water.

7.3.040 Policy

The Commissioners support state laws. All permitting and planning will follow Wyoming DEQ rules and regulations.

Maintain County control of wastewater planning. All governmental agencies will consult, coordinate, and cooperate with the Commissioners concerning wastewater.

END TITLE 7

TITLE 8 - NATURAL RESOURCES

Chapter 1 - Timber

There are 28,000 plus acres of forested range which constitutes the County’s timber resources. Most of these lands are owned by private individuals and are scattered throughout the County. None of the timber is considered of significant commercial value and there are no commercial sawmills in the County. The major forest type in the County is ponderosa pine.

Chapter 2 - Minerals

The Geological Survey of Wyoming lists the following mineral occurrences in Niobrara County:

Bentonite	Limestone	Beryl	Oil & Gas
Coal	Selenium	Copper	Stone – Granite
Helium	Uranium	Iron - Hematite	

Figure 6 on Page 38 shows the Coal Map of Niobrara County, and Figure 7 on Page 39 shows other industrial minerals.

Of these, oil and gas have been the most important. Figure 8 on Page 40 shows the oil and gas pipelines in Niobrara County as of February 2024. Figure 9 on Page 41 shows the oil and gas wells and fields in Niobrara County.

Others considered to have commercial potential include:

(i) Limestone

There are limestone deposits in Niobrara County that may hold commercial potential as railroad ballast, as good quality aggregate for cement, or as a resource to be used in controlling Sulphur Dioxide emission from power plants.

(ii) Metals

The old Silver Cliff Mine, one-half mile west of Lusk (Figure 10 on Page 41), is located in a highly mineralized area. The mine was opened about 1880, and worked for silver and copper on a small scale. Between 1918 and 1922, six carloads containing about three percent U_3O_8 were shipped to the Radium Company of Denver, Colorado. The mine was located along a high angle reverse fault zone. This zone needs further exploration for all types of metal. As some relatively rich uranium bearing ores have been found in the area, potential for uranium mining may exist.

(iii) Rare Earth Minerals

At this time, there are no known rare earth mineral deposits in Niobrara County. If rare earth minerals are identified, the Planning Commission and Commissioners will adopt land use regulations and permitting processes as necessary.

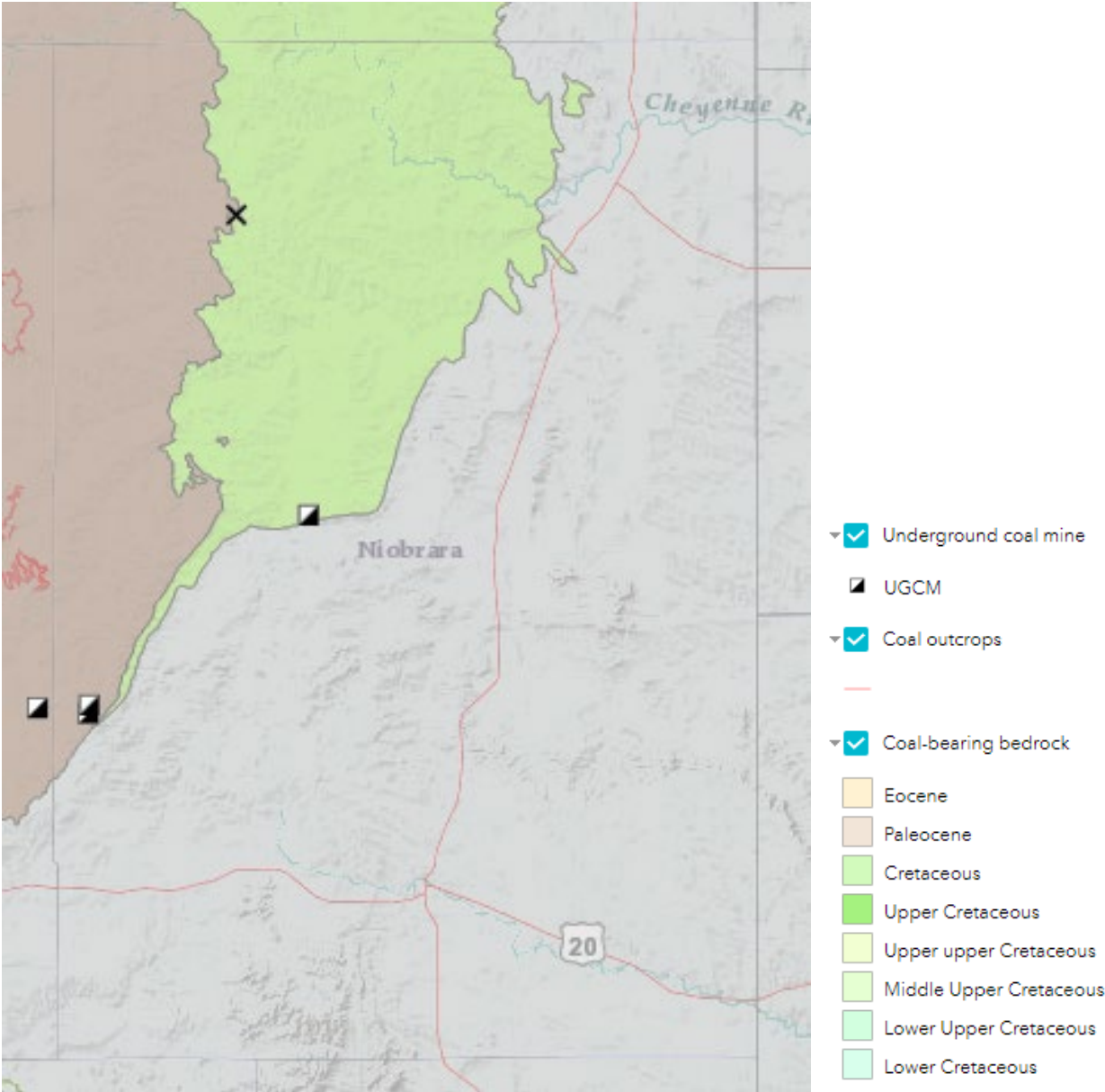


Figure 6. Niobrara County Coal Map (Source: Wyoming State Geological Survey, February 20, 2024)

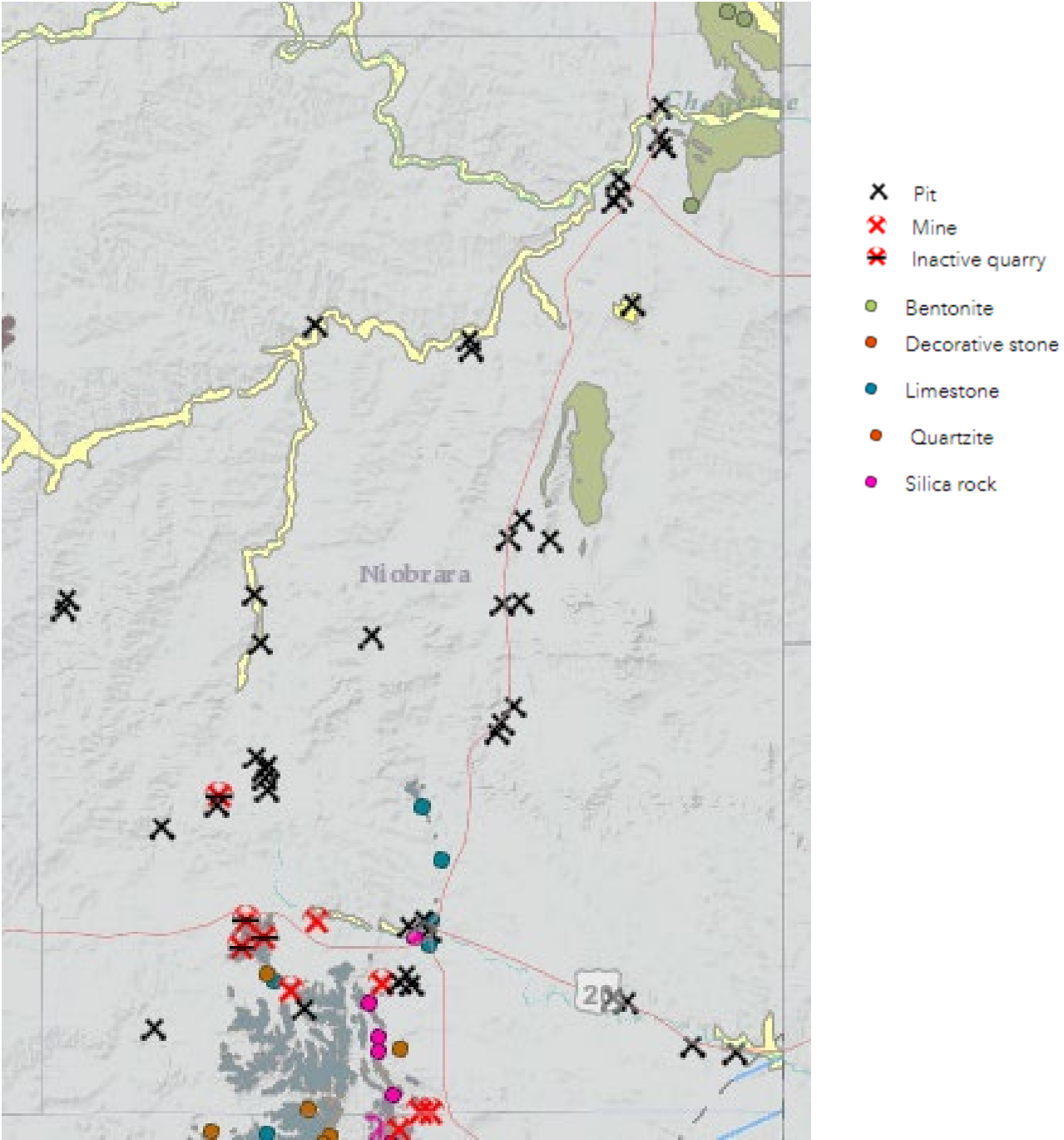


Figure 7. Map of Industrial Minerals (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)

In the Lance Creek area, there have been occurrences of uranium and other metals, but not commercial discoveries to date.

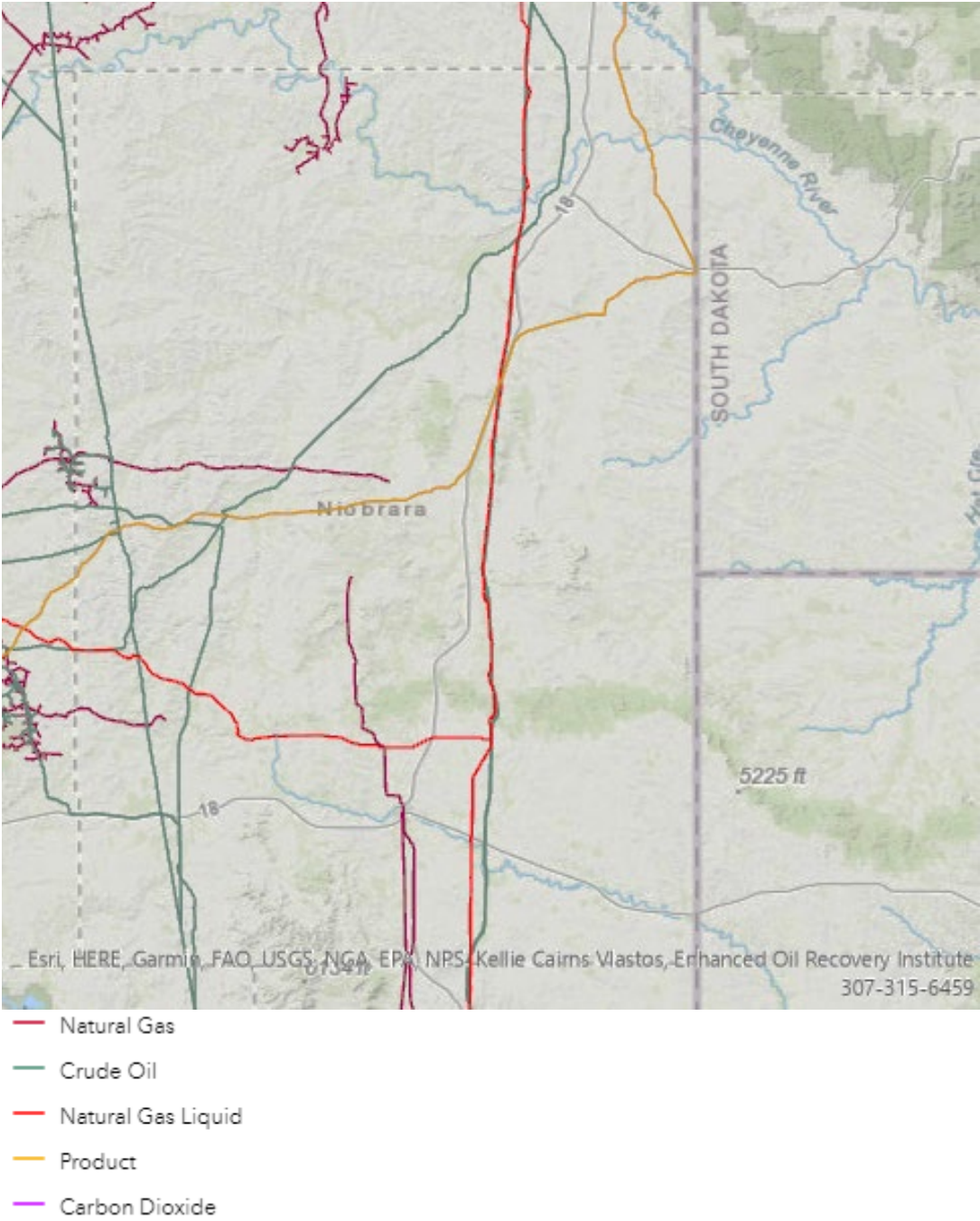


Figure 8. Oil and Gas Pipelines in Niobrara County (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)

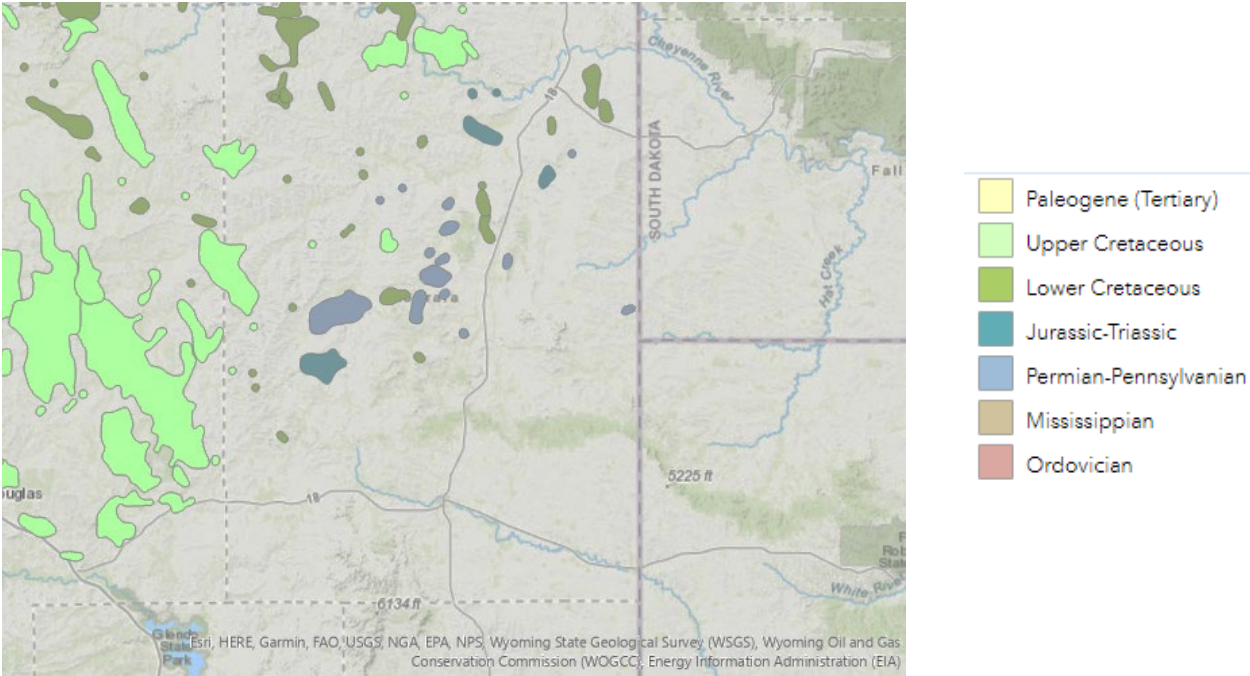


Figure 9. Oil and Gas Fields and Wells (Source: Wyoming State Geological Survey, February 20, 2024, <https://main.wsgs.wyo.gov/>)

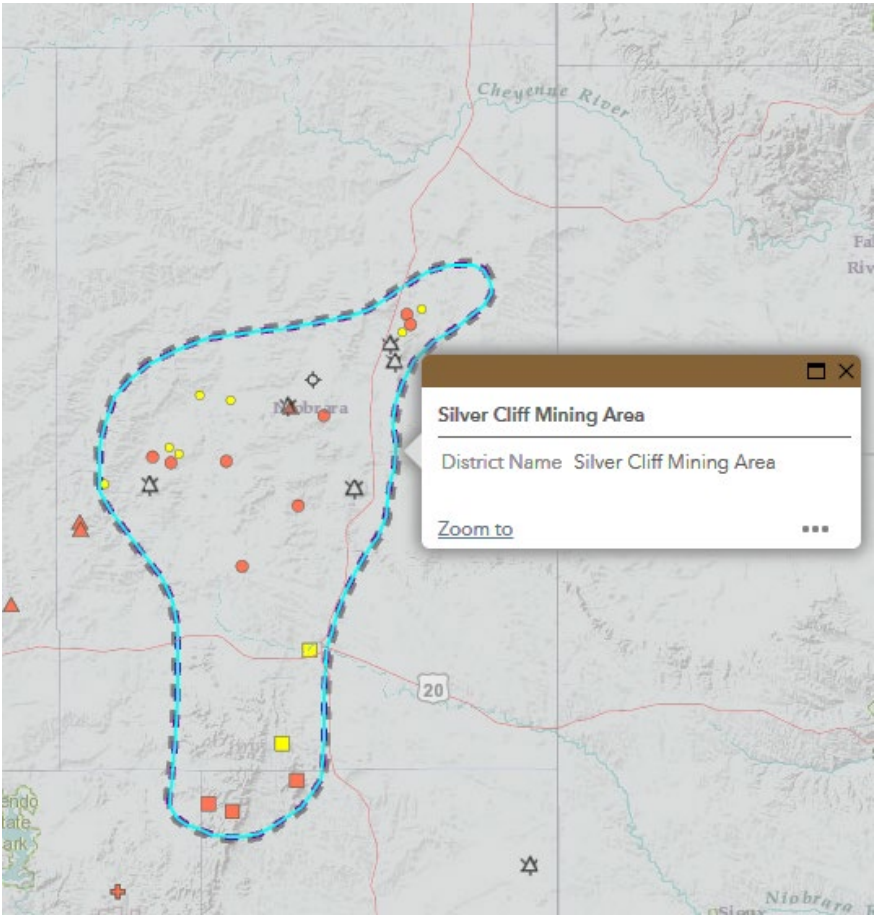


Figure 10. Silver Cliff Mining Area (Source: Wyoming State Geological Survey, February 20, 2024)

Chapter 3 - Plan Implementation

“No zoning resolution or plan shall prevent any use or occupancy reasonably necessary to the extraction or production of the mineral resources in or under any lands subject thereto.” (W.S. 18-5-201)

8.3.010 Vision

To support the responsible development of the natural resources of the county.

8.3.020 Objective

Involve Niobrara County Residents and the Niobrara Conservation District in the management of the natural resources in Niobrara County.

8.3.030 Goal

Involve the local and state government in the planning and management of the natural resources within Niobrara County. Freedom for continued historical use and production development of the renewable and non-renewable resources in Niobrara County.

8.3.040 Policy

The Commissioners shall encourage local, state, federal, international and/or global governmental agencies to manage the natural resources in Niobrara County for optimal sustained use.

The Niobrara Conservation District and other applicable city, County, state, federal, international and/or global government/agencies/commissions/committees in all land use planning actions that effect the natural resources in Niobrara County will consult, coordinate, and cooperate with the Commissioners. The Commissioners shall support management of renewable and non-renewable natural resources to provide for the economic well-being, the local custom, culture, and changing physical characteristics of Niobrara County and the State of Wyoming, as well as to reduce the United States’ dependence on foreign renewable and non-renewable natural resources.

END TITLE 8

TITLE 9 - NATURAL HAZARDS

Chapter 1 - National Flood Insurance Program

Niobrara County does not participate in the National Flood Insurance Program (NFIP), although the Town of Lusk does. The most current mapping became effective March 18, 1986. Participation in NFIP is not required, but it does allow for residents to purchase Federal Flood Insurance and for mapped areas to receive federal flood disaster assistance.

Chapter 2 - Plan Implementation

9.2.010 Vision

To identify natural hazards and limit development in hazardous areas as necessary.

9.2.020 Objective

Development in known hazardous areas will be discouraged or appropriately mitigated. Types of areas to be avoided include, but are not limited to, the following:

1. Subsidence areas;
2. Flood plains;
3. Areas with severe or unstable slopes; and
4. Seismic areas.

9.2.030 Goal

To minimize the loss of life and property from natural hazards. Although Niobrara County does not have major known natural hazards in the unincorporated areas, the following policies have been included with the thought that a continuing inventory might, in the future, identify some. Natural hazards include areas of subsidence, flood plains, areas of steep slopes, areas which slide and slope and areas with unstable soil types.

9.2.040 Policies

Niobrara County has the following policies regarding natural hazards:

1. Niobrara County will continue to identify its natural hazards and use the information in its land use planning process and in the evaluation of development proposals.
2. Niobrara County will inform other governmental agencies of any natural hazards identified, and will cooperate with the other agencies in the identification process.
3. Niobrara County will discourage development in areas of natural hazards, or will request that methods which lessen or eliminate the hazard be included with the proposal.

END TITLE 9

TITLE 10 - ENVIRONMENTAL QUALITY

Niobrara County is fortunate to have very good air, water and land quality. Its low population density, and the relative absence of heavy industrial development are significant contributing factors to this.

Chapter 1 - Plan Implementation

10.1.010 Vision

To maintain and protect the County's high quality of air, water, plant and wildlife resources through the adequate and appropriate protection of the natural environment. Rangeland is the dominant landscape and contributes significantly to the quality of life.

10.1.020 Objective

Consider the inter-relationships of soils and water for the production of crops and forage, grazing, wildlife, livestock, timber, recreation and human consumption (renewable resources) in regard to the overall sustained development of Niobrara County. Maintain the tax base, custom and culture, and human and physical environment of Niobrara County through the use of the renewable and non-renewable resources. These non-renewable resources include: petroleum, natural gas, coal, construction materials, industrial minerals, elements, fossils, semi-precious metal and stone. Support the preservation of agriculture and related industries.

10.1.030 Goal

Allow the orderly and planned development, use, reuse, and conservation of Niobrara County's renewable and non-renewable resources, and consider the quality of human life in light of sustained use and/or depletion of said resources.

10.1.040 Policy

All land use decision making or planning processes by local, state, federal, and/or international or global governmental agencies will consult, coordinate, and cooperate with the Commissioners in the preparation, use, and continual updating of accurate and sound resource inventories.

All development will follow Wyoming Statutes and applicable DEQ rules and regulations.

END TITLE 10

TITLE 11 - SOLID AND HAZARDOUS WASTE

Chapter 1 - Plan Implementation

11.1.010 Vision

To safely and economically dispose of solid and hazardous waste.

11.1.020 Objective

The Commissioners will take the recommendations from a Solid Waste Task Force or DEQ under advisement.

11.1.030 Goal

The Commissioners will research viable alternatives for solid and hazardous waste disposal.

11.1.040 Policy

The Commissioners will retain permitting authority over any rural waste disposal. The permits will comply with the custom, culture, and economic stability of Niobrara County. All governmental agencies will consult, coordinate, and cooperate with the Commissioners.

END TITLE 11

TITLE 12 - ECONOMIC ANALYSIS

Chapter 1 - Employment Trends

The number of jobs has increased very slightly over the past 20 years. Although jobs decreased over the past 10 years as shown in Figure 11 on Page 47, employment in Niobrara County rose an average of 3 percent from 2001 to 2022⁵.

For the past 20 years, farming and government have been the primary employment sectors in Niobrara County. In 1965, employment in agriculture accounted for 34.1 percent – 590 – of the total jobs in Niobrara County. By 1975, employment in agriculture had declined to 430 jobs and represented 31.9 percent of all employment in the County. Similarly, as of 1975, employment in government accounted for 210 jobs, or 15.6 percent of the employment base of the county. Employment in agriculture in 2022 was 280 (16.7 percent), down from 327 (20.2 percent) in 2001. Employment in government in 2022 was 431 (25.7 percent), up from 334 (20.6 percent) in 2001.

The other leading employment sector in Niobrara County historically has been trade. As of 1975 employment in trade amounted to 230 jobs, or 17 percent of the total County employment. 2022 employment in trade accounted for 202 jobs. Another notable contribution to employment is accommodations and food services which were approximately 112 in 2022, down from 137 in 2001.

As with many parts of the country, Niobrara County is struggling to find the workforce necessary to operate the businesses they have and to bring in new business opportunities.

Labor force participation (the percent of total population employed) in Niobrara County in 1970 was 51.7%, compared to the national average of 43%. The 2022 employment rate in Niobrara County was 52.9%⁶, compared to the national average or 63.8%. The Wyoming average in 2022 was 62.5%.

⁵ U.S. Department of Commerce: http://eading.state.wy.us/wef/P_Niobrara_WY.pdf

⁶ US Census Bureau: 2022 American Community Survey 5-Year Estimates

Socioeconomic Trends

Niobrara County, WY

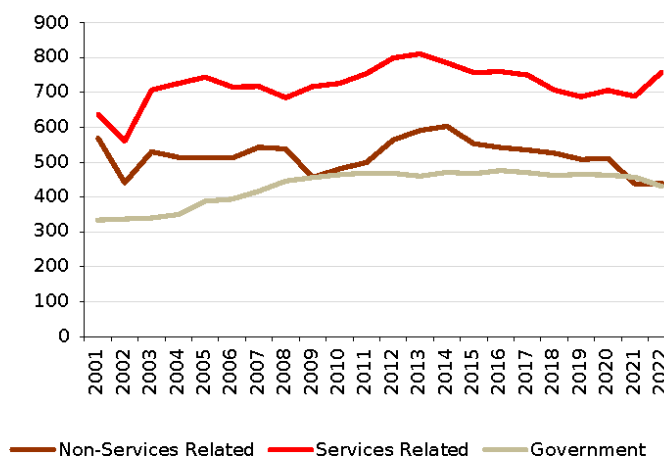
Employment by Industry (since 2000)

	2001	2010	2022	Change 2010-2022
Total Employment (number of jobs)	1,622	1,709	1,676	-33
Non-services related	570	481	439	-42
Farm	327	262	280	18
Forestry, fishing, & ag. services	na	na	na	na
Mining (including fossil fuels)	106	99	84	-15
Construction	95	86	75	-11
Manufacturing	42	34	na	na
Services related	638	726	758	32
Utilities	na	na	na	na
Wholesale trade	32	30	25	-5
Retail trade	170	147	131	-16
Transportation and warehousing	na	91	85	-6
Information	13	8	6	-2
Finance and insurance	37	49	97	48
Real estate and rental and leasing	48	54	82	28
Professional and technical services	50	53	58	5
Management of companies	0	0	0	0
Administrative and waste services	25	22	26	4
Educational services	7	11	12	1
Health care and social assistance	49	72	61	-11
Arts, entertainment, and recreation	8	6	10	4
Accommodation and food services	137	118	112	-6
Other services, except public admin.	62	65	53	-12
Government	334	464	431	-33

All employment data are reported by *place of work*. Estimates for data that were not disclosed are indicated with tildes (~).

Employment by Major Industry Category, Niobrara County, WY

- From 2001 to 2022, jobs in non-services related industries shrank from 570 to 439, a 23% decrease.
- From 2001 to 2022, jobs in services related industries grew from 638 to 758, a 19% increase.
- From 2001 to 2022, jobs in government grew from 334 to 431, a 29% increase.



Data Sources: U.S. Department of Commerce, 2023. Bureau of Economic Analysis, Regional Economic Accounts, Washington, D.C., reported by Headwaters Economics' Economic Profile System, headwaterseconomics.org/eps.

Find more reports like this at: headwaterseconomics.org/eps

Data and Graphics | Part 16

Figure 11. Niobrara County Employment by Industry (2001-2022)

Figure 12 below shows the median earnings by industry, categorized by males and females in 2022⁷.

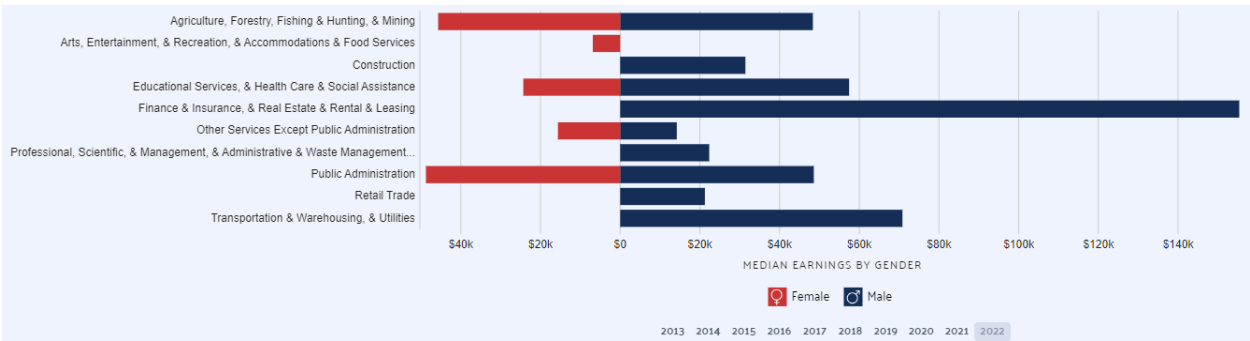


Figure 12. 2022 Median Earnings by Industry

Chapter 2 - Population Trends

Niobrara County had their highest recorded population in 1920 of 6,321, and it declined significantly with every census until 1970, when the decrease slowed. Between 1990 and 2020, the county’s population held steady between 2,400 and 2,500 people, as shown in Table 3 on Page 49. The residents of Niobrara County enjoy their low population and the benefits, such as low crime, that come with it. Many residents live in Niobrara County because they were born here or they find it desirable for rural/small-town living. Residents who had concerns about moving to Niobrara County said it was due to lack of amenities and lack of housing. There is a concern for the lack of young people moving into the area because they are the population who fill job vacancies and the schools.

⁷ DataUSA: Niobrara County, WY
(<https://datausa.io/profile/geo/niobrara-county-wy?propertyTaxesValue=propertyValue>)

Table 3. Historical Census Population for Wyoming Counties (1870-2020)

HISTORICAL DECENNIAL CENSUS POPULATION FOR WYOMING COUNTIES, CITIES, AND TOWNS

Source: U.S. Bureau of the Census

Decennial Population of Wyoming and Counties

Area	2020	2010	2000	1990	1980	1970	1960	1950	1940	1930	1920	1910	1900	1890	1880	1870
Wyoming(1)	576,851	563,626	493,782	453,588	469,557	332,416	330,066	290,529	250,742	225,565	194,402	145,965	92,531	62,555	20,789	9,118
Albany	37,066	36,299	32,014	30,797	29,062	26,431	21,290	19,055	13,946	12,041	9,283	11,574	13,084	8,865	4,626	2,021
Big Horn	11,521	11,668	11,461	10,525	11,896	10,202	11,898	13,176	12,911	11,222	12,105	8,886	4,328			
Campbell	47,026	46,133	33,698	29,370	24,367	12,957	5,861	4,839	6,048	6,720	5,233					
Carbon	14,537	15,885	15,639	16,659	21,896	13,354	14,937	15,742	12,644	11,391	9,525	11,282	9,589	6,857	3,438	1,368
Converse	13,751	13,833	12,052	11,128	14,069	5,938	6,366	5,933	6,631	7,145	7,871	6,294	3,337	2,738		
Crook	7,181	7,083	5,887	5,294	5,308	4,535	4,691	4,738	5,463	5,333	5,524	6,492	3,137	2,338	239	
Fremont	39,234	40,123	35,804	33,662	38,992	28,352	26,168	19,580	16,095	10,490	11,820	11,822	5,357	2,463		
Goshen	12,498	13,249	12,538	12,373	12,040	10,885	11,941	12,634	12,207	11,754	8,064					
Hot Springs	4,621	4,812	4,882	4,809	5,710	4,952	6,365	5,250	4,607	5,476	5,164					
Johnson	8,447	8,569	7,075	6,145	6,700	5,587	5,475	4,707	4,980	4,816	4,617	3,453	2,361	2,357	637	
Laramie	100,512	91,738	81,607	73,142	68,649	56,360	60,149	47,662	33,651	26,845	20,699	26,127	20,181	16,777	6,409	2,957
Lincoln	19,581	18,106	14,573	12,625	12,177	8,640	9,018	9,023	10,286	10,894	12,487					
Natrona	79,955	75,450	66,533	61,226	71,856	51,264	49,623	31,437	23,858	24,272	14,635	4,766	1,785	1,094		
Niobrara	2,457	2,484	2,407	2,499	2,924	2,924	3,750	4,701	5,988	4,723	6,321					
Park	29,624	28,205	25,786	23,178	21,639	17,752	16,874	15,182	10,976	8,207	7,298	4,909				
Platte	8,605	8,667	8,807	8,145	11,975	6,486	7,195	7,925	8,013	9,695	7,421					
Sheridan	30,921	29,116	26,560	23,562	25,048	17,852	18,989	20,185	19,255	16,875	18,182	16,324	5,122	1,972		
Sublette	8,728	10,247	5,920	4,843	4,548	3,755	3,778	2,481	2,778	1,944						
Sweetwater	42,272	43,806	37,613	38,823	41,723	18,391	17,920	22,017	19,407	18,165	13,640	11,575	8,455	4,941	2,561	1,916
Teton	23,331	21,294	18,251	11,172	9,355	4,823	3,062	2,593	2,543	2,003						
Uinta	20,450	21,118	19,742	18,705	13,021	7,100	7,484	7,331	7,223	6,572	6,611	16,982	12,223	7,414	2,879	856
Washakie	7,685	8,533	8,289	8,388	9,496	7,569	8,883	7,252	5,858	4,109	3,106					
Weston	6,838	7,208	6,644	6,518	7,106	6,307	7,929	6,733	4,958	4,673	4,631	4,960	3,203	2,422		
Yellowstone	-2	-2	-2	-2	-2	-2	420	353	416	200	165	519	369	467		

(1) 1890 total includes 1,850 Indians specially enumerated

Chapter 3 - Household Trends

The fluctuation in total number of households in Niobrara County from 2000 to 2020 mirror the fluctuation in population. In 2000, there were 1,011 households, in 2010 there were 1,069, and in 2020 there were 1,024.⁸

There has been a decline in the average household size in Niobrara County from 2.8 persons per household in 1960, to 2.72 in 1970, which was significantly below the Wyoming average in 1970 of 3.07 persons per household. In 2022, the average family size in Niobrara County was 2.73, compared to 2.91 for Wyoming.⁹

In 2022, the median household income in Niobrara County was \$54,375, compared to \$70,042 for Wyoming.¹⁰ This was up from \$48,688 the previous year. See Figure 13 below for household income data.

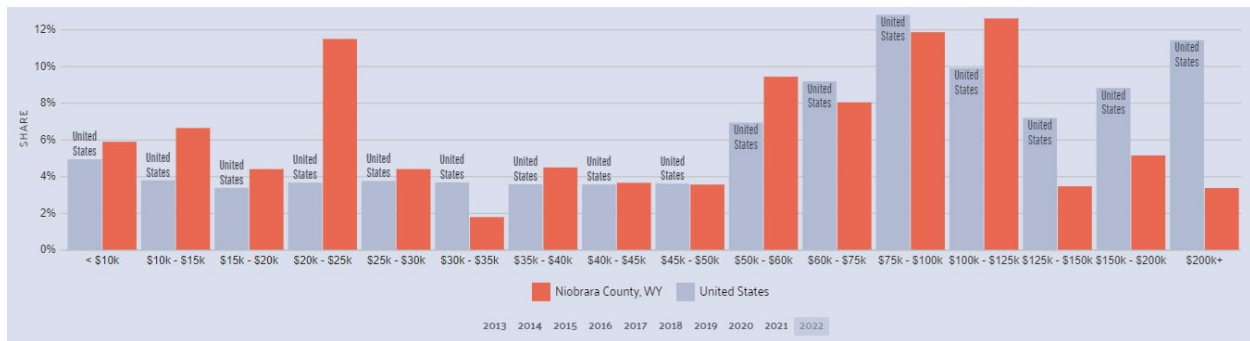


Figure 13. 2022 Household Income

Chapter 4 - Properties and Housing

One of the attractions to Niobrara County, and Wyoming in general, is the cost of taxes. The median property value in 2022 was \$195,600, with median property taxes of \$755¹¹. Figure 14 on Page 51 shows the distribution of property values in Niobrara County compared with the United States. Approximately 70% of the housing units in Niobrara County were occupied by their owner in 2022, down from 74% in 2021. The residents of Niobrara County believe strongly that there is a shortage of rentals and single-family homes in the County.

⁸ US Census Bureau Demographic Profiles by County and Place

⁹ US Census Bureau: 2022 American Community Survey 5-Year Estimates

¹⁰ US Census Bureau: 2022 American Community Survey 5-Year Estimates

¹¹ DataUSA: Niobrara County, WY

(<https://datausa.io/profile/geo/niobrara-county-wy?propertyTaxesValue=propertyValue>)



TITLE 13 - RECREATION

Chapter 1 - Facilities

Recreational facilities should be located and designed in a manner that provides for the active and passive recreation needs of citizens. County-identified public recreation areas and lands with unique natural features may be preserved through easements or other common open space preservation strategies.

Chapter 2 - Plan Implementation

13.2.010 Vision

The County will utilize land use planning processes to identify the potential location of desired recreational facilities.

13.2.020 Objective

The Commissioners will support private recreational enterprise and developments, as well as youth activities.

13.2.030 Goal

Acknowledge that recreation is an integral part of multiple use on the lands managed by federal, state, and local government agencies within Niobrara County. Such agencies will consult, coordinate, and cooperate with the Commissioners prior to development.

When possible, development proposals will be sensitive to County outdoor recreation and open space preservation objectives.

13.2.040 Policy

The Commissioners will support recreation as a multiple-use integral to lands managed by federal, state and local governmental agencies. The cultural, economic and historical uses of these lands and all adjoining lands will be preserved and recreation on public lands will not adversely impact adjacent private lands.

END TITLE 13

TITLE 14 - HISTORIC PRESERVATION

Chapter 1 - Plan Implementation

14.1.010 Vision

To preserve the history of Niobrara County.

14.1.020 Objective

The Commissioners will uphold private property rights and protect the custom and culture.

14.1.030 Goal

Retain those historic resources which preserve Niobrara County custom and culture without inhibiting continued economic growth.

14.1.040 Policy

The Commissioners will adopt regulatory standards which supports the custom and culture and which is balanced with sustained economic growth. Niobrara County will be allowed to retain its cultural and historical identity.

The County will follow regulations of the Wyoming State Historic Preservation Office regarding sites that are on the National Register of Historic Places.

END TITLE 14

TITLE 15 - ARTS AND HUMANITIES

Chapter 1 - Plan Implementation

15.1.010 Vision

To promote the arts and humanities in Niobrara County.

15.1.020 Objective

Encourage public and private funding for the arts and humanities in Niobrara County.

15.1.030 Goal

The Commissioners recognize the arts and humanities are part of life in Niobrara County, and will support arts and humanities in Niobrara County.

15.1.040 Policy

Public and private funding for the arts and humanities in Niobrara County will be encouraged and supported.

END TITLE 15

TITLE 16 - EDUCATION

Niobrara County's education system consists of Lusk Elementary/Middle School, Niobrara County High School, and Wyoming Virtual Academy within the town of Lusk. Niobrara County also has one small rural school, Lance Creek Elementary located in Lance Creek.

Chapter 1 - Plan Implementation

16.1.010 Vision

To promote young families moving into Niobrara County School District No. 1 so the schools have the population necessary to attract quality teachers and administrators, and maintain the extra-curricular activities of the schools.

16.1.020 Objective

Retain, sustain, and maintain the existing local and rural school(s) within Niobrara County.

16.1.030 Goal

The Commissioners will support School District #1 in providing a quality education for K-12 and preserve the rural school(s).

16.1.040 Policy

Retain, sustain, and maintain the existing local and rural school(s) within Niobrara County. The Commissioners and Niobrara County School District No. 1 will support, retain and protect the custom, culture, and historical necessity of rural schools.

END TITLE 16

TITLE 17 - GRAZING

The policy hereby set forth for the achievement of the Goal and Objectives of this component item shall be consistent with the protection of Niobrara County historic custom, culture, economic viability and social stability.

Chapter 1 - Plan Implementation

17.1.010 Vision

To protect the grazing lands available in Niobrara County.

17.1.020 Objectives

1. Provide for statutory requirements for cooperation, consultation, and coordination between Federal Land Use Plans and actions, and the Niobrara County Land Use Plan for federal and state lands.
2. Assure that both state and federal statutes are followed in the administration of federal and state managed lands in and adjacent to Niobrara County.
3. Compel the federal agencies to complete their required tasking that provides the scientific decisions for enhancing the productive capabilities of federally managed lands.
4. Contribute to the safety and reliability of the domestic food and fiber supply through the support of agriculture regarding federal and state land grazing.
5. Provide for the protection of all property rights, and interests related to water, livestock grazing, rights-of-way, and use of state land leases.
6. To require credible science to be employed in any decisions made regarding lands and resources in Niobrara County.

17.1.030 Goal

Promote healthy, sustainable rangeland supporting a viable livestock industry upon which Niobrara County, its small communities, and its citizens depend for their custom, culture, economic viability, and social stability.

17.1.040 Policy

The residents of Niobrara County have historically and traditionally earned their livelihood from activities reliant upon natural resources. Privately owned lands are intermingled with federal and state managed lands, and therefore management decisions for federal and state managed lands directly impact the use and economic value of private lands and rights to use federal and state lands. In the absence or reduction of that use, county livestock operations become less viable. The tax base in Niobrara County suffers severely as well. The economic viability of Niobrara County rests directly upon the continued and enhanced multiple use of federal and state lands.

END TITLE 17

TITLE 18 - WEED AND PEST

Chapter 1 - Plan Implementation

18.1.010 Vision

To support the efforts of the Weed and Pest Control District within Niobrara County.

18.1.020 Objective

The Commissioners will support the provisions of the act and program in their application to the control of designated weeds and pests within Niobrara County.

18.1.030 Goal

Support the implementation of the Wyoming Weed and Pest Control Act of 1973 and Wyoming Weed and Pest Special Management Program, Title 11, Chapter 5. (See Attachment I in Appendix C)

18.1.040 Policy

The Commissioners require all federal, state and local governments/agencies/boards/committees to consult, coordinate and cooperate any actions, plans or regulations affecting weed, pest or predator controls within Niobrara County. Niobrara County will be allowed to retain its cultural and historical use of land, implement weed, pest and/or predator control technology ensuring the County's economic stability and ensuring the safety of the public.

END TITLE 18

TITLE 19 - ENDANGERED SPECIES

Application of the Endangered Species Act often has little regard to county custom, culture, economic viability and social stability or property rights.

To the extent that U.S. Fish and Wildlife Services (USFWS) claims it is illegal under the Endangered Species Act for an individual to protect his private property such as livestock under attack from protected animal(s), or the loss of valid existing rights such as a grazing lease or permit due to the existence of Sensitive, Threatened or Endangered species, Niobrara County will consider the action as a “taking of private property”.

Presidential Executive Order No. 12630 issued March 15, 1988 by President Reagan titled Governmental Actions and Interference with Constitutionally Protected Property Rights, states, in part, “Actions undertaken by government officials that result in a physical invasion or occupancy of private property, and regulations imposed on private property that substantially affect its’ value or use, may constitute a taking of property. Further, governmental action may amount to a taking even though the action results in less than a complete deprivation of all use or value, or of all separate and distinct interests in the same private property and even if the action constituting a taking is temporary in nature.”

The E.O. (12630) further states, “Undue delays in decision making during which private property use is interfered with carry a risk of being held to be takings.”

The E.O. (12630) cannot legally prevent takings, but it directs the government to prevent unnecessary takings. An E.O. is not a statute but it is binding within the limits of existing law. Its authority is permanent unless it is amended or repealed by the issuing President.

The E.O. (12630) establishes a process that requires Evaluation of Risk and Avoidance of Unanticipated Takings be prepared by the Attorney General to be used by the agencies as a yardstick for making a TIA (Takings Implications Assessment).

The compliance by the federal agencies has been generally inadequate with the E.O. and TIA process. Niobrara County will look to the E.O. (12630) as an important tool.

Chapter 1 - Plan Implementation

19.1.010 Vision

In summary, Niobrara County expects all federal and state agencies to fully coordinate all proposed actions with the county early on, during and throughout the process. Niobrara County expects due notification and full participation in the planning and implementation process as required by state and federal laws.

19.1.020 Objective

The Endangered Species Act should not be an impediment to the safety, future growth, well-being and prosperity of Niobrara County residents.

19.1.030 Goal

Endangered species management concerns shall be meshed with local custom, culture, economic viability and social stability concerns. State and federal resource management agencies shall be required to follow all state and federal statutes with regards to the application of endangered species management.

19.1.040 Policy

All management decisions must adequately reflect genuine concern by demonstrating action for achieving the protection of both concerns and one must not subordinate the other. Niobrara County will be actively involved in accomplishing both concerns.

The protection of all property rights and interests shall be provided when endangered species protections are applied.

END TITLE 19

TITLE 20 - PREDATORY ANIMALS

Niobrara County recognizes the natural relationships between predators and their prey, and it has been the custom to carry out actions which keep those relationships in balance. The residents recognize when the impact of predators begins to have detrimental effects on their farming and ranching livelihoods, and it is custom for residents to use methods such as ATVs or other off-road vehicles, ultralights, helicopters, firearms, leg-hold traps, snares, and other outdoor gear and equipment to control predator populations to the extent possible.

Chapter 1 - Plan Implementation

20.1.010 Vision

The County will maintain trapping and calling of predators as historic and environmentally sound methods of predator control, and to recognize other means, including aerial and chemical control, as effective tools for keeping predator populations under control.

20.1.020 Objective

Common sense shall be applied to the management of predator species in and adjacent to Niobrara County in a way that protects the rights of County citizens to pursue their historic and customary livelihoods without fear of economically devastating property losses including, but not limited to, wildlife and domestic livestock, due to unbalanced predator/prey relationships.

20.1.030 Goal

The County will cooperate with the state and federal agencies in carrying out an active predator management control program for the protection of livestock and crops in Niobrara County.

20.1.040 Policy

The Predator Management Board will continue to be an integral part of Niobrara County, which will be managed per applicable Wyoming State Statute.

The predator-related activities of state and federal governments as those activities affect Niobrara County will be monitored and the County will participate in decisions made by those governments so that Niobrara County economic interests are represented and protected.

END TITLE 20

TITLE 21 - FIRE MANAGEMENT AND PROTECTION

Chapter 1 - Plan Implementation

21.1.010 Vision

Maintain the fire protection readiness of Niobrara County. To aggressively suppress all fires within the boundaries of Niobrara County regardless of ownership. Require all federal, state, and local governments to consult, coordinate, and cooperate with the Commissioners prior to the implementation of controlled burns.

21.1.020 Objective

1. Keep roads and trails open to provide access in order to suppress fires.
2. Consider “let burn” policy for areas where invading trees or shrubs reduce the value of livestock ranges, or there are other considerations that support and extend multiple use.
3. Encourage prescribed burning in areas that will support an expanded multiple use, or reduce the threat of wildfire, and where feasible, market the renewable resources before burning. Require credible science to be employed in any decisions made regarding lands and resources in and adjacent to Niobrara County.

21.1.030 Goal

To protect life, property and resource values in a manner that maximizes the benefits of multiple use to the people of Niobrara County.

21.1.040 Policy

The Commissioners will continue to support the local fire district.

END TITLE 21

TITLE 22 - HEALTH AND HUMAN SERVICES

Health and human services are a vital part of the services available. The need for mental health services are on the rise everywhere, and the residents of Niobrara County also see the need for them. The medical services available are valued, and the residents desire for them to be maintained and expanded, or services provided to assist the elderly in receiving healthcare elsewhere.

Chapter 1 - Plan Implementation

22.1.010 Vision

To maintain and expand the physical and mental healthcare services in Niobrara County, as well as provide services to obtain healthcare not currently available in Niobrara County.

22.1.020 Objective

To support the existing emergency medical and other health care services.

22.1.030 Goal

The Commissioners will continue to support the local health and human services in Niobrara County.

22.1.040 Policy

The Commissioners will support the existing and future programs.

END TITLE 22

TITLE 23 - ROAD USE AND ACCESS

Chapter 1 - Plan Implementation

23.1.010 Vision

Retain historical road access while accommodating the customary and cultural usage of roads within Niobrara County.

23.1.020 Objective

1. Keep all rights-of-way going to and inside of federally or state managed lands open for the enjoyment of the public. Access to and/or across federal and state managed lands within the County shall not place encumbrances or restrictions on private property.
2. Identify mechanisms to help maintain the uses of Rights-of-Ways.
3. Enhance the opportunity for further economic development.
4. Protect private property rights.

23.1.030 Goal

Maintain the historic right to travel over and across state and federally managed lands wherever necessary in pursuit of mining, ranching, farming, logging, recreational activities, motorized vehicle use, and all other historic uses. To employ sound science in decisions made regarding lands and resources in Niobrara County and allow continuous public access and usage of roads within Niobrara County.

23.1.040 Policy

No state or federal mandated road closure or detour will be permitted without first consulting, coordinating, and cooperating with the Commissioners. All actions on roads will be evaluated for the effects on the County's economic stability, historical usage, social travel usage and adverse impacts on the customary and cultural road usage within the boundaries of Niobrara County.

The use of horses, ATVs, snowmobiles, ORV's, standard pickups, cars and all other modes of transportation have long been recognized as a customary way to get from place to place in Niobrara County. It is a long way between towns, ranches, recreational areas, mining areas, etc., and County residents are accustomed to traveling considerable distances in operating their businesses. The means of making a living for many Niobrara County residents rests on the ability to move freely across state and federally managed lands. The loss of the use of rights-of-way for moving and trailing livestock, oil and gas exploration and development, recreation, timbering, and other historic uses creates the loss of the ability to stay economically viable and contributes to social disgust, unrest and instability.

All County Roads shall be under the supervision, management and control of the Commissioners. No County Road shall hereafter be established, altered or vacated, except by authority of the Commissioners and as provided by law.

END TITLE 23

TITLE 24 - COMMUNICATIONS AND OTHER UTILITIES

Chapter 1 - Plan Implementation

24.1.010 Vision

Electricity, communication, natural gas and other utility facilities and corridors will be coordinated and cooperatively planned, designed and sited in a manner that will help protect the natural environment.

24.1.020 Objective

Promote the use of modern technology, such as but not limited to, fiber optics, cellular, satellite, and compressed video on a continuous basis, while still maintaining basic telephone service compatible with modern technology.

24.1.030 Goal

To make advanced communication technology available to all the citizens of Niobrara County.

24.1.040 Policy

The Commissioners are open and receptive to modern communications technology.

END TITLE 24

TITLE 25 - WIND, SOLAR, NUCLEAR, AND OTHER ALTERNATIVE ENERGY GENERATION

Chapter 1 - Plan Implementation

25.1.010 Vision

To protect the landscape, resources, and habitats of Niobrara County while allowing for alternative energy development.

25.1.020 Objective

To promote alternative energy generation which will cause the least amount of disturbance to the landscape of the County.

The Commissioners will enact regulations and policies that are designed to protect private property rights and private property values of all landowners balanced with the general health, safety and welfare of the present and future residents of the County.

25.1.030 Goals

The Commissioners will work to allow wind, solar, and other alternative energy generation in a way that will minimize the disturbance to the landscape and resources of the County. Niobrara County will consider adopting zoning regulations which will cause the responsible development of wind, solar and other alternative energy generation.

25.1.040 Policies

The Planning Commission and Commissioners will adopt land use regulations governing these activities and provide a permitting process that furthers this goal.

END TITLE 25

TITLE 26 - ECONOMIC DEVELOPMENT

Economic development is a vital component in every county in Wyoming to draw new businesses and industries to its rural areas. Wyoming has the unique ability to boast low taxes and wide-open spaces to diversify the economies within the state. It is important not only to recruit new businesses, but to provide support to those already in place. Niobrara County will welcome and encourage commercial, industrial, residential, agricultural, and recreational land uses and development patterns consistent with this Land Use Plan.

Large-scale industrial, commercial, and residential land uses and development will be encouraged to locate in areas where impacts to air, soil, and water quality can be minimized. Potential visual and noise pollution will also be considered.

Chapter 1 - Economic Development and Diversification

26.1.010 Vision

The County's land use plans, regulations and development decision-making processes will support orderly, well-served, adequately infrastructured commercial and industrial development.

26.1.020 Objective

Niobrara County will encourage new businesses in the area and the expansion of existing businesses through business-supporting land use and infrastructure planning.

The Commissioners will enact regulations and policies that are designed to protect private property rights and private property values of all landowners balanced with the general health, safety and welfare of the present and future residents of the County.

26.1.030 Goal

To develop the County's existing economic assets including agricultural lands, industrial parks, commercial centers, scenic and recreation areas, renewable and non-renewable resources, and wildlife, keeping each as an important and viable element of the County's economy.

26.1.040 Policy

The County will work with local communities in support of their economic development goals and objectives. This cooperative approach is critical particularly as it relates to the County-community interface and highway corridors.

Chapter 2 - Business Retention and Expansion

26.2.010 Vision

Niobrara County will utilize this Land Use Plan and any future zoning regulations to support existing business expansion activities.

26.2.020 Objective

These documents will encourage compatible “value-added” activities adjacent to existing businesses. Potential markets include traditional agriculture, natural resource-based, and recreation-oriented industrial and commercial businesses and operations.

26.2.030 Goal

Promote balanced commercial activity that is economically viable and responsive to the needs of County residents and surrounding market areas.

26.2.040 Policy

County land use regulations will support existing business expansion activities.

Chapter 3 - Business Recruitment

26.3.010 Vision

Niobrara County will pursue economic development opportunities that complement other County goals and objectives.

26.3.020 Objective

The County will maintain land use plans and regulations that are conducive to business recruitment and relocation efforts.

26.3.030 Goal

Establish a diversified economic base that will provide permanent employment opportunities for County residents and an improved tax base without contributing to significant degradation of the natural environment.

26.3.040 Policy

Potential businesses will be encouraged based on their consistency with this Land Use Plan.

Chapter 4 - Recreation and Tourism

26.4.010 Vision

To maintain the recreation available and promote tourism within the County.

26.4.020 Objective

Niobrara County will encourage recreation-oriented economic development activities that are consistent with the County’s culture, character, and lifestyle.

26.4.030 Goal

To provide recreation and tourism activities consistent with the County’s custom and culture that will attract visitors to the area and provide opportunities for the residents to enjoy.

26.4.040 Policy

The County will support recreation opportunities and the protection and enhancement of traditional recreation areas/sites.

Chapter 5 - Agricultural Land and Related Uses

26.5.010 Vision

As feasible, the County will explore agricultural land protection and preservation strategies.

26.5.020 Objective

Niobrara County's development review process will include considering the effects of proposed uses on agricultural land and related uses.

26.5.030 Goal

The first objective of government is the protection of private property rights as provided in the United States Constitution and the Wyoming State Constitution.

26.5.040 Policy

Niobrara County supports incentive programs and other efforts which encourage/promote the continued use of productive agricultural lands for agricultural purposes.

END TITLE 26

TITLE 27 - INFRASTRUCTURE AND COUNTY SERVICES

Chapter 1 - County-provided Services to Rural Areas

The County may not provide levels or types of services to rural developed areas above those provided to agricultural land uses.

Chapter 2 - Developer-provided Services

As necessary, developers are responsible for the provision, enhancement and maintenance of services or service levels above those provided in the subject area by the County or other local entity. Developers are also required to mitigate adverse effects of providing such services on adjacent land uses, including utility corridors and recognized rights-of-way.

Chapter 3 - Utility Planning and Coordination

The location and design of utility transmission lines and corridors shall, as much as possible, avoid prime agricultural land, urban development areas, sensitive environmental areas, and scenic and historic areas. Whenever feasible, major utilities (oil and gas pipelines, high tension power lines, fiber optics, etc.) will be encouraged to “share” utility corridors.

Services and service levels associated with proposed developments located adjacent to existing communities, or in areas likely to be annexed at a future date, shall be compatible with the services provided by the community.

As appropriate, Niobrara County will cooperate/coordinate with other government entities and interests to provide services of mutual benefit or those too costly for a single government to pursue.

As deemed necessary and relevant, all interested political subdivisions, public utilities and private interests will be given an opportunity to review and comment on proposed subdivisions.

Chapter 4 - Plan Implementation

27.4.010 Vision

To provide the necessary infrastructure and county services necessary for the residents and visitors of Niobrara County.

27.4.020 Objective

To plan for the provision of community (public) services and facilities in coordination with Niobrara County’s 2025 Land Use Plan.

27.4.030 Goal

1. To meet the service needs of Niobrara County residents and businesses in a manner that prevents excessive public expenditures and needless duplication of services or facilities.
2. To utilize the County’s financial, land and human resources in an effective and efficient manner when providing or expanding public facilities and services.

3. To ensure that public utility facilities and services, including power, communication and natural gas are planned, designed and located in a coordinated manner that will increase efficiency, complement other County objectives and preserve the natural environment.
4. To make advanced communication technology available to all the citizens of Niobrara County.
5. To support the School District in providing a quality education for K-12 and preserve rural schools.
6. To support the local fire protection district.
7. To support the local health and human services in Niobrara County.

27.4.040 Policy

1. Niobrara County will facilitate coordination between different County agencies which provide public services and facilities.
2. Niobrara County will construct new county roads to minimize disruption of agricultural land uses.
3. Niobrara County will require developers to provide for any public services and facilities necessary to their development.
4. All utility companies operating in Niobrara County will be requested to include the County Commissioners in developing easements and/or utility corridors for pipelines and power lines, as well as locating substations, pumping stations and other related facilities.
5. Niobrara County will cooperate with educational programs sponsored by the utility companies and will encourage the schools to incorporate the relevant programs in their curriculum.

END TITLE 27

TITLE 28 - LARGE SCALE DEVELOPMENTS

Chapter 1 - Plan Implementation

28.1.010 Vision

To allow for new developments within the County and mitigate all negative impacts.

28.1.020 Objective

To work closely with the developer of any proposed large-scale development to minimize negative impacts from the development.

The Commissioners will enact regulations and policies that are designed to protect private property rights and private property values balanced with the general health, safety and welfare of the present and future residents of the County.

28.1.030 Goal

To mitigate the social, economic and environmental impact on Niobrara County from rapid or large-scale growth and development.

28.1.040 Policy

1. Niobrara County will try to estimate the costs of services necessitated and the revenues generated from any large-scale development proposal. County agencies will prepare to deal with the increased workload and, if necessary, will coordinate to form a Human Services Task Force which would assist the County in accommodating and incorporating the influx of residents.
2. The County will remain informed of long-term financial commitments that can accrue as a result of rapid growth and development, and will make these commitments only when it appears the growth is permanent or semi-permanent.
3. If other governmental agencies are involved in plans for large-scale development, the County will be kept informed of the agencies' decisions and will be included in the planning and decision-making process.
4. Emissions and location of industrial projects are regulated by the State and Federal government, Wyoming DEQ Air Quality Division, and EPA.
5. Non-regulated environmental emissions such as ambient noise, noise pollution, vibration pollution, light pollution and water vapor emissions should be mitigated to preserve the county's quiet rural atmosphere.

END TITLE 28

TITLE 29 - COUNTY/COMMUNITY/FRINGE AREA DEVELOPMENT

Niobrara County will cooperate with incorporated municipalities and the state to coordinate the planning and development of community fringe areas.

Chapter 1 - Plan Implementation

29.1.010 Vision

To allow for new developments within the County which provide minimal negative impacts to the County.

29.1.020 Objective

To work closely with the developer of any property in the County or fringe area to minimize negative impacts from the development.

29.1.030 Goal

Niobrara County will consider adopting zoning regulations which will cause the responsible development in the County and fringe areas.

29.1.040 Policy

Niobrara County will encourage development within urban areas or adjacent to existing communities where a full range of community services can be efficiently provided or are easily accessible. These amenities include, but are not limited to, cultural and recreational opportunities, commercial retail and services, public and private utilities, emergency services, and public schools.

END TITLE 29

TITLE 30 - REGULATIONS, STANDARDS AND THE APPROVAL PROCESS

All proposals for development shall be submitted in accordance with the rules and regulations put forth in the current zoning regulations. Niobrara County will consider adopting additional planning and zoning regulations to provide detailed requirements for submittal of development proposals within Niobrara County.

Chapter 1 - Plan Implementation

30.1.010 Vision

To use this 2025 Land Use Plan and future zoning regulations to promote developments which conform to the regulations and improve the quality of life in Niobrara County.

30.1.020 Objective

The County land use regulations and application/proposal review process will be designed and executed in an efficient and timely manner.

30.1.030 Goal

Reduce, eliminate, or mitigate potential conflicts between incompatible land uses through proper land use/development siting, zoning, design, access, screening, or buffering.

30.1.040 Policy

The County will develop subdivision and zoning regulations that promote orderly, high-quality development.

END TITLE 30

TITLE 31 - DEVELOPMENT STANDARDS

Niobrara County will consider adopting zoning regulations which will cause the responsible development within the County and protect the health, safety, and welfare of its residents.

Chapter 1 - Plan Implementation

31.1.010 Vision

Niobrara County will encourage orderly growth and land use development patterns which protect sensitive areas and the natural environment, and provide for the proper use and conservation of renewable and non-renewable resources.

31.1.020 Objectives

All developments shall conform to the County's goals and policies set forth in this document

31.1.030 Goal

Niobrara County will consider developing planning and zoning regulations that will direct developers to consider the following things when planning their developments: land use, water, sewer, solid waste disposal, roads, open space, vegetation, and impacts to historical or recreational areas within the County.

31.1.040 Policy

All development proposals will be evaluated for conformity and consistency with the County's adopted goals and policies, and anticipated long-term impacts to the County as a whole. If not in accordance with them, the development will be permitted only if it can be adequately demonstrated that the proposal is an improvement to the stated goals and policies, and is consistent with the purpose and intent thereof.

County land use regulations and application/proposal review processes will be designed and executed in an efficient and timely manner. All decisions rendered by the County with respect to public and private development will be made on the basis of compliance with the County's adopted goals and policies. In areas where the County is silent, proper planning methods, procedures, and development standards shall be employed to assure the best possible results within the realm of economic and practical feasibility.

END TITLE 31

TITLE 32 - PLAN ADOPTION

TITLE 34 - PLAN ADOPTION

The Niobrara County Planning and Zoning Commission hereby recommends to the Board of Niobrara County Commissioners that the foregoing 2024 Niobrara County Land Use Plan be approved and thereby declared as official Niobrara County Policy in compliance with the provisions of the Wyoming Administrative Procedures Act (W.S. §16-3-101 thru 16-3-115) and W.S. §9-8-301 thru 9-8-302. This recommendation having been made by unanimous vote in the affirmative this 10th day of December, 2024.

Sena Pearson

Sena Pearson, Chairman

James Kruse

James Kruse, Vice-Chairman

Brian Zerbe

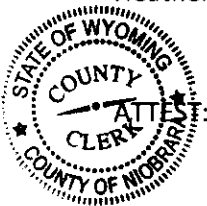
Brian Zerbe, Commissioner

Absent- excused

Marilyn Nelson, Commissioner

Heather Goddard

Heather Goddard, Commissioner



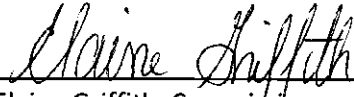
Becky Freeman

Becky Freeman, Secretary

The foregoing 2025 Niobrara County Land Use Plan is hereby adopted by the Board of Niobrara County Commissioners this 18th day of March, 2025, as official Niobrara County Policy. Adoption of this plan is hereby declared to be in compliance with the provisions of the Wyoming Administrative Procedures Act (W.S. §16-3-101 thru 16-3-115) and W.S. §9-8-301 thru 9-8-302.



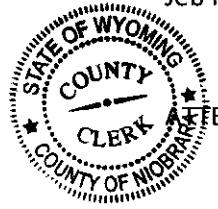
Patrick Wade, Chairman



Elaine Griffith, Commissioner



Jeb Hanson, Commissioner



TEST: 
Becky Freeman, Niobrara County Clerk

TITLE 33 - APPENDIX A

- 1) Notice of Planning Commission Public Hearing
- 2) Minutes of Planning Commission Public Hearing held September 10, 2024
- 3) Notice of Updated Land Use Plan Document
- 4) Notice of County Commissioners' Public Hearing
- 5) Minutes of County Commissioners' Public Hearing held February 4, 2025
- 6) Resolution 25-05

NOTICE OF PLANNING COMMISSION PUBLIC HEARING

NOTICE is hereby given that the 2024 Niobrara County Land Use Plan is available for review.

A public hearing by the Niobrara County Planning Commission will be held at **5:00 p.m.** on **Tuesday, September 10, 2024** at the **Niobrara County Fairgrounds Auditorium** for the purpose of hearing public comment on the 2024 Niobrara County Land Use Plan. Any and all interested persons may appear and be heard.

Copies of the proposed 2024 Niobrara County Land Use Plan may be reviewed at the following locations:

Niobrara County Courthouse

Niobrara County Library

Lusk Herald (between the hours of 10:00 a.m. and 2:00 p.m., Monday-Friday)

Niobrara County Conservation District Office

The draft 2024 Niobrara County Land Use Plan may be downloaded from the Niobrara County Website at niobraracounty.org.

Copies may be purchased from BenchMark of Torrington for \$60.00 each by calling (307) 532-3811.

Niobrara County Planning Commission,
Sena Pearson, Chairman

Published: 8/7/24

Planning and Zoning Meeting
Niobrara Land Use Plan Public Hearing
September 10, 2024. 5:00 p.m.
Niobrara County Fairgrounds Auditorium
Lusk, WY

Planning and Zoning members Sena Pearson, Heather Goddard, Brian Zerbe, and James Kruse were present for the public hearing to receive public comments on the proposed draft land use plan. Marilyn Nelson was excused.

Also in attendance were Commissioners Pat Wade, Elaine Griffith, and Jeb Hanson, County Clerk Becky L. Freeman, BenchMark of Torrington Engineers Rachelle Anderson and Brian Wakefield, Karen Budd-Falen, Bob Johnson, Leslie Stewart, Mark Groh, Bruce Kilmer, Jeff Reed, Jordan Reed, Lee Lamb, Barb Finley, Monty Finley, Bobby Giesse, Sheila Boldon, Teresa Tucker, Joseph Martinez, David Goddard, Matt Dockery, Vickie Miller, Ed Perry, Nyonne Perry, Ken Dixon, LeAnn Dixon, JoAnn Wade, Teri Bruegger, Traylen Bruegger, Scott West, Amy West, Joe Kruse, Jim Kruse, Rich Pullen, Justen Miller, and Neil Forgey.

Commissioner Chair Wade led the audience in the Pledge of Allegiance.

Before Chairman Wade turned the meeting over to Planning and Zoning he wanted to reiterate to those in attendance that since the beginning of this undertaking the stance has been that this is not a Commissioner Plan nor a Planning and Zoning plan; it is a county plan and citizen's input is imperative.

Planning and Zoning Vice-Chair Kruse thanked everyone for attending the meeting and reiterated that this is a public hearing, and they want to hear the public's comments and concerns.

A three-minute time limit for comments was established so that everyone in attendance that wanted to speak would have the opportunity to do so. He noted that the written comment deadline would be extended until September 20, 2024, as this evening's comments may spur more thoughts on the matter.

Mr. Kruse asked those who wished to speak to approach the podium and state their name.

Many individuals spoke about the draft plan lacking clear definitions on several key issues, such as recreation, sensitive special areas, custom and culture of Niobrara County, ground water usage limitations, and water quality. It was also noted that condemnation and/or imminent domain are not addressed in the draft plan, and people said they need to be included and well defined.

Many audience members voiced opposition to wind farms and clean hydrogen projects saying they will destroy the scenic view and decimate the already limited water in Niobrara County. One point made about windfarms was where do property rights of one landowner

end and the right to claim visual obstruction of another property owner begin. Do other landowners have the right to an unobstructed visual view?

There was discussion about unintended consequences to landowners resulting from the establishment of clean energy projects being implemented in Niobrara County. Increased construction traffic could result in more road damage, increases in fires, killing of wildlife, just to name a few.

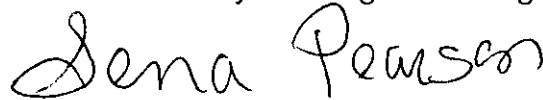
Another concern raised was the increase in the land use plan itself. It was mentioned that the original plan from 1977 was a thirty some page document and this revised plan has grown to over 174 pages. It was also mentioned that the land use plan contradicts itself, is vague, and could be considered government overreach.

One commenter mentioned that while a majority of those speaking were concerned about windmills and clean energy, focus needs to be kept on the land use plan itself because this plan is for all of Niobrara County and all projects, industry, recreation, or any group that is going to come into Niobrara County.

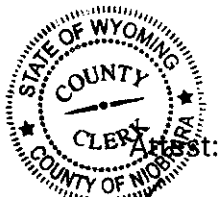
Vice-Chair Kruse asked if there were any further comments. He was asked to provide a brief timeline of what occurs next with the plan, and he explained that after the written comment period is over, Planning and Zoning will work through the land use plan, and barring any major changes, they will forward the plan to the County Commissioners with a recommendation approve. The Commissioners will then advertise for their public hearing. When they hold the hearing, any comments made during that time will be taken into consideration, and if necessary, incorporated into the plan, which will then be adopted.

There being no further comments, the hearing closed at 6:02 p.m.

Niobrara County Planning and Zoning Commission



Sena Pearson, Chair



Becky L. Freeman, County Clerk

NOTICE OF UPDATED LAND USE PLAN DOCUMENT

NOTICE is hereby given that the revised 2024 Niobrara County Land Use Plan is available for review.

The Niobrara County Planning Commission has considered all written and verbal public comments provided by the residents of Niobrara County and revised the draft 2024 Land Use Plan accordingly. At their meeting on December 10, 2024, they voted to accept the draft Plan and forward the document to the Niobrara County Commissioners for their public hearing and approval.

A public hearing by the Niobrara County Commissioners will be held at **3:00 p.m.** on **Tuesday, February 4, 2025** at the **Niobrara County Fairgrounds Shooting Sports Building** for the purpose of hearing public comment on the 2024 Niobrara County Land Use Plan.

The plan has had many revisions since the last public review, and to allow for ample opportunity for review and comment prior to the Commissioners Public Hearing, the updated document is now available for public comment. Written comments may be submitted to ncplanningandzoning@gmail.com or placed in the drop box at the Niobrara County Clerk's Office through February 4, 2025.

Copies of the proposed 2024 Niobrara County Land Use Plan may be reviewed at the following locations:

Niobrara County Courthouse
Niobrara County Library
Lusk Herald (between the hours of 10:00 a.m. and 2:00 p.m., Monday-Friday)
Niobrara County Conservation District Office

The draft 2024 Niobrara County Land Use Plan may be downloaded from the Niobrara County Website at niobraracounty.org.

Copies may be purchased from BenchMark of Torrington for \$60.00 each by calling (307) 532-3811.

Niobrara County Planning Commission,
Sena Pearson, Chairman

Published: 1/1/25

NOTICE OF COUNTY COMMISSIONERS PUBLIC HEARING

NOTICE that a public hearing by the Niobrara County Commissioners will be at **3:00 p.m.** on **Tuesday, February 4, 2025** at the **Niobrara County Fairgrounds Shooting Sports Building** for the purpose of hearing public comment on the 2024 Niobrara County Land Use Plan. Any and all interested persons may appear and be heard.

Copies of the proposed 2024 Niobrara County Land Use Plan may be reviewed at the following locations:

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Copies may be purchased from BenchMark of Torrington at (307) 532-3811 for \$60.00 each.

Public comments may be left in the drop box at the Niobrara County Clerk's Office or emailed to ncplanningandzoning@gmail.com until **February 4, 2025**.

Niobrara County Commissioners,
Patrick Wade, Chairman

Published: 1/15/25

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS

Tuesday, February 4, 2025, 9:00 a.m.
Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

The Niobrara Board of County Commissioners met in regular session on Tuesday, February 4, 2025, at 9:02 a.m. Those present were Chairman Patrick Wade, Vice-Chair Elaine Griffith, Commissioner Jeb Hanson, and County Clerk Becky L. Freeman. Members of the audience included Sheriff Randy Starkey, Brandie Collins, and Andrea Gustafson both with the *Lusk Herald*.

Chairman Wade led in the Pledge of Allegiance.

Road & Bridge- Foreman Fred Thomas discussed the Cheyenne River Bridge located on Old Hwy 85. He said this is the second oldest bridge still in use in Wyoming and is listed on the historical registry. He also noted that this bridge is part of WYDOT's Bridge Replacement Off System or BROS program which is a federally funded bridge replacement program. WYDOT recently conducted an inspection of the bridge and downgraded the load rating due to structural integrity concerns on the bridge. Mr. Thomas estimated it would cost up to two to three million dollars to upgrade the bridge and it did not seem practical for its limited use. He noted that most residents choose to bypass the bridge. He said signs have been installed stating the safe load capacities for heavy vehicles, should they choose this route.

2024 Road Rehabilitation Project- Mr. Thomas noted that Whetsell Carpentry LLC. will come back in April and grind the floor pan and seal one crack and the hole on the headwall project on 20 Mile Road.

Highway 85 Millings- Mr. Thomas updated the Commissioners on the status of millings the county should receive from WYDOT's road construction project that begins this summer on approximately 11 miles of Highway 85 north from Lusk to Hat Creek Road.

Old Business -There was nothing new to report on the old jail or the Community Juvenile Services Board.

Resolution 25-04 was tabled until 11:30 a.m.

2024 SHSP Grant Agreement- Vice Chair Griffith moved to approve the State Homeland Security Program (SHSP) grant agreement, Project ID- 24-SHSP-NIO-CO-PST, award amount- \$49,180.00, performance period September 1, 2024 – August 31, 2026. Commissioner Hanson seconded, and the motion carried.

Nick Alexander and Erik Steeb with Sidewinder H2, LLC., met briefly with the Commissioners to inform them there was no need for the County to sign the wind lease comment/consent form regarding the land Niobrara County leases from the State of Wyoming for a communication tower as the project Sidewinder is planning to develop on state lands is not ready at this point.

Elected Officials and Department Heads- Monica Wilcox, Public Health Response Coordinator, said she is busy working on deliverables and trainings.

Melanie Pearce, Regional Public Health Nurse Supervisor, updated the Commissioners on letters public health plans to send out to residents describing the public health nursing services. She also purchased ads to appear in the paper to promote their services. She mentioned some concerns about ice building up in the back area of the building towards the south side.

James Santistevan, Emergency Management Coordinator, discussed the Region 2 Hazard Mitigation Plan and noted it had been approved.

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS

Tuesday, February 4, 2025, 9:00 a.m.

Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

He mentioned the ongoing drone activity and said if he or Sheriff Starkey receives any reports, they are to submit them to a Homeland Security website.

Kellie Chichester, 4-H Youth Educator, asked if there were fiber optics at the fairgrounds or not and the Commissioners were unsure. She said the current internet is slow and unpredictable, and the fair board would like to have reliable internet in all the buildings, so she is investigating options.

Keri Thompson, Treasurer, and Becky Freeman, County Clerk, discussed office operations and said they were watching legislative bills of interest in their respective offices.

Teri Stephens, Assessor, said personal property declarations went out at the end of the year and her office is inputting information they have received thus far. She is completing her sales analysis and there are still individuals signing up for the long term home owner's tax exemptions. She is watching legislative bills as well.

Chrisanna Lund, Clerk of Court said her office has been busy with attorneys e-filing documents.

The Commissioners thanked everyone for keeping them apprised of legislative items.

Public Health Office Cleaning Bids- Three bid proposals were received and opened for cleaning at the public health office. The terms of the contract were for 1.5 - 2 hours per week. The first bid was from Brandie Collins for \$100.00 per week, the second from Matt Jameson owner of Jameson Cleaning and Maintenance for \$45.00 per hour, and the third from Sasha Rutherford for \$30.00 per hour.

Vice-Chair Griffith moved to award the cleaning contract for the public health office to Jameson Cleaning and Maintenance. Commissioner Hanson seconded, and the motion carried.

Kassidy Miller, Prevention Specialist, met with the Commissioners to discuss some projects she has in mind to help prevent opioid and other chemical dependencies, including vaping, which could be funded using opioid settlement funding.

She said she has been in contact with the high school principal to discuss these issues and the principal noted there were growing concerns about these, especially vaping. Ms. Miller found a program called VIVE18. According to the website, the mission of VIVE18 is to save young lives from addiction (and boredom) with relevant, engaging, high-energy drug prevention programs.

Ms. Miller said there are three VIVE18 presentation packages, Gold, Silver, and Bronze, and the one she believed would benefit Niobrara County the most is the Silver package. She said the cost is \$5,900.00 and would include one to three presentations for student leadership training as well as parent videos and travel expenses for the presenter.

Commissioner Hanson moved to approve the use of opioid funding for the silver level of the VIVE18 program contingent upon verification of use of funds. Vice-Chair Griffith seconded, and the motion carried.

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS

Tuesday, February 4, 2025, 9:00 a.m.

Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

Leslie Stewart and JoAnn Wade met with the Commissioners to discuss Celebrate America 250 and to request that a resolution be passed establishing the Niobrara County Semiquincentennial Steering Committee.

They presented ideas to cover as many areas and groups as possible, such as the celebration of the 150th year of Hat Creek when soldiers first arrived, as well as collecting oral histories from people, placing QR codes on historic buildings, signs, and perhaps headstones, historic presentations on the railroad, and the Towns of Manville and Van Tassell as well as the Lance Creek museum, just to name a few.

They would like to have the committee made up of people from the municipalities as well as some others, all the while keeping it manageable.

Resolution 25-04- Establishing the Niobrara County Semiquincentennial Committee- Commissioner Hanson moved to approve Resolution 25-04. Vice-Chair Griffith seconded, and the motion carried. A complete copy of the resolution is available on the County's website: https://www.niobraracounty.org/_departments/_commissioners/Resolutions.

Consent Agenda- Vice-Chair Griffith moved to approve the consent agenda. Commissioner Hanson seconded, and the motion carried. Items on the consent agenda were the minutes of the January 21, 2025 meeting, and receipts for January from the County Clerk for \$3,614.00 and from the Clerk of Court for \$920.00.

Payroll and the following vouchers were approved for payment:

Bills are listed in the following format: Vendor- Department- Description- Amount- **January Payroll-** \$144,122.07, **Aflac-** Various- Supplemental insurance- \$8,392.57, **Allbright's True Value-** Various- Parts, supplies, maintenance- \$284.39, **AlSCO-** Various- Supplies, shop towels, coveralls, floor mats- \$486.02, **AMBI Mail & Marketing-** Public Health Vaccination Grant- Publications- \$1,378.05, **Anne Wasserburger-** County Attorney- Supplies- \$115.32, **Barnes Law, LLC-** Clerk of Court- Court appointed attorney fees- \$36.00, **Becky L. Freeman-** Elections- Travel expense- \$195.86, **BenchMark of Torrington-** Various- 2024 Road Rehab Project engineering fees, Land Use Plan Update- \$4,634.30, **Black Hills Chemical & Janitorial-** Various- Supplies- \$600.33, **Black Hills Energy-** Various- Utilities- \$2,783.49, **Boldon Welding & Repair, LLC-** Various- Vehicle repairs- \$565.26, **Budd-Falen Law Offices-** Commissioners- Land Use Plan Update review- \$75.00, **Canon Financial Services-** General County- Copier Service Agreements- \$380.00, **CenturyLink-** Various- Telephones- \$1,432.15, **CenturyLink Business Services-** Various- Telephones- \$56.10, **Charm-Tex-** Detention- Commissary account- \$193.48, **Connecting Point Computer Centers-** Various- Copier service agreements - \$309.00, **Cory Wilcox-** Coroner- Monthly stipend- \$150.00, **Delta Dental of WY-** Various- Dental insurance- \$898.90, **Dennis C. Meier-** Circuit Court Magistrate- Office rent- \$1,000.00, **Double A Properties, LLC-** Various- Office rent- \$1,500.00, **Empower Trust Company, LLC-** General Co.- Deferred Compensation- \$18,955.00, **Frank Parts Co.-** Various- Parts, equipment repairs- \$337.24, **Fusion Cloud Service-** Telephones- \$1,195.09 **Geographic Innovations-** Various- Professional mapping services- \$1,500.00, **GreatAmerica Financial Services-** Sheriff- Copier service agreement- \$103.00, **Hiway Brake & Alignment-** Sheriff- Vehicle repairs- \$683.22, **Jameson Cleaning & Maintenance-** Facilities- Fairgrounds cleaning contract, fairgrounds event booking contract- \$8,600.00, **Johnson Controls-** Facilities- Justice center maintenance- \$1,000.00, **Jub Jub, Inc.-** General county- IT expenses- \$150.00, **Kassidy Miller-** Prevention Grant- IT expense- \$40.00, **Ken Brown-** Clerk of Court- Court appointed attorney fees- \$468.00, **Lexie Painter-** Extension- Contract

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS

Tuesday, February 4, 2025, 9:00 a.m.

Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

labor- Fair board bookkeeping- \$600.00, **Lucas Hardy DMD**- Detention- Inmate medical- \$1,200.00, **Lusk Herald**- Various- Publications - \$3,203.18, **Lusk State Bank**- General Co.- Payroll taxes- \$42,205.33, **McKesson Medical Surgical**- Public Health- Medical supplies- \$17.93, **Michelle Kremers**- Public Health Vaccination Grant - Supplies- \$155.40, **NCIC Inmate Communications**- Detention- NCIC Tablets- \$239.77, **Niobrara County Hospital District**- 1% Option Tax- \$18,191.96, **Niobrara County Library**- Quarterly tax allocation, deferred comp. reimbursement- \$43,984.63, **Niobrara County Public Health**- Prevention Grant- Indirect costs- \$315.38, **Niobrara Electric Association**- Various- Radio tower electricity- \$62.17, **One Stop Safety Solutions**- General county- Random drug testing fees- \$396.00, **Porter, Muirhead, Cornia, & Howard**- General County- Audit fees- \$44,000.00, **Quadient Leasing USA, Inc.**- General County- Quarterly postage meter payment- \$1,202.19, **Randy Starkey**- Sheriff- Travel expense- \$23.09, **Rawhide Drug Co.**- Detention- Inmate medical- \$371.20, **Safeguard Business Systems**- County Clerk- Supplies- \$237.97, **Swanson Services Corp.**- Detention- Inmate commissary account- \$206.30, **Thomson Reuters-West**- County Attorney- Law library- \$194.75, **Torrington Office Supply**- Dispatch- Supplies- \$33.61, **Town of Lusk**- Various- Utilities- \$2,962.34, **Traci Bruegger**- Facilities- CH, Library, Justice Center cleaning contract- \$4,300.00, **Tyler Technologies**- County clerk- Equipment repair- \$282.96, **Uinta County Public Health**- Public Health MCH-Non TANF Grant- Supplies- 78.82, **University of Wyoming Extension**- Extension- Quarterly Co share for 4-H Educator- \$6,846.00, **Verizon Wireless**- Various- Phones, base charge \$434.19, **Visa**- Various- Supplies, travel expense, postage, commissary account, IT expense, schools, maintenance - \$4,030.89, **Vision Service Plan**- Various- Vision Insurance- \$416.57, **Visionary Broadband**- Various- IT expense- \$469.14, **Westco**- Road & Bridge- Fuel- \$2,260.10, **Wex Bank**- Road & Bridge- Fuel- \$868.75 **Whetsell Carpentry, LLC**- County road fund- Pay request 5- \$24,518.76, Facilities- Library maintenance- \$1,102.50, **Wyoming Dept. of Public Health Laboratory**- Public health nurse- Medical supplies- \$28.00, **WYDOT- Financial Services**- Sheriff- Fuel - \$1,990.80, **WYDOT- Motor Vehicle Services**- General County- County license plate & supplies- \$69.73, **Wyoming Educators' Benefit Trust**- Co Admin- Health & life insurance- \$25,945.73, **Wyoming First Aid & Safety Supply, LLC**- Road & Bridge- Supplies- \$73.94, **Wyoming Office of Guardian ad Litem**- County share of GAL fees- \$1,071.00, **Wyoming Network, Inc.**- General County- IT expense- \$200.00, **Wyoming Women's Center**- Detention- Inmate Meals- \$2,278.00, **Xerox Corp.**- Co admin- Copier service agreement- \$127.89, **January Total- \$438,714.31**

Chairman Wade recessed the regular meeting at 12:15 p.m.

Chairman Wade reconvened the regular meeting at 2:50 p.m.

Before opening the public hearing, Chairman Wade extended the Commissioners' appreciation to the Planning and Zoning Board Members who spent many hours working on the plan.

He read an excerpt from the 1977 Land Use Plan and how land use plans were to aid the Commissioners on establishing policies for land use and related activities in the County. As such, it will serve as a guideline for decisions relating to growth and development in the unincorporated area of the County.

He mentioned that there was consideration of removing Title 27- Public Lands and Resources from the draft plan as Title 6, Chapter 2 discusses the Niobrara County Natural Resources Management Plan which was adopted in 2021.

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS

Tuesday, February 4, 2025, 9:00 a.m.

Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

Vice-Chair Griffith discussed revising Title 6, on page 30, where there is information about assessed valuation from past years. She thought inserting a link with the current information would be beneficial for the public. The other change would be in Title 12, page 47- Socio-economic information. She suggested adding a link to the State of Wyoming Department of Administration and Information's website. This website houses the most current data and would provide relative information in the future.

Commissioner Hanson asked that language be inserted in the plan under Chapter 2- Definitions- to include the following: Scope of Property Rights stating that it is important to note that our custom and culture is the direct result of the freedom that citizens have always had in order to innovate and make management decisions on their property.

Chairman Wade opened the public hearing at 3:05 p.m. to receive public comments on the draft Land Use Plan. Brian Wakefield, and Rachelle Anderson with BenchMark of Torrington were in attendance as well as several members of the public.

Chairman Wade asked the audience members who wished to speak to come forward and identify themselves and limit their comments to three minutes. It was asked that comments be directed about the Land Use Plan only.

Leslie Stewart said she was impressed with the plan and how the authors had put together descriptions of many aspects of Niobrara County but asked what the plan was for identifying Niobrara County's custom and culture and if they are defined, will there be an opportunity to comment, or how those definitions would be incorporated in the plan. She noted that those terms were mentioned numerous times throughout the Land Use Plan, however, there was no clear definition of what that encompasses. She mentioned in Title 15-Cultural Identity, the plan simply states that the "Niobrara Conservation District with the county commissioners will identify the county's culture and custom." She noted that in several places the term "shall" was used, which made the consideration of those elements mandatory or imperative. She felt the Plan was incomplete and should not be accepted without the descriptions of what the culture and customs are in the county.

Jeff Reed spoke on behalf of private property rights and as such, those rights give the owner or right holder the ability to do with the property what they choose. Mr. Reed asserted that private property rights require a better definition within the Plan. He also noted that with the research he has conducted on defining private property rights, nothing is said about an adjacent property owner having any rights to say what you can do with your own property. He too, felt the plan was incomplete without these definitions.

Tom Wasserburger also spoke on behalf of private property rights. He said that the Commissioners had allowed a "junk yard" to go in next to one of his properties in the North Park Addition and he did not say anything because it was the owner's right to do what he wanted with his property.

Danny Hanson spoke and wanted to try and answer Ms. Stewart's questions about the definition of custom and culture. He gave a history of how in the 90's, a group of Niobrara citizens created a comprehensive plan about custom and culture when the federal government wanted to take control of the landowner's land that included federal minerals under them. The citizens wanted to ensure that the government could not come in and tell them what to do with their private lands.

OFFICIAL MINUTES OF THE BOARD OF
NIOBRARA COUNTY COMMISSIONERS
Tuesday, February 4, 2025, 9:00 a.m.
Commissioners' Office - Niobrara County Courthouse
424 S. Elm Street, Lusk, WY

There being no further comments, Chairman Wade closed the public hearing.

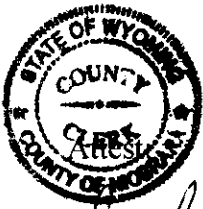
Chairman Wade said that the written comment period would be extended to February 7, 2025.

There being no further business, Commissioner Hanson moved to adjourn the meeting at 3:35 p.m. Vice-Chair Griffith seconded, and the motion carried.

NIOBRARA COUNTY COMMISSIONERS



Patrick Wade, Chairman


Becky L. Freeman, County Clerk

RESOLUTION 25-05

WHEREAS, on January 2, 2024 the Niobrara County Commissioners delegated authority to BenchMark of Torrington, P.C. to pursue the development of an updated Land Use Plan; and

WHEREAS, BenchMark of Torrington, P.C. had worked throughout 2023 to gather the opinions of Niobrara County residents for the revision of the Niobrara County Planning and Zoning Manual which was also relevant to the Land Use Plan; and

WHEREAS, BenchMark of Torrington, P.C. embarked on a thorough study of land use plans, and sought input from the residents of Niobrara County through public meetings; and

WHEREAS, BenchMark of Torrington, P.C. issued a survey to each landowner in Niobrara County to gather input and opinions on various topics included in the 2025 Niobrara County Land Use Plan; and

WHEREAS, the proposed revised plan was made available to the Public by and through a legal advertisement published in *The Lusk Herald* on August 7, 2024 and the plan was placed at various locations for review; and

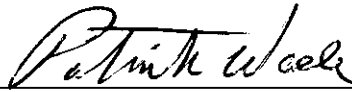
WHEREAS, two (2) public hearings were held: September 10, 2024 at the Niobrara County Fairgrounds Auditorium, and February 4, 2025 at the Niobrara County Fairgrounds Shooting Sports Building for public comment and input, and written comments were accepted at the Niobrara County Clerk's Office and via email.

NOW, THEREFORE, BE IT RESOLVED that the Niobrara County Commissioners do hereby adopt the revised 2025 Niobrara County Land Use Plan, effective this date.

BE IT FURTHER RESOLVED that copies of the plan be forwarded to the appropriate governmental agencies in order for them to comply with the restrictions set forth.

DATED this 18th day of March, 2025.

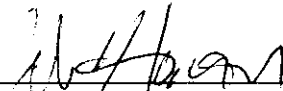
NIOBRARA COUNTY COMMISSIONERS



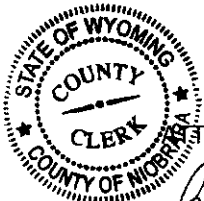
Patrick Wade, Chairman



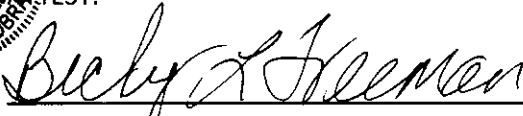
Elaine Griffith, Commissioner



Jeb Hanson, Commissioner



TEST:



Becky Freeman, Niobrara County Clerk

TITLE 34 - APPENDIX B

- 1) Resolution to Pursue a Comprehensive Land Use Plan (December 6, 1994)
- 2) Resolution 95-07: Action Supporting County Custom, Culture and Heritage in Decision Making Regarding Federal Lands in Niobrara County, State of Wyoming (March 21, 1995)
- 3) Resolution 24-01: Action Supporting County Custom, Culture and Heritage in Decision Making Regarding Federal Lands in Niobrara County, State of Wyoming (January 2, 2024)
- 4) Resolution 96-21: Adoption of the Revised Niobrara County Land Use Plan (October 1, 1996)
- 5) Resolution 96-24: Action Supporting County Custom, Culture and Heritage in Decision Making Regarding State or Private Lands in Niobrara County, State of Wyoming (November 12, 1996)
- 6) Resolution 24-02: Action Supporting County Custom, Culture and Heritage in Decision Making Regarding State or Private Lands in Niobrara County, State of Wyoming (January 2, 2024)
- 7) Resolution 96-26: Authorization to Create the Niobrara County Planning and Zoning Commission (November 19, 1996)
- 8) Resolution 97-02: Bureau of Land Management Proposed Rule on Criminal Law Enforcement (March 4, 1997)
- 9) Niobrara County Wyoming Land Use Regulations Zoning Resolution (July 1, 1997)
- 10) Resolution 97-09: Action Approving Niobrara County Planning and Zoning Commission Zoning Resolution (July 22, 1997)
- 11) Niobrara County Planning and Zoning Commission Interpretive Note to Zoning Resolution (June 9, 1998)
- 12) Resolution 98-09: Adoption of Standards – Specifications for Construction of Rural Subdivision Roads & Streets (July 7, 1998)
- 13) Resolution 21-12: Resolution Approving the Niobrara County Natural Resource Management Plan (August 3, 2021)

ATTACHMENT A

RESOLUTION

WHEREAS, the Federal Government is continuing to infringe on rights of private property owners; and

WHEREAS, the proposed Newcastle Resource Management Plan, the Rangeland Reform '94, the International Bio-Diversity Treaty, the Clean Air and Clean Water Acts, the Endangered Species Act, the National Historical Protection Act, and the Right-of-Way amendment, to name a few, all propose direct and indirect adverse affects to Niobrara County and its citizens; and

WHEREAS, the National Environmental Policy Act (NEPA) and the Federal Land Policy and Management Act (FLPMA) grant certain powers and authority to county government to protect individual rights; and

WHEREAS, Wyoming Statute 18-5-201 through 207 empowers the County Commissioners to "regulate. . . the use or occupancy of land for residence, recreation, agriculture, industry, commerce, public use and other purposes in the unincorporated area of the County"; and

WHEREAS, at the present time Niobrara County does not have a comprehensive land use plan; nor does it have the financial resources to hire a consulting firm to complete such a plan; and

WHEREAS, it is imperative that a grass roots effort of Niobrara County property owners, including all aspects of our cultural, economic and historical livelihood, be created to develop a comprehensive land use plan; and

WHEREAS, the Niobrara Resources Association, established in 1994 is representative of property owners within Niobrara County and

the Town of Lusk. It has the structure, background and expertise to initiate such an endeavor.

NOW, THEREFORE, BE IT RESOLVED:

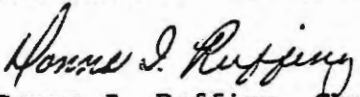
That the Niobrara County Commissioners, in accordance with Wyoming Statute 18-5-201 through 207, do hereby authorize the Niobrara Resources Association to pursue the grass roots development of a comprehensive land use plan for consideration by Niobrara County.

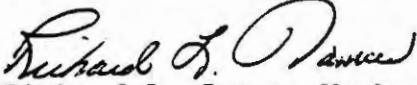
BE IT FURTHER RESOLVED that only taxpaying property owners in, and residents of, Niobrara County shall be invited to provide input to the plan's development.

BE IT FURTHER RESOLVED that the final plan shall set forth the powers and authority granted by NEPA and FLPMA.

DATED this 6th day of December, 1994.

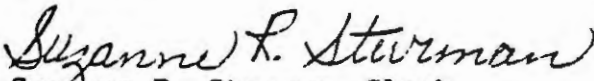
NIOBRARA COUNTY COMMISSIONERS


Donna I. Ruffing, Chairman


Richard L. James, Member


Joel D. Wasserburger, Member

ATTEST:


Suzanne R. Sturman, Clerk

RESOLUTION 95-07

ACTION SUPPORTING COUNTY CUSTOM, CULTURE AND HERITAGE IN DECISION MAKING REGARDING FEDERAL LANDS IN NIOBRARA COUNTY, STATE OF WYOMING

WHEREAS, the Niobrara County Commissioners recognize the ever increasing encroachment of the Federal Government, and its Federal Agencies, upon the fundamental rights of the citizens of Niobrara County and the Sovereignty of the Government of Niobrara County; and

WHEREAS, the Government of Niobrara County has the Constitutional Power to protect the fundamental rights of the citizens of Niobrara County as guaranteed by the Constitution of the United States; and

WHEREAS, the government of the United States of America exercises control over a significant portion of the land and resources within the geographic boundaries of this County; and

WHEREAS, decisions governing federal land in Niobrara County, State of Wyoming, have a direct and broadly based impact on the interrelated heritage of cultural, environmental, and economic well-being and stability of the residents.

NOW, THEREFORE, BE IT RESOLVED that the following procedural protections shall be followed to ensure that there is full and complete information and cooperation provided in the decision making processes regarding management of lands located within Niobrara County and that the impact of those decisions shall preserve the interrelated heritage of cultural, custom, environmental and economic well-being and stability of Niobrara County:

1. These procedural provisions are intended to apply to all decisions undertaken by any agency, department or other federal entity within the Department of Interior, Department of Agriculture, or Environmental Protection Agency (hereinafter known as federal entities) that do or will have direct or indirect impact on federal and private lands within the geographic confines of Niobrara County, State of Wyoming.

2. Within thirty (30) days of adoption of this resolution and at the beginning of each calendar year thereafter, the Chairman of the Niobrara County Commissioners, as executive officer of this County, or his designee, shall give written notice to federal entities as follows:

a. The Niobrara County Commissioners desire to have full and complete notice and opportunity for involvement in the decision making processes of the federal entity that either (i) are taken or are being proposed to be taken regarding federal lands located within Niobrara County, (ii) involves the listing, de-listing, or reclassification of a threatened or endangered species or critical habitat within Niobrara County, or (iii) involves any major federal action significantly affecting the quality of human environment within Niobrara County.

b. That any decision of federal entities to not afford the government of Niobrara County either (i) complete notice, (ii) opportunity for involvement beyond that afforded each citizen or (iii) limit the role of county government to a local public hearing is presumed as a matter of law to reduce the role that Niobrara County has in the planning process and be prejudicial to the government of Niobrara County and its residents.

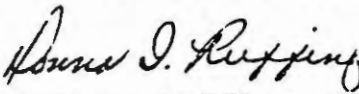
c. That all zoning and land use plans lawfully in force are expressions of interrelated environmental, cultural and economic policies that this County deems to be critical to the maintenance of the well-being and stability of the residents of this County and their government.

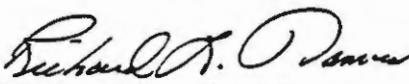
3. If proposed implementation of a critical habitat designation or federal policies or practices over federal lands located within the geographic boundaries of this County will likely result in either (a) the alteration of present County and local zoning regulations without being previously voluntarily initiated by this County, or (b) make it infeasible for existing businesses to continue their present operations, the proposed federal action is presumed to both create a negative impact on the interrelated environmental, cultural and economic well-being and stability of this County and its residents and not be the preferred alternative to resolve the environmental and other concerns of the federal entities.

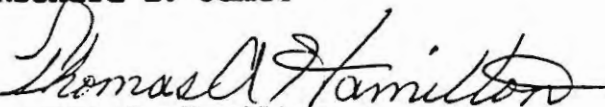
4. Nothing herein is intended to conflict with any existing federal or state statute or applicable regulation that governs lands within Niobrara County, State of Wyoming. Any section, paragraph, sentence, phrase or word that is found to do so as a matter of law may be severed from this Resolution without limiting the enforceability of the non-conflicting portion.

DATED this 21st day of March, 1995.

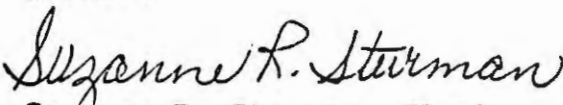
NIOBRARA COUNTY COMMISSIONERS


Donna I. Ruffing, Chairman


Richard L. James


Thomas A. Hamilton

ATTEST:


Suzanne R. Sturman, Clerk

RESOLUTION 24-01

ACTION SUPPORTING COUNTY CUSTOM, CULTURE AND HERITAGE IN DECISION MAKING REGARDING FEDERAL LANDS IN NIOBRARA COUNTY, STATE OF WYOMING

WHEREAS the Niobrara County Commissioners recognize the ever increasing encroachment of the Federal Government and its Federal Agencies, upon the fundamental rights of the citizens of Niobrara County and the sovereignty of the Government of Niobrara County; and

WHEREAS the government of Niobrara County has the constitutional power to protect the fundamental rights of the citizens of Niobrara County as guaranteed by the Constitution of the United States; and

WHEREAS the government of the United States of America exercises control over a portion of the land and resources within the geographic boundaries of this County; and

WHEREAS, decisions governing federal land in Niobrara County, State of Wyoming, have a direct and broadly based impact on the interrelated heritage of cultural, environmental, and economic well-being and stability of the residents; and

WHEREAS this Resolution is identical to RESOLUTION 95-07, dated March 21, 1995; through RESOLUTION 23-01, dated January 3, 2023.

NOW, THEREFORE, BE IT RESOLVED that the following procedural protections shall be followed to ensure that there is full and complete information and cooperation provided in the decision making processes regarding management of lands located within Niobrara County and that the impact of those decisions shall preserve the interrelated heritage of cultural, custom, environmental and economic well-being and stability of Niobrara County:

1. These procedural provisions are intended to apply to all decisions undertaken by any agency, department or other federal entity within the Department of Interior, Department of Agriculture, or Environmental Protection Agency (hereinafter known as federal entities) that do or will have direct or indirect impact on federal and private lands within the geographic confines of Niobrara County, State of Wyoming.

2. Within thirty (30) days of adoption of this resolution and at the beginning of each calendar year thereafter, the Chairman of the Niobrara County Commissioners, as executive officer of this County, or his designee, shall give written notice to federal entities as follows:

a. The Niobrara County Commissioners desire to have full and complete notice and opportunity for involvement in the decision making processes of the federal entity that either (i) are taken or are being proposed to be taken regarding federal lands located within Niobrara County, (ii) involves the listing, de-listing, or reclassification of a threatened or endangered species or critical habitat within Niobrara County, or (iii) involves any major federal action significantly affecting the quality of human environment within Niobrara County.

b. That any decision of federal entities to not afford the government of Niobrara County either (i) complete notice, (ii) opportunity for involvement beyond that afforded each citizen or (iii) limit the role of county government to a local public hearing is presumed as a matter of law to reduce the role that Niobrara County has in the planning process and be prejudicial to the government of Niobrara County and its residents.

c. That all zoning and land use plans lawfully in force are expressions of interrelated environmental, cultural, and economic policies that this County deems to be critical to the maintenance of the well-being and stability of the residents of this County and their government.

3. If proposed implementation of a critical habitat designation or federal policies or practices over federal lands located within the geographic boundaries of this County will likely result in either (a) the alteration of present County and local zoning regulations without being previously voluntarily initiated by this County, or (b) make it infeasible for existing businesses to continue their present operations, the proposed federal action is presumed to both create a negative impact on the interrelated environmental, cultural and economic well-being and stability of this County and its residents and not be the preferred alternative to resolve the environmental and other concerns of the federal entities.

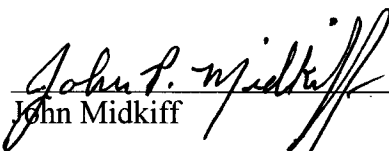
4. Nothing herein is intended to conflict with any existing federal or state statute or applicable regulation that governs lands within Niobrara County, State of Wyoming. Any section, paragraph, sentence, phrase, or word that is found to do so as matter of law may be severed from this Resolution without limiting the enforceability of the non-conflicting portion.

DATED this 2nd day of January 2024.

NIOBARRA COUNTY COMMISSIONERS



Patrick Wade



John Midkiff

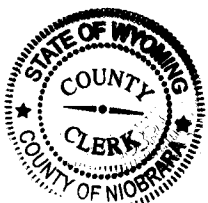


Elaine Griffith

ATTEST:



Becky L. Freeman, Clerk



RESOLUTION 96-21

WHEREAS, ON DECEMBER 6, 1994 THE NIOBRARA COUNTY COMMISSIONERS DELEGATED, BY RESOLUTION, AUTHORITY TO THE NIOBRARA RESOURCES ASSOCIATION TO PURSUE THE GRASS ROOTS DEVELOPMENT OF A COMPREHENSIVE LAND USE PLAN; AND

WHEREAS, THE NIOBRARA RESOURCES ASSOCIATION EMBARKED ON A THOROUGH STUDY OF LAND USE PLANS, AND CONDUCTED A COUNTY-WIDE SURVEY TO DETERMINE OUR CUSTOM, CULTURE, ECONOMIC AND COMMUNITY STABILITY; AND

WHEREAS, THE NIOBRARA RESOURCES ASSOCIATION PRESENTED A PROPOSED REVISED NIOBRARA COUNTY LAND USE PLAN TO THE COUNTY COMMISSIONERS ON AUGUST 27, 1996; AND

WHEREAS, THE PROPOSED REVISED PLAN WAS MADE AVAILABLE TO THE PUBLIC BY AND THRU A LEGAL ADVERTISEMENT PUBLISHED IN *THE LUSK HERALD* ON AUGUST 28, 1996 AND THE PLAN WAS PLACED AT VARIOUS LOCATIONS FOR REVIEW; AND

WHEREAS, THREE (3) PUBLIC HEARINGS WERE HELD: SEPTEMBER 27, 1996 AT MULE CREEK JUNCTION; SEPTEMBER 28, 1996 AT LUSK; AND SEPTEMBER 30, 1996 AT LANCE CREEK FOR PUBLIC COMMENT AND INPUT.

NOW, THEREFORE, BE IT RESOLVED THAT THE NIOBRARA COUNTY COMMISSIONERS DO HEREBY ADOPT THE REVISED NIOBRARA COUNTY LAND USE PLAN, EFFECTIVE THIS DATE.

BE IT FURTHER RESOLVED, THAT COPIES OF THE PLAN BE FORWARDED TO THE APPROPRIATE GOVERNMENTAL AGENCIES IN ORDER FOR THEM TO COMPLY WITH THE RESTRICTIONS SET FORTH.

DATED THIS 1st DAY OF OCTOBER, 1996.

NIOBRARA COUNTY COMMISSIONERS

Donna I. Ruffing
Donna I. Ruffing, Chairman

Richard L. James
Richard L. James

Thomas A. Hamilton
Thomas A. Hamilton



ATTEST:

Suzanne R. Sturman
Suzanne R. Sturman, Clerk

RESOLUTION 96-24

ACTION SUPPORTING COUNTY CUSTOM, CULTURE AND HERITAGE
IN DECISION MAKING REGARDING STATE OR PRIVATE LANDS IN
- NIobrara County, State of Wyoming

WHEREAS, the Niobrara County Commissioners recognize the ever increasing encroachment of the State government, and its State agencies, upon the fundamental rights of the citizens of Niobrara County and the Sovereignty of the government of Niobrara County; and

WHEREAS, the government of Niobrara County has the constitutional power to protect the fundamental rights of the citizens of Niobrara County as guaranteed by the Constitution of the United States; and

WHEREAS, the government of the State of Wyoming exercises control over a significant portion of the land and resources within the geographic boundaries of this County; and

WHEREAS, decisions governing state or private land in Niobrara County, State of Wyoming, have a direct and broadly based impact on the inter-related heritage of cultural, environmental, and economic well-being and stability of the residents.

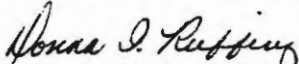
NOW, THEREFORE, BE IT RESOLVED that the following procedural protections shall be followed to ensure that there is full and complete information and cooperation provided in the decision making processes regarding management of lands located within Niobrara County and that the impact of those decisions shall preserve the inter-related heritage of cultural, custom, environmental and economic well-being and stability of Niobrara County:

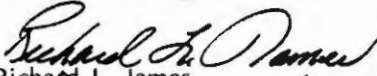
1. These procedural provisions are intended to apply to all decisions undertaken by any agency, department or other state entity within the State of Wyoming (hereinafter known as state entities) that do or will have direct or indirect impact on state and private lands within the geographic confines of Niobrara County, State of Wyoming.
2. Within thirty (30) days of adoption of this resolution and at the beginning of each calendar year thereafter, the Chairman of the Niobrara County Commissioners, as executive officer of this County, or his designee, shall give written notice to state entities as follows:
 - a. The Niobrara County Commissioners desire to have full and complete notice and opportunity for involvement in the decision making processes of the state entity that either
 - (i) are taken or are being proposed to be taken regarding state or private lands located within Niobrara County
 - (ii) involves any major state action significantly affecting the quality of human environment within Niobrara County.
 - b. That any decision of state entities to not afford the government of Niobrara County either
 - (i) complete notice

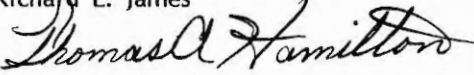
- (ii) opportunity for involvement beyond that afforded each citizen, or
 - (iii) limit the role of county government to a local public hearing is presumed as a matter of law to reduce the role that Niobrara County has in the planning process and be prejudicial to the government of Niobrara County and its residents.
- c. That all zoning and land use plans lawfully in force are expressions of inter-related and environmental, cultural and economic policies that this County deems to be critical to the maintenance of the well-being and stability of the residents of this County and their government.
3. If proposed implementation of state policies or practices over state or private lands located within the geographic boundaries of this County will likely result in either
- a. the alteration of present County and local zoning regulations without being previously voluntarily initiated by this County, or
 - b. make it infeasible for existing businesses to continue their present operations, the proposed state action is presumed to both create a negative impact on the inter-related environmental, cultural and economic well-being and stability of this County and its residents and not be the preferred alternative to resolve the concerns of the state entities.
4. Nothing herein is intended to conflict with any existing state statutes or applicable regulation that governs lands within Niobrara County, State of Wyoming. Any section, paragraph, sentence, phrase or word that is found to do so as a matter of law may be severed from this Resolution without limiting the enforceability of the non-conflicting portion.

DATED this 12th day of November, 1996.

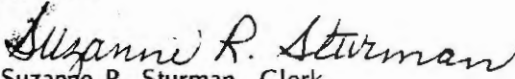
NIOBRARA COUNTY COMMISSIONERS


Donna I. Ruffing, Chairman


Richard L. James


Thomas A. Hamilton

ATTEST:


Suzanne R. Sturman, Clerk

RESOLUTION 24-02

ACTION SUPPORTING COUNTY CUSTOM, CULTURE AND HERITAGE IN DECISION MAKING REGARDING STATE OR PRIVATE LANDS IN NIOBRARA COUNTY, STATE OF WYOMING

WHEREAS the Niobrara County Commissioners recognize the ever increasing encroachment of the State Government and its State Agencies, upon the fundamental rights of the citizens of Niobrara County and the sovereignty of the Government of Niobrara County; and

WHEREAS the government of Niobrara County has the constitutional power to protect the fundamental rights of the citizens of Niobrara County as guaranteed by the Constitution of the United States; and

WHEREAS the government of the State of Wyoming exercises control over a portion of the land and resources within the geographic boundaries of this County; and

WHEREAS decisions governing State or private land in Niobrara County, State of Wyoming, have a direct and broadly based impact on the interrelated heritage of cultural, environmental, and economic well-being and stability of the residents; and

WHEREAS this Resolution is identical to RESOLUTION 96-24, dated November 12, 1996; through RESOLUTION 23-02, dated January 3, 2023.

NOW, THEREFORE, BE IT RESOLVED that the following procedural protections shall be followed to ensure that there is full and complete information and cooperation provided in the decision making processes regarding management of lands located within Niobrara County and that the impact of those decisions shall preserve the interrelated heritage of cultural, custom, environmental and economic well-being and stability of Niobrara County:

1. These procedural provisions are intended to apply to all decisions undertaken by any agency, department, or other state entity within the State of Wyoming (hereinafter known as state entities) that do or will have direct or indirect impact on state and private lands within the geographic confines of Niobrara County, State of Wyoming.

2. Within thirty (30) days of adoption of this resolution and at the beginning of each calendar year thereafter, the Chairman of the Niobrara County Commissioners, as executive officer of this County, or his designee, shall give written notice to state entities as follows:

a. The Niobrara County Commissioners desire to have full and complete notice and opportunity for involvement in the decision making processes of the state entity that either (i) are taken or are being proposed to be taken regarding state or private lands located within Niobrara County, or (ii) involves any major state action significantly affecting the quality of human environment within Niobrara County.

b. That any decision of state entities to not afford the government of Niobrara County either (i) complete notice, (ii) opportunity for involvement beyond that afforded each citizen or (iii) limit the role of county government to a local public hearing is presumed as a matter of law

to reduce the role that Niobrara County has in the planning process and be prejudicial to the government of Niobrara County and its residents.

c. That all zoning and land use plans lawfully in force are expressions of interrelated environmental, cultural, and economic policies that this County deems to be critical to the maintenance of the well-being and stability of the residents of this County and their government.

3. If proposed implementation of state policies or practices over state or private lands located within the geographic boundaries of this County will likely result in either (a) the alteration of present County and local zoning regulations without being previously voluntarily initiated by this County, or (b) make it infeasible for existing businesses to continue their present operations, the proposed state action is presumed to both create a negative impact on the interrelated environmental, cultural and economic well-being and stability of this County and its residents and not be the preferred alternative to resolve the environmental and other concerns of the state entities.

4. Nothing herein is intended to conflict with any existing state statute or applicable regulation that governs lands within Niobrara County, State of Wyoming. Any section, paragraph, sentence, phrase, or word that is found to do so as matter of law may be severed from this Resolution without limiting the enforceability of the non-conflicting portion.

DATED this 2nd day of January 2024.

NIOBRARA COUNTY COMMISSIONERS

Patrick Wade

Patrick Wade

John P. Midkiff

John Midkiff

Elaine Griffith

Elaine Griffith

ATTEST:

Becky L. Freeman

Becky L. Freeman, Clerk



RESOLUTION 96-26

PLANNING & ZONING COMMISSION

WHEREAS, Wyoming Statute 18-5-202 authorizes county commissioners to create and establish a planning and zoning commission; and

WHEREAS, the original Planning Commission was disbanded in the 1980's; and

WHEREAS, circumstances now require a Planning & Zoning Commission.

NOW, THEREFORE, BE IT RESOLVED that the NIOBRARA COUNTY PLANNING & ZONING COMMISSION is, hereby, created and established, effective this date.

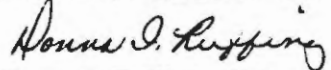
BE IT FURTHER RESOLVED that the Commission shall be composed of five (5) members:

Incorporated:	Lee Campbell
	Lloyd Rogers
Unincorporated:	Steve Cummings
	Peter Hansen
	Stanley Rennard

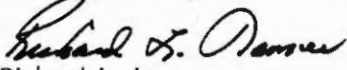
BE IT FURTHER RESOLVED that the County Clerk, or her designee, shall serve as Secretary to the Commission.

DATED this 19th day of November, 1996.

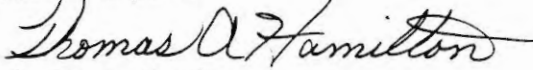
NIOBRARA COUNTY COMMISSIONERS



Donna I. Ruffing, Chairman

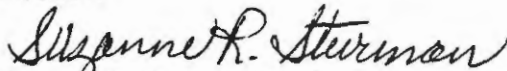


Richard L. James



Thomas A. Hamilton

ATTEST:



Suzanne R. Sturman, Clerk

RESOLUTION 97-02

BUREAU OF LAND MANAGEMENT PROPOSED RULE ON CRIMINAL LAW ENFORCEMENT

WHEREAS, on November 7, 1996 the proposed rule on Bureau of Land Management (BLM) criminal law enforcement was published in the Federal Register pages 57615-57621; and

WHEREAS, the BLM intends to apply this new rule on the public domain within the several western states, including Wyoming, of which Niobrara County is a part; and

WHEREAS, the attempted enforcement of this rule on any public land that lies within Niobrara County, Wyoming would violate:

- (a) the equal protection afforded Niobrara County, Wyoming citizens under the 4th and 14th amendment of the United States Constitution;
- (b) the procedure of acquiring criminal enforcement jurisdiction outlined in Article 1, Section 8, Clause 17 of the United States Constitution as it applies to an established state;
- (c) the separation of powers between the judicial, executive and legislative branches of the United States Government;
- (d) federalism as established between the several states and the federal government;
- (e) the authority granted to the BLM under applicable enabling statutes; and
- (f) a host of other statutory and constitutional protections to be further listed both at national and state levels.

WHEREAS, the BLM is required, as are all federal agencies, to properly utilize federal acts and executive orders in preparing any proposed rules; and

WHEREAS, the BLM has not evaluated the existing regulations for possible deletion should they historically have proven to be unwarranted; and

WHEREAS, the following acts and executive orders, listed in Section IV, procedural matters, page 57607, all require federal agencies to evaluate regulations for removing rules as well as consolidating rules:

- (a) The National Environmental Policy Act (NEPA)
- (b) Regulatory Flexibility Act;
- (c) Executive Order 12612 (Federalism)
- (d) Executive Order 12866 (Regulatory Planning and Review)

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners, Niobrara County, Wyoming:

SECTION 1:

(a) The citizens of Niobrara County, Wyoming shall not be subjected to this proposed or final rule which dramatically expands the scope of federal enforcement authority.

(b) Niobrara County, Wyoming shall take every measure possible to ensure that this proposal, which is a transparent effort to eliminate multiple uses of public land, be thwarted at its inception.

(c) No federal agent shall enforce this proposed rule outside of lawful geographic areas.

SECTION 2: The Niobrara County Board of Commissioners hereby formally requests the Wyoming Congressional Delegation to hold a hearing on the BLM's proposed rule on Criminal Law Enforcement as published in the November 7, 1996 Federal Register, pages 57615-57621.

SECTION 3: That the Niobrara County Clerk shall forward copies of this Resolution to the President of the Senate and the Speaker of the House of Representatives of the United States Congress, each member of the Wyoming Congressional Delegation, the Director of the Wyoming Land and Farm Loan Office, the Secretary of the Interior, Director of Bureau of Land Management, the Wyoming State BLM Director, the BLM Casper District Manager, the BLM Newcastle Area Manager, the Weston and Crook County Commissioners and the Niobrara Resources Association.

APPROVED AND DATED this 4th day of March, 1997.

NIOBRARA COUNTY COMMISSIONERS

Donna I. Ruffing
Donna I. Ruffing, Chairman

Richard L. James
Richard L. James, Member

Thomas A. Hamilton
Thomas A. Hamilton, Member



Suzanne R. Sturman
Suzanne R. Sturman, Clerk

NIOBRARA COUNTY WYOMING
LAND USE REGULATIONS
ZONING RESOLUTION

WHEREAS, the Niobrara County Planning and Zoning Commission's proposal is to use a grassroots planning process for development of Niobrara County without the appointment of a County Planning Engineer, or building permit process; and

WHEREAS, the intention of Niobrara County Planning and Zoning Commission is to make zoning recommendations based on input derived from public hearings comprised of concerned citizens from within site specific areas relating to each individual application; and

WHEREAS, the Niobrara County Land Use Plan will serve as an advisory document to guide all concerned parties in making sound decisions, based on a shared community vision;

NOW, THEREFORE, BE IT RESOLVED by the County Planning and Zoning Commission of Niobrara County, State of Wyoming:

That the entire Niobrara County, Wyoming, outside of the corporate limits of the incorporated towns therein, is hereby zoned as "Class V - Agricultural Purposes" except that this classification shall not apply to any properties presently used for residential, commercial or industrial uses;

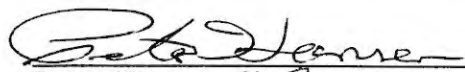
That the duly constituted authorities of the respective towns in the county are authorized to plan within a radius of one (1) mile outside of the corporate limits of each of said towns provided that zoning within Niobrara County shall be classified as follows:

- Class I - One family residential
- Class II - Multiple family residential
- Class III - Commercial
- Class IV - Industrial
- Class V - Agricultural

and after the recommendation of the County Planning and Zoning Commission and the consent of the Board of County Commissioners, the landowner shall have the right to request rezoning of his property to any of the higher uses but no change shall be made except with the consent of the landowner, the County Planning and Zoning Commission and the Board of County Commissioners following the required published notices and public hearings. Land changed to another land use classification may continue to be used as previously until developed to its allowed use.

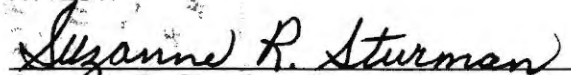
Approved and signed this 1st day of July, 1997.

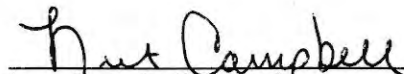
NIOBRARA PLANNING AND ZONING COMMISSION

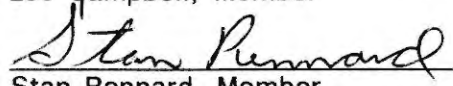

Peter Hansen, Chairman

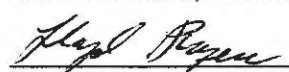

Steve Cummings, Member

ATTEST:


Suzanne R. Sturman, Clerk


Lee Campbell, Member


Stan Rennard, Member


Lloyd Rogers, Member

RESOLUTION 97-09

ACTION APPROVING NIOBRARA COUNTY PLANNING AND ZONING COMMISSION ZONING RESOLUTION

WHEREAS, on November 19, 1996, as authorized by Wyoming Statute 18-5-202, the Niobrara County Commissioners did create and establish a five (5) member Niobrara County Planning and Zoning Commission; and

WHEREAS, the members did study and meet to discuss State and Federal laws, rules and regulations regarding planning and zoning and the duties and powers of a Planning and Zoning Commission; and

WHEREAS, the Niobrara County Planning and Zoning Commission did draft a proposed zoning resolution declaring all of Niobrara County outside of the corporate limits of incorporated towns be zoned as "Class V - Agricultural" and outlining the process for changing zoning within Niobrara County; did publish said draft and notice of a Public Hearing; and

WHEREAS, the Niobrara County Planning and Zoning Commission did hold a Public Hearing on July 1, 1997 to hear the opinions and address the questions of citizens of Niobrara County; and

WHEREAS, after holding said Public Hearing, the Planning and Zoning Commission did vote unanimously to approve and sign the resolution and present it to the County Commissioners for their approval.

NOW, THEREFORE, BE IT RESOLVED that the Niobrara County Commissioners do, hereby, unanimously approve and accept the Planning and Zoning Commissions' Zoning Resolution as the guideline for future zoning variances and, further, it shall become a part of the Niobrara County Land Use Plan.

APPROVED AND SIGNED this 22nd day of July, 1997.

NIOBRARA COUNTY COMMISSIONERS

Donna I. Ruffing
Donna I. Ruffing, Chairman

Richard L. James
Richard L. James, Member

Thomas A. Hamilton
Thomas A. Hamilton, Member

ATTEST:

Suzanne R. Sturman
Suzanne R. Sturman, Clerk

**NIOBRARA COUNTY PLANNING AND ZONING COMMISSION
INTERPRETIVE NOTE TO ZONING RESOLUTION**

WHEREAS, it has occurred to the undersigned authority that the Zoning Resolution passed by it on July 1, 1997 is ambiguous as to its intentions and requirements, and

WHEREAS, the undersigned authority desires to issue this Interpretive Note to said Resolution in an effort to make clear the intentions and requirements of the referenced Resolution for the benefit of the public.

NOW, THEREFORE, BE IT HEREBY RESOLVED THAT THE ZONING RESOLUTION PASSED BY THE UNDERSIGNED AUTHORITY SHALL BE INTERPRETED TO INTEND THE FOLLOWING MANDATE REGARDING CHANGES OF PROPERTY USE:

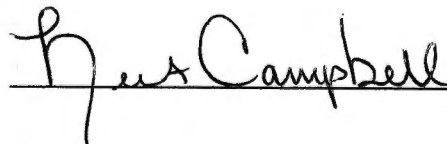
1. That before any landowner, or other person entitled to the use and possession of land subject to said Resolution, shall be permitted to change the use of affected property from a permitted existing use to another classification of use, that person shall first make application to the County Planning and Zoning Commission for a change of use permit (pursuant to a format prepared by the Commission) whereon the proposed change of use permit application will be reviewed by the Commission and recommendations regarding same submitted to the Board of County Commissioners. If the requested change of use is consented to by the Board of County Commissioners, a written change of use authorization will be issued by the Board, subject to such conditions and limitations as the Board may reasonably impose, whereupon the owner, or other party entitled to use and possession of the property, may proceed to implement the varied use of the property in accordance with such authorization.

2. This Interpretive Note shall be appended to the Zoning Resolution dated July 1, 1997 and shall be referred to for the clarifying purposes herein set forth.

DATED this 9 day of June, 1998.

NIOBRARA PLANNING AND ZONING COMMISSION:









RESOLUTION 98-09

RURAL SUBDIVISION ROADS AND STREETS

WHEREAS, Niobrara County received its first subdivision permit request in September 1996; and

WHEREAS, said subdivision was approved in September 1997; and

WHEREAS, the Planning and Zoning Commission approved standards on rural subdivision roads and streets at their meeting on April 15, 1998; and

WHEREAS, no county standards have previously been adopted; and

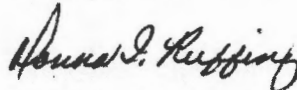
WHEREAS, a public hearing on the adoption of said standards was scheduled for June 16, 1998; notice was duly published in The Lusk Herald on May 27, 1998; no persons were in attendance to comment; and no written comments were received.

NOW, THEREFORE, BE IT RESOLVED that the Niobrara County Commissioners do hereby adopt said Standards - Specifications for Construction of Rural Subdivision Roads & Streets.

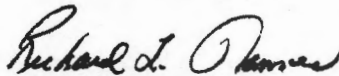
BE IT FURTHER RESOLVED that said Standards become a part of the Addendum to the Land Use Plan (1996) and the Subdivision Permit Procedure (1979).

DATED this 7th day of July, 1998.

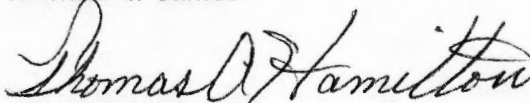
NIOBRARA COUNTY COMMISSIONERS



Donna I. Ruffing, Chairman



Richard L. James



Thomas A. Hamilton

ATTEST



Suzanne B. Sturman, Clerk

RESOLUTION NO. 21-12

**RESOLUTION APPROVING THE NIOBRARA COUNTY
NATURAL RESOURCE MANAGEMENT PLAN**

WHEREAS, the federal government regulates many natural resources within Niobrara County, Wyoming; and

WHEREAS, Niobrara County desires to have input in all management decisions made by the federal government regarding such natural resources within Niobrara County; and

WHEREAS, a Natural Resource Management Plan (“NRMP”) is a document prepared and adopted by a local government to substantively participate in the federal rulemaking process; and

WHEREAS, through federal laws, including the National Environmental Policy Act, the Federal Lands Policy Management Act, and the National Forest Management Act, federal agencies are statutorily required to review and consider a locally adopted land use plan or NRMP when making decisions that may affect the local area; and

WHEREAS, both Wyoming Counties and Conservation Districts have far ranging and important responsibilities to their constituents, described by state statute as protecting their “health, safety and welfare”; and

WHEREAS, NRMPs are intended to help protect the local citizens’ use of, and access to, federally managed lands and resources and to ensure the socioeconomic wellbeing, culture, and customs of a local community are adequately considered in federal decisions; and

WHEREAS, a NRMP serves as a basis for communicating and coordinating with the federal government and its agencies on land and natural resource management and use; and

WHEREAS, consistent with Wyo. Stat. § 9-4-218(a)(viii)(D), and in accordance with Wyo. Stat. §§ 16-4-401 through 16-4-408, the County and Niobrara Conservation District developed the NRMP in public meetings, allowing for public participation; and

WHEREAS, Niobrara County previously adopted the Niobrara County Land Use Plan by Resolution 96-21 on October 1, 1996; and

WHEREAS, Niobrara Conservation District previously adopted the draft plan in April 2021 to meet the requirements of the Wyoming Department of Agriculture. The team continued to fine edit and update the proposed NRMP and provide additional time for public review and comment through July 2021; and

WHEREAS, Niobrara County and the Niobrara Conservation District share common objectives concerning natural resources and federally managed public lands in the County; and

RESOLUTION NO. 21-12

**RESOLUTION APPROVING THE NIOBRARA COUNTY
NATURAL RESOURCE MANAGEMENT PLAN**

WHEREAS, Niobrara County and Niobrara Conservation District want to continue to cooperate and jointly support each other concerning natural resources in the County; and

WHEREAS, both Niobrara County and Niobrara Conservation District possess special expertise and authority granted by the State of Wyoming that uniquely allow each governing body to substantively participate in the federal rulemaking process; and

WHEREAS, Niobrara County has special expertise on all subject matters for which it has statutory responsibility including, but not limited to, all subject matters directly or indirectly related to the health, safety, welfare, custom, culture, and socio-economic viability of a County (Wyo. Statute 18-5-208(a)); and

WHEREAS, Wyoming conservation districts have state statutory authority related to the conservation of soil and water resources, control and prevention of erosion, conservation, development, utilization of water, stabilization of the ranching or farming industry, preservation for wildlife, protection of the tax base, etc. *See* Wyo. §§ 11-16-103; 11-16-135; 11-10-122(b)(iii); and

WHEREAS, local NRMPs do not regulate the use of private lands and do not constitute zoning. A NRMP is a separate type of land use plan prepared by rural counties and conservation districts, containing policies relating to the management of federal and public land in the County and reflecting the local government's position on federal decisions concerning those lands; and

WHEREAS, the local Conservation District is charged with updating the NRMP every five years; and

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Niobrara County and the Niobrara Conservation District Board of Supervisors that the 2021 Niobrara County Natural Resource Management Plan be jointly adopted and approved and promulgated as presented during open meeting on the 3rd day of August, 2021.

NOW, THEREFORE, BE IT FURTHER RESOLVED by the Board of County Commissioners of Niobrara County and Niobrara Conservation District Board of Supervisors that the 2021 Niobrara County Natural Resource Management Plan shall update and replace the 1996 Niobrara County Land Use Plan and 2015 Niobrara Conservation District Natural Resource Management Plan as the governing document setting forth Niobrara County and Niobrara Conservation District's policies and objectives on public lands in the County. This plan will be in place until 2026 unless otherwise amended with public input.

NOW, THEREFORE, BE IT FINALLY RESOLVED by the Board of County Commissioners of Niobrara County and Niobrara Conservation District Board of Supervisors that the above adopted

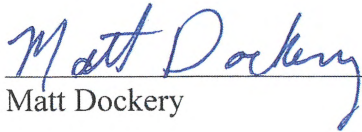
RESOLUTION NO. 21-12

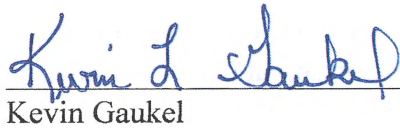
**RESOLUTION APPROVING THE NIOBRARA COUNTY
NATURAL RESOURCE MANAGEMENT PLAN**

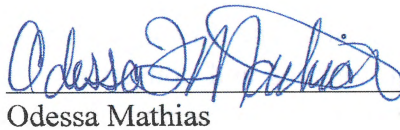
NRMP shall not replace any other separate planning and zoning documents previously adopted by the County or the Conservation District.

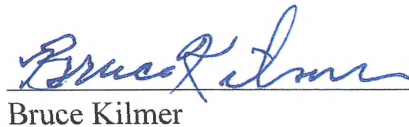
APPROVED AND ADOPTED this 3rd day of August 2021.

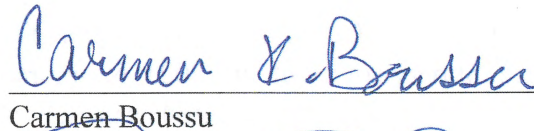
BOARD OF SUPERVISORS
NIOBRARA COUNTY
CONSERVATION DISTRICT

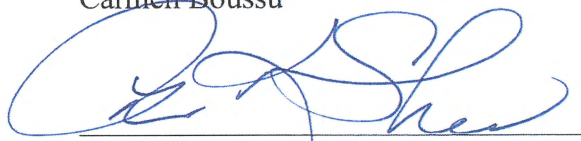

Matt Dockery


Kevin Gaukel

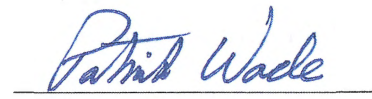

Odessa Mathias

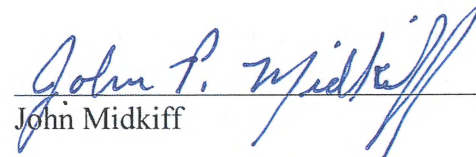

Bruce Kilmer

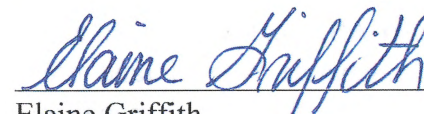

Carmen Boussu


Lisa Shaw, Manager
Niobrara County Conservation District

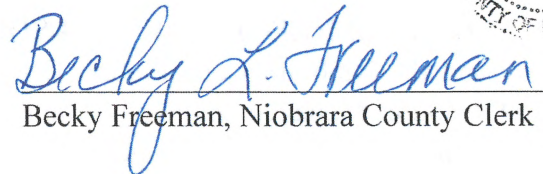
BOARD OF COUNTY COMMISSIONERS
NIOBRARA COUNTY, WYOMING


Patrick H. Wade, Chairman


John Midkiff


Elaine Griffith

ATTEST:


Becky Freeman, Niobrara County Clerk



TITLE 35 - APPENDIX C

- 1) W.S. §36-12-101
- 2) Niobrara County Monitoring Wells
- 3) Attachment I: Weed and Pest Control Act of 1973

36-11-101. Amended and renumbered as 33-29-140 By Laws 1997, ch. 116, § 2.

36-11-102. Amended and renumbered as 33-29-141 By Laws 1997, ch. 116, § 2.

36-11-103. Amended and renumbered as 33-29-142 By Laws 1997, ch. 116, § 2.

36-11-104. Renumbered as 33-29-143 By Laws 1997, ch. 116, § 3.

36-11-105. Amended and renumbered as 33-29-144 By Laws 1997, ch. 116, § 2.

36-11-106. Amended and renumbered as 33-29-145 By Laws 1997, ch. 116, § 2.

36-11-107. Amended and renumbered as 33-11-146 By Laws 1997, ch. 116, § 2.

36-11-108. Renumbered as 33-29-147 By Laws 1997, ch. 116, § 3.

36-11-109. Amended and renumbered as 33-29-148 By Laws 1997, ch. 116, § 2.

36-11-110. Renumbered as 33-29-149 By Laws 1997, ch. 116, § 3.

CHAPTER 12 - STATE CONTROL OF CERTAIN LAND

36-12-101. Legislative determinations.

(a) The legislature determines:

(i) The intent of the framers of the constitution of the United States was to guarantee to each of the states sovereignty over all matters within its boundaries except for those powers specifically granted to the United States as agent of the states;

(ii) The attempted imposition upon the state of Wyoming by the congress of the United States of a requirement in the Statehood Act that the state of Wyoming and its people "disclaim all right and title to any lands or other property not granted or confirmed to the state or its political subdivisions

by or under the authority of this act, the right or title to which is held by the United States or is subject to disposition by the United States", as a condition precedent to acceptance of Wyoming into the Union, was an act beyond the power of the congress of the United States and is thus void;

(iii) The purported right of ownership and control of the unappropriated public land in the state of Wyoming by the United States is without foundation and violates the clear intent of the constitution of the United States; and

(iv) The exercise of that dominion and control of the public land in the state of Wyoming by the United States works a severe, continuous and debilitating hardship upon the people of the state of Wyoming.

36-12-102. Management.

(a) Upon transfer to the state of Wyoming [of] the jurisdiction and ownership of lands and mineral resources subject to this act, the board shall manage such in an orderly manner in trust for the optimum benefit and use of all the people of Wyoming and in conformity with established concepts of multiple use and sustained yield which will permit the development of uses for agriculture, grazing, recreation, minerals, timber, and the development, production and transmission of energy and other public utility services. It shall be managed in such a manner as to permit the conservation and protection of watersheds and wildlife habitat, and historic, scenic, fish and wildlife, recreational and natural values.

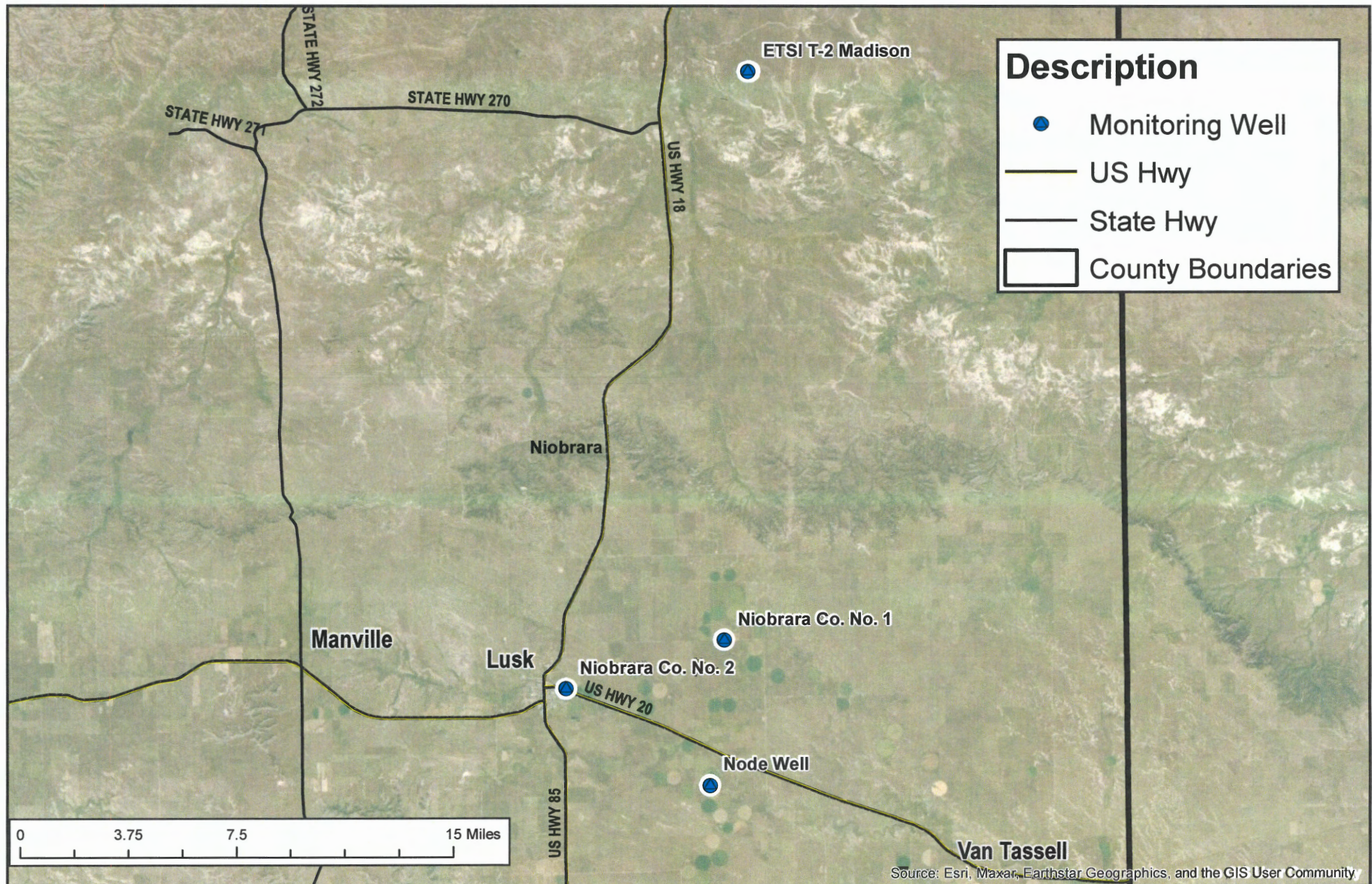
(b) The board of land commissioners shall develop a plan for the transfer and management of lands and minerals subject to this act. This plan will be submitted to the governor and legislature prior to January 1, 1983 and will be subject to their approval. Such a management plan shall consider:

(i) Management of the land pursuant to subsection (a);

(ii) Policy and program regarding disposal, lease or exchange of any lands or resources acquired pursuant to this act;

(iii) Policy and program regarding public access to use of such lands;

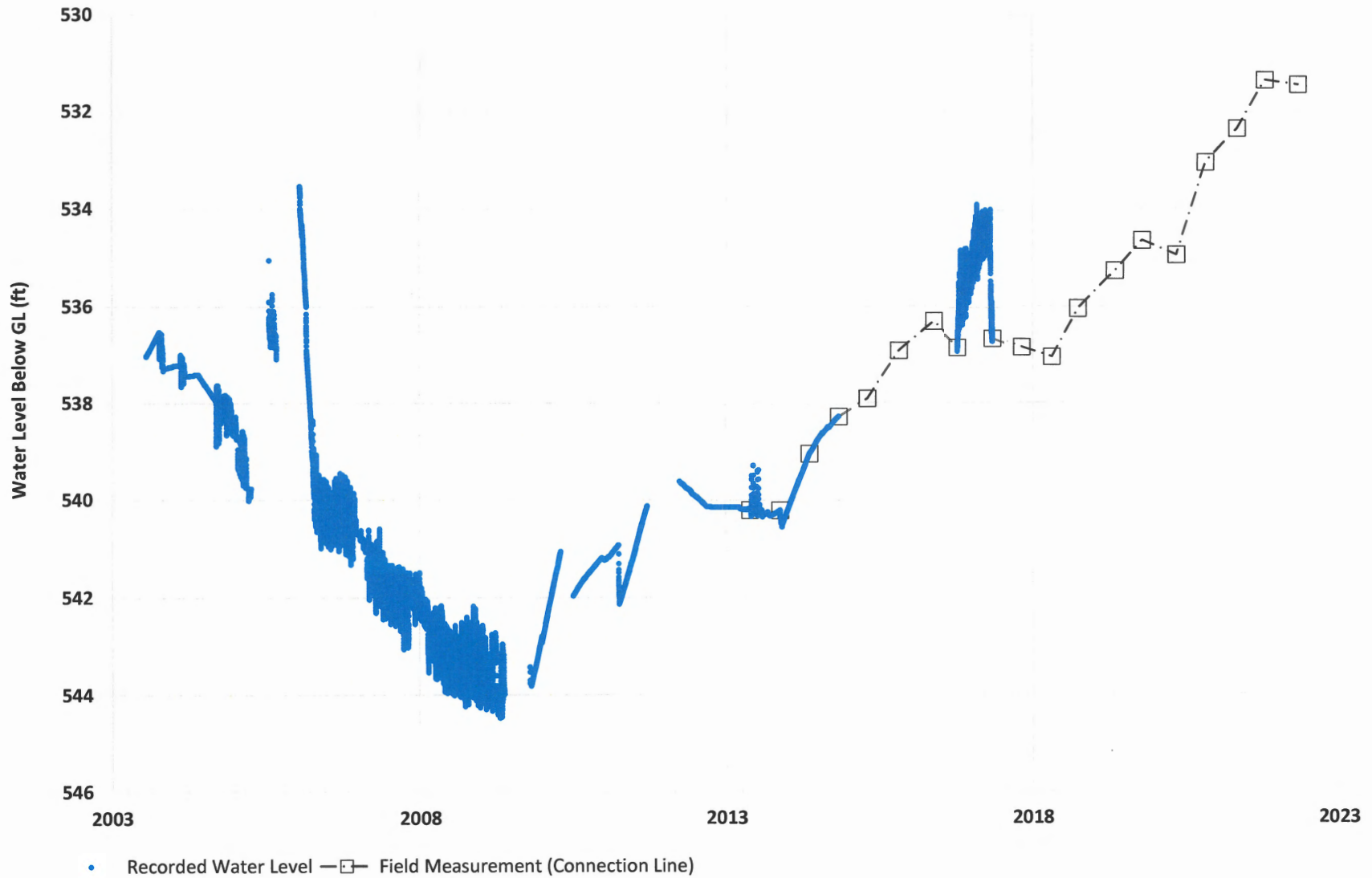
Wyoming State Engineer's Office Niobrara County Monitoring Wells



ETSI T-2 (Madison)

Location: 36-62-28abd Latitude: 43.07272 Longitude: -104.30775

Period of Record: 08/26/2003 - 05/26/2022



Date Prepared: June 16, 2022

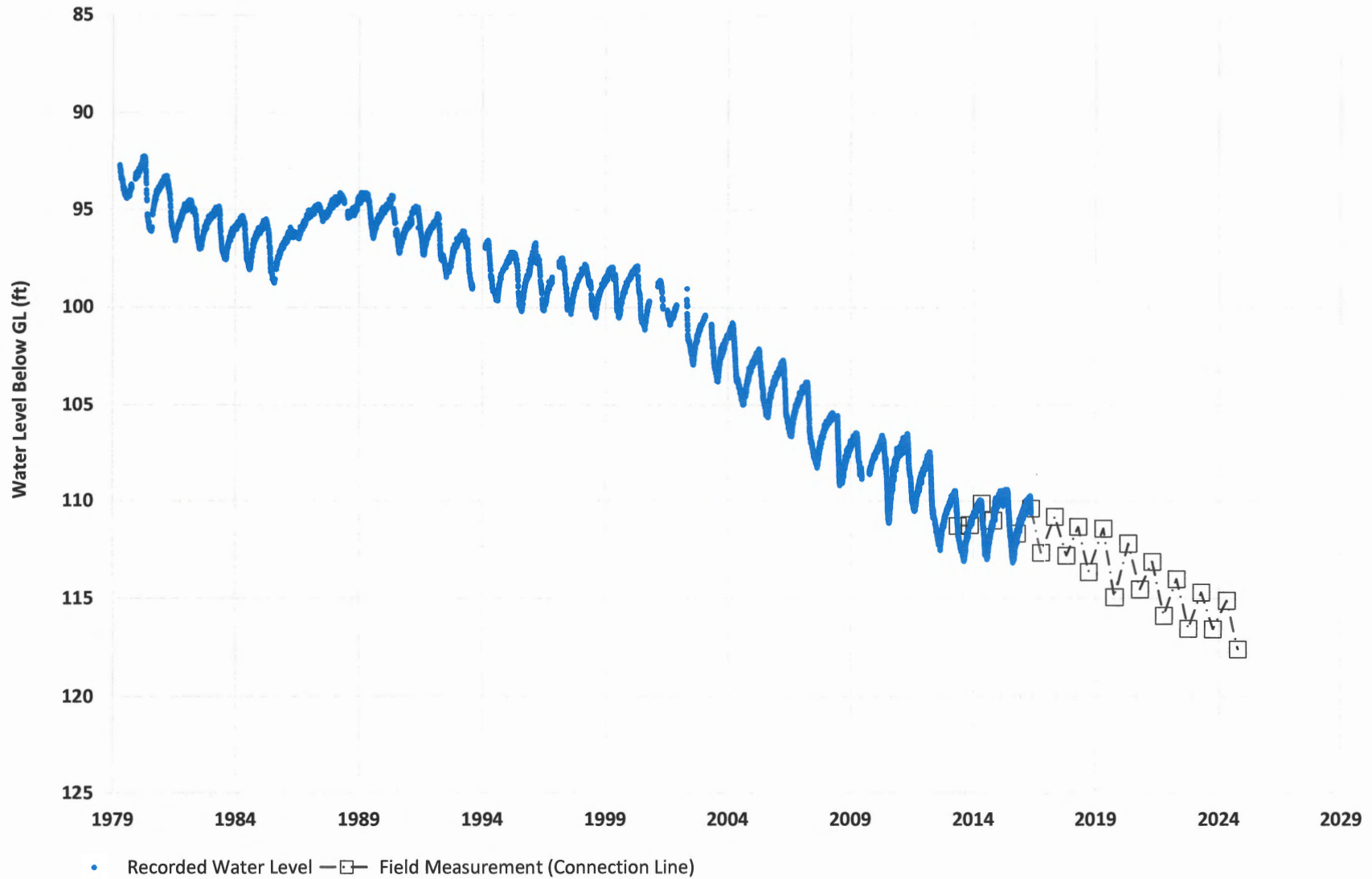
****No longer monitoring****



Niobrara County No. 1

Location: 33-62-32cdd Latitude: 42.78557 Longitude: -104.328622

Period of Record: 06/01/1979 - 11/12/2024



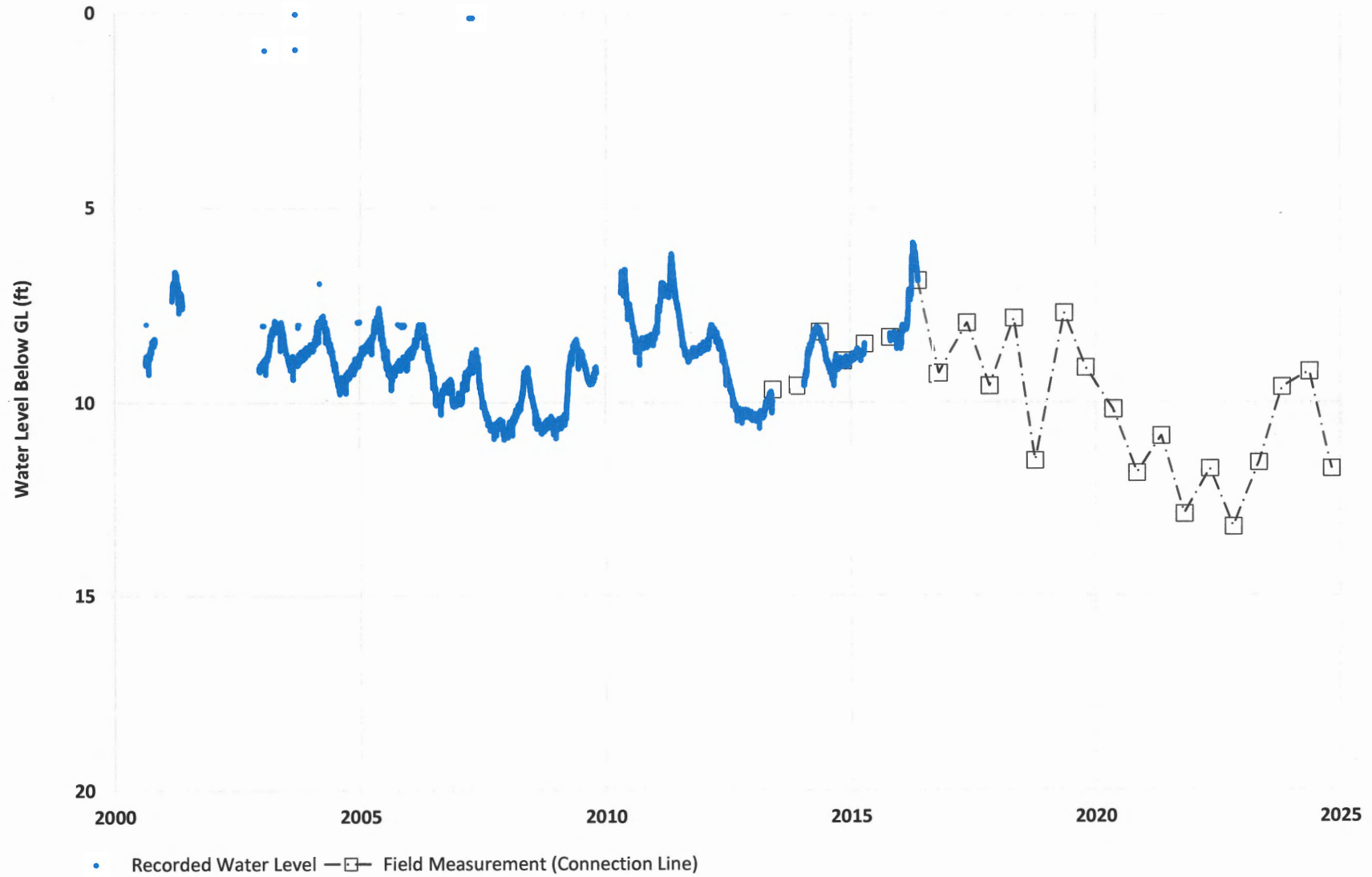
Date Prepared: January 3, 2025



Niobrara County No. 2

Location: 32-63-08daa Latitude: 42.761645 Longitude: -104.437341

Period of Record: 09/18/2000 - 11/12/2024



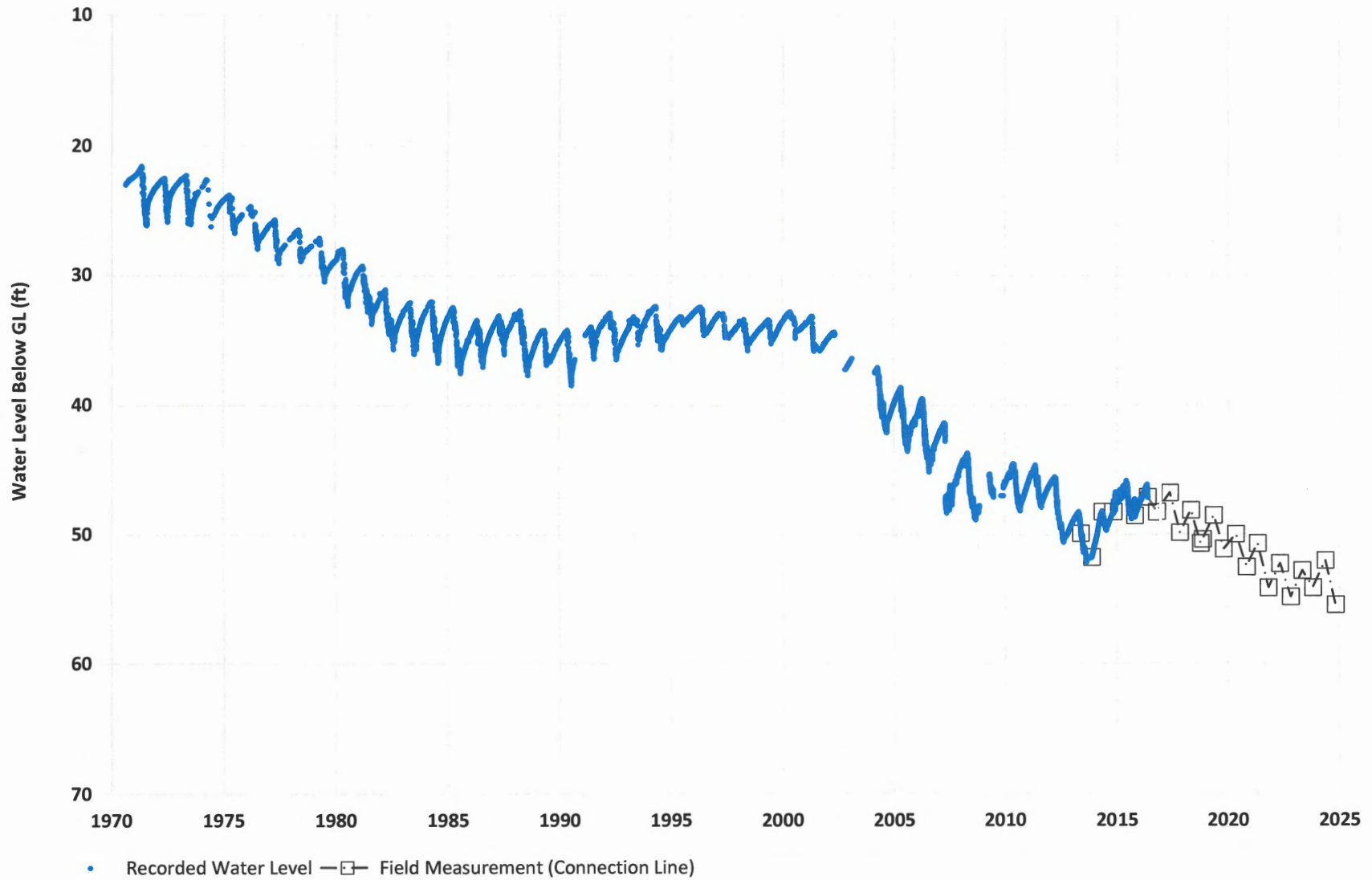
Date Prepared: January 3, 2025



Node Well

Location: 32-62-32bbb Latitude: 42.712389 Longitude: -104.339194

Period of Record: 10/02/1970 - 11/12/2024



Date Prepared: January 3, 2025



ATTACHMENT I
WYOMING WEED AND PEST
CONTROL ACT OF 1973

&

WYOMING WEED AND PEST
SPECIAL MANAGEMENT PROGRAM
Title 11, Chapter 5

A copy of this booklet is available at the
local Weed and Pest Office